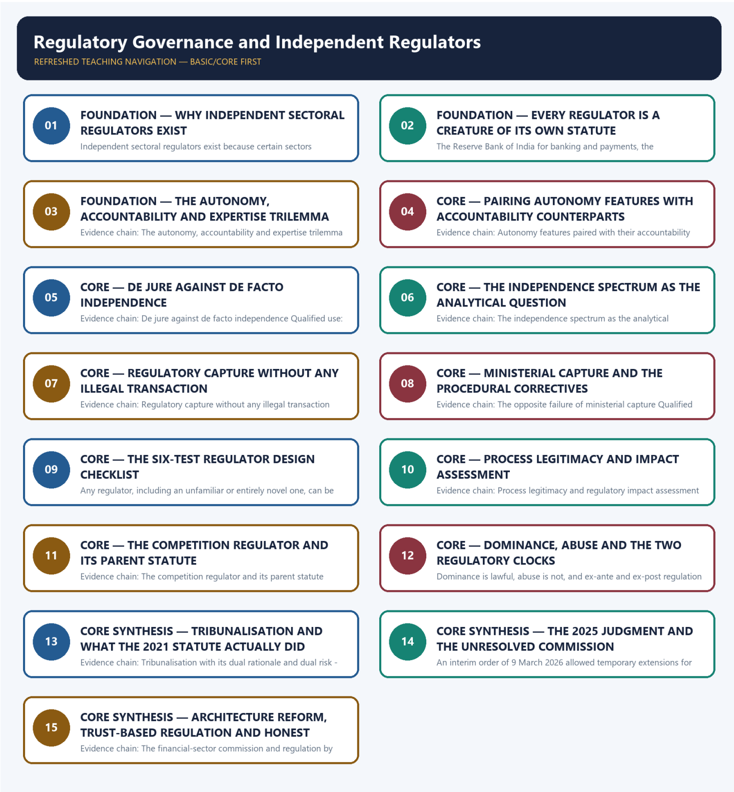
SOLVED PRACTICE WORKBOOK

Regulatory Governance and Independent Regulators - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Regulatory Governance and Independent Regulators - Solved Practice Workbook

BASIC MCQS / REMEDIATION

Q1. Which statement correctly identifies Why independent sectoral regulators exist?

A. Independent sectoral regulators exist because certain sectors combine technical complexity, a need for insulation from day-to-day political and executive direction, and a need for consistent and predictable rule-making, so Parliament creates a statutory body with rule-making, licensing, monitoring and enforcement powers over that sector; the same independence then creates an accountability problem and a capture risk that governance design must continually manage rather than resolve once. B. The Reserve Bank of India for banking and payments, the securities-market regulator, the insurance regulator, the pension-fund regulator, the telecom regulator, the electricity regulatory commission, the petroleum and natural gas regulatory board and the competition regulator are each created by their own separate statute, and the standard trap is to assume they share a uniform independence or accountability design, because each parent Act prescribes its own tenure, funding, appointment and oversight arrangements which vary considerably in the degree of insulation from executive control. C. The recurring design tension is that greater autonomy improves technical and apolitical decision-making while weakening democratic answerability, greater accountability through closer ministerial control improves oversight while undermining the technical insulation regulators need, and expertise is the value both arrangements are meant to serve yet either extreme can compromise, so independence is a variable to be calibrated rather than a virtue to be maximised. D. The analytical mark lies in pairing, because fixed-term appointment is answered by an annual report laid before Parliament, funding from fees or cess rather than an annual grant is answered by audit of the regulator's own accounts, technical composition is answered by the government's power to issue policy directions in specified circumstances, statutory rule-making power is answered by mandatory consultation with a published response, and security of tenure is answered by appellate and judicial review, so listing autonomy features alone reads as advocacy while pairing them demonstrates that the trilemma is understood as a design problem.

Answer: A. Explanation: Independent sectoral regulators exist because certain sectors combine technical complexity, a need for insulation from day-to-day political and executive direction, and a need for consistent and predictable rule-making, so Parliament creates a statutory body with rule-making, licensing, monitoring and enforcement powers over that sector; the same independence then creates an accountability problem and a capture risk that governance design must continually manage rather than resolve once. The remaining options belong to different chronology, actor or analytical categories.

Q2. Which chronology card should be filed under Why independent sectoral regulators exist?

A. The analytical mark lies in pairing, because fixed-term appointment is answered by an annual report laid before Parliament, funding from fees or cess rather than an annual grant is answered by audit of the regulator's own accounts, technical composition is answered by the government's power to issue policy directions in specified circumstances, statutory rule-making power is answered by mandatory consultation with a published response, and security of tenure is answered by appellate and judicial review, so listing autonomy features alone reads as advocacy while pairing them demonstrates that the trilemma is understood as a design problem. B. Independent sectoral regulators exist because certain sectors combine technical complexity, a need for insulation from day-to-day political and executive direction, and a need for consistent and predictable rule-making, so Parliament creates a statutory body with rule-making, licensing, monitoring and enforcement powers over that sector; the same independence then creates an accountability problem and a capture risk that governance design must continually manage rather than resolve once. C. A regulator's statute may grant strong formal independence through fixed tenure and removal only for cause while its actual independence is weaker because of budgetary dependence on the ministry, informal pressure on appointments or a revolving-door relationship with the regulated industry, and the gap between the formal grant and the working reality is the standard analytical wedge for evaluating any specific regulator. D. The recurring design tension is that greater autonomy improves technical and apolitical decision-making while weakening democratic answerability, greater accountability through closer ministerial control improves oversight while undermining the technical insulation regulators need, and expertise is the value both arrangements are meant to serve yet either extreme can compromise, so independence is a variable to be calibrated rather than a virtue to be maximised.

Answer: B. Explanation: Independent sectoral regulators exist because certain sectors combine technical complexity, a need for insulation from day-to-day political and executive direction, and a need for consistent and predictable rule-making, so Parliament creates a statutory body with rule-making, licensing, monitoring and enforcement powers over that sector; the same independence then creates an accountability problem and a capture risk that governance design must continually manage rather than resolve once. The remaining options belong to different chronology, actor or analytical categories.

Q3. Which option preserves the source-bounded meaning of Why independent sectoral regulators exist?

A. No Indian regulator sits at either extreme of a spectrum running from a ministry-controlled department at one end to fixed tenure, own funding, removal only for cause and technical composition at the other; each statute places its regulator somewhere on that spectrum, and locating a named regulator on it using its specific design features is a better comparison method than treating regulatory independence as a single yes-or-no property. B. A regulator's statute may grant strong formal independence through fixed tenure and removal only for cause while its actual independence is weaker because of budgetary dependence on the ministry, informal pressure on appointments or a revolving-door relationship with the regulated industry, and the gap between the formal grant and the working reality is the standard analytical wedge for evaluating any specific regulator. C. Independent sectoral regulators exist because certain sectors combine technical complexity, a need for insulation from day-to-day political and executive direction, and a need for consistent and predictable rule-making, so Parliament creates a statutory body with rule-making, licensing, monitoring and enforcement powers over that sector; the same independence then creates an accountability problem and a capture risk that governance design must continually manage rather than resolve once. D. The analytical mark lies in pairing, because fixed-term appointment is answered by an annual report laid before Parliament, funding from fees or cess rather than an annual grant is answered by audit of the regulator's own accounts, technical composition is answered by the government's power to issue policy directions in specified circumstances, statutory rule-making power is answered by mandatory consultation with a published response, and security of tenure is answered by appellate and judicial review, so listing autonomy features alone reads as advocacy while pairing them demonstrates that the trilemma is understood as a design problem.

Answer: C. Explanation: Independent sectoral regulators exist because certain sectors combine technical complexity, a need for insulation from day-to-day political and executive direction, and a need for consistent and predictable rule-making, so Parliament creates a statutory body with rule-making, licensing, monitoring and enforcement powers over that sector; the same independence then creates an accountability problem and a capture risk that governance design must continually manage rather than resolve once. The remaining options belong to different chronology, actor or analytical categories.

Q4. Which statement avoids a close-option trap about Why independent sectoral regulators exist?

A. Capture is the situation in which a regulator comes over time to serve the interest of the industry it regulates rather than the public interest, and it usually operates lawfully through information asymmetry because the industry knows the sector better, through dependence on industry data, expertise and personnel, through a revolving door and industry-funded research, and finally through agenda and framing capture in which the regulator adopts the industry's own definition of the problem, so treating capture as a synonym for corruption misses every ordinary pathway by which it happens. B. No Indian regulator sits at either extreme of a spectrum running from a ministry-controlled department at one end to fixed tenure, own funding, removal only for cause and technical composition at the other; each statute places its regulator somewhere on that spectrum, and locating a named regulator on it using its specific design features is a better comparison method than treating regulatory independence as a single yes-or-no property. C. A regulator's statute may grant strong formal independence through fixed tenure and removal only for cause while its actual independence is weaker because of budgetary dependence on the ministry, informal pressure on appointments or a revolving-door relationship with the regulated industry, and the gap between the formal grant and the working reality is the standard analytical wedge for evaluating any specific regulator. D. Independent sectoral regulators exist because certain sectors combine technical complexity, a need for insulation from day-to-day political and executive direction, and a need for consistent and predictable rule-making, so Parliament creates a statutory body with rule-making, licensing, monitoring and enforcement powers over that sector; the same independence then creates an accountability problem and a capture risk that governance design must continually manage rather than resolve once.

Answer: D. Explanation: Independent sectoral regulators exist because certain sectors combine technical complexity, a need for insulation from day-to-day political and executive direction, and a need for consistent and predictable rule-making, so Parliament creates a statutory body with rule-making, licensing, monitoring and enforcement powers over that sector; the same independence then creates an accountability problem and a capture risk that governance design must continually manage rather than resolve once. The remaining options belong to different chronology, actor or analytical categories.

Q5. Which statement correctly identifies Every regulator is a creature of its own statute?

A. The Reserve Bank of India for banking and payments, the securities-market regulator, the insurance regulator, the pension-fund regulator, the telecom regulator, the electricity regulatory commission, the petroleum and natural gas regulatory board and the competition regulator are each created by their own separate statute, and the standard trap is to assume they share a uniform independence or accountability design, because each parent Act prescribes its own tenure, funding, appointment and oversight arrangements which vary considerably in the degree of insulation from executive control. B. The recurring design tension is that greater autonomy improves technical and apolitical decision-making while weakening democratic answerability, greater accountability through closer ministerial control improves oversight while undermining the technical insulation regulators need, and expertise is the value both arrangements are meant to serve yet either extreme can compromise, so independence is a variable to be calibrated rather than a virtue to be maximised. C. A regulator's statute may grant strong formal independence through fixed tenure and removal only for cause while its actual independence is weaker because of budgetary dependence on the ministry, informal pressure on appointments or a revolving-door relationship with the regulated industry, and the gap between the formal grant and the working reality is the standard analytical wedge for evaluating any specific regulator. D. The analytical mark lies in pairing, because fixed-term appointment is answered by an annual report laid before Parliament, funding from fees or cess rather than an annual grant is answered by audit of the regulator's own accounts, technical composition is answered by the government's power to issue policy directions in specified circumstances, statutory rule-making power is answered by mandatory consultation with a published response, and security of tenure is answered by appellate and judicial review, so listing autonomy features alone reads as advocacy while pairing them demonstrates that the trilemma is understood as a design problem.

Answer: A. Explanation: The Reserve Bank of India for banking and payments, the securities-market regulator, the insurance regulator, the pension-fund regulator, the telecom regulator, the electricity regulatory commission, the petroleum and natural gas regulatory board and the competition regulator are each created by their own separate statute, and the standard trap is to assume they share a uniform independence or accountability design, because each parent Act prescribes its own tenure, funding, appointment and oversight arrangements which vary considerably in the degree of insulation from executive control. The remaining options belong to different chronology, actor or analytical categories.

Q6. Which chronology card should be filed under Every regulator is a creature of its own statute?

A. No Indian regulator sits at either extreme of a spectrum running from a ministry-controlled department at one end to fixed tenure, own funding, removal only for cause and technical composition at the other; each statute places its regulator somewhere on that spectrum, and locating a named regulator on it using its specific design features is a better comparison method than treating regulatory independence as a single yes-or-no property. B. The Reserve Bank of India for banking and payments, the securities-market regulator, the insurance regulator, the pension-fund regulator, the telecom regulator, the electricity regulatory commission, the petroleum and natural gas regulatory board and the competition regulator are each created by their own separate statute, and the standard trap is to assume they share a uniform independence or accountability design, because each parent Act prescribes its own tenure, funding, appointment and oversight arrangements which vary considerably in the degree of insulation from executive control. C. A regulator's statute may grant strong formal independence through fixed tenure and removal only for cause while its actual independence is weaker because of budgetary dependence on the ministry, informal pressure on appointments or a revolving-door relationship with the regulated industry, and the gap between the formal grant and the working reality is the standard analytical wedge for evaluating any specific regulator. D. The analytical mark lies in pairing, because fixed-term appointment is answered by an annual report laid before Parliament, funding from fees or cess rather than an annual grant is answered by audit of the regulator's own accounts, technical composition is answered by the government's power to issue policy directions in specified circumstances, statutory rule-making power is answered by mandatory consultation with a published response, and security of tenure is answered by appellate and judicial review, so listing autonomy features alone reads as advocacy while pairing them demonstrates that the trilemma is understood as a design problem.

Answer: B. Explanation: The Reserve Bank of India for banking and payments, the securities-market regulator, the insurance regulator, the pension-fund regulator, the telecom regulator, the electricity regulatory commission, the petroleum and natural gas regulatory board and the competition regulator are each created by their own separate statute, and the standard trap is to assume they share a uniform independence or accountability design, because each parent Act prescribes its own tenure, funding, appointment and oversight arrangements which vary considerably in the degree of insulation from executive control. The remaining options belong to different chronology, actor or analytical categories.

Q7. Which option preserves the source-bounded meaning of Every regulator is a creature of its own statute?

A. Capture is the situation in which a regulator comes over time to serve the interest of the industry it regulates rather than the public interest, and it usually operates lawfully through information asymmetry because the industry knows the sector better, through dependence on industry data, expertise and personnel, through a revolving door and industry-funded research, and finally through agenda and framing capture in which the regulator adopts the industry's own definition of the problem, so treating capture as a synonym for corruption misses every ordinary pathway by which it happens. B. No Indian regulator sits at either extreme of a spectrum running from a ministry-controlled department at one end to fixed tenure, own funding, removal only for cause and technical composition at the other; each statute places its regulator somewhere on that spectrum, and locating a named regulator on it using its specific design features is a better comparison method than treating regulatory independence as a single yes-or-no property. C. The Reserve Bank of India for banking and payments, the securities-market regulator, the insurance regulator, the pension-fund regulator, the telecom regulator, the electricity regulatory commission, the petroleum and natural gas regulatory board and the competition regulator are each created by their own separate statute, and the standard trap is to assume they share a uniform independence or accountability design, because each parent Act prescribes its own tenure, funding, appointment and oversight arrangements which vary considerably in the degree of insulation from executive control. D. A regulator's statute may grant strong formal independence through fixed tenure and removal only for cause while its actual independence is weaker because of budgetary dependence on the ministry, informal pressure on appointments or a revolving-door relationship with the regulated industry, and the gap between the formal grant and the working reality is the standard analytical wedge for evaluating any specific regulator.

Answer: C. Explanation: The Reserve Bank of India for banking and payments, the securities-market regulator, the insurance regulator, the pension-fund regulator, the telecom regulator, the electricity regulatory commission, the petroleum and natural gas regulatory board and the competition regulator are each created by their own separate statute, and the standard trap is to assume they share a uniform independence or accountability design, because each parent Act prescribes its own tenure, funding, appointment and oversight arrangements which vary considerably in the degree of insulation from executive control. The remaining options belong to different chronology, actor or analytical categories.

Q8. Which statement avoids a close-option trap about Every regulator is a creature of its own statute?

A. No Indian regulator sits at either extreme of a spectrum running from a ministry-controlled department at one end to fixed tenure, own funding, removal only for cause and technical composition at the other; each statute places its regulator somewhere on that spectrum, and locating a named regulator on it using its specific design features is a better comparison method than treating regulatory independence as a single yes-or-no property. B. An under-independent regulator captured by the parent ministry rather than by the industry produces politically timed decisions and suppressed tariffs, so a balanced answer names both directions of failure, and the correctives against industry capture are procedural rather than exhortatory, namely mandatory consultation with published responses, reasoned orders, cooling-off periods, in-house technical capacity, user representation in consultation, appellate review, parliamentary reporting and conflict-of-interest disclosure. C. Capture is the situation in which a regulator comes over time to serve the interest of the industry it regulates rather than the public interest, and it usually operates lawfully through information asymmetry because the industry knows the sector better, through dependence on industry data, expertise and personnel, through a revolving door and industry-funded research, and finally through agenda and framing capture in which the regulator adopts the industry's own definition of the problem, so treating capture as a synonym for corruption misses every ordinary pathway by which it happens. D. The Reserve Bank of India for banking and payments, the securities-market regulator, the insurance regulator, the pension-fund regulator, the telecom regulator, the electricity regulatory commission, the petroleum and natural gas regulatory board and the competition regulator are each created by their own separate statute, and the standard trap is to assume they share a uniform independence or accountability design, because each parent Act prescribes its own tenure, funding, appointment and oversight arrangements which vary considerably in the degree of insulation from executive control.

Answer: D. Explanation: The Reserve Bank of India for banking and payments, the securities-market regulator, the insurance regulator, the pension-fund regulator, the telecom regulator, the electricity regulatory commission, the petroleum and natural gas regulatory board and the competition regulator are each created by their own separate statute, and the standard trap is to assume they share a uniform independence or accountability design, because each parent Act prescribes its own tenure, funding, appointment and oversight arrangements which vary considerably in the degree of insulation from executive control. The remaining options belong to different chronology, actor or analytical categories.

Q9. Which statement correctly identifies The autonomy, accountability and expertise trilemma?

A. The recurring design tension is that greater autonomy improves technical and apolitical decision-making while weakening democratic answerability, greater accountability through closer ministerial control improves oversight while undermining the technical insulation regulators need, and expertise is the value both arrangements are meant to serve yet either extreme can compromise, so independence is a variable to be calibrated rather than a virtue to be maximised. B. No Indian regulator sits at either extreme of a spectrum running from a ministry-controlled department at one end to fixed tenure, own funding, removal only for cause and technical composition at the other; each statute places its regulator somewhere on that spectrum, and locating a named regulator on it using its specific design features is a better comparison method than treating regulatory independence as a single yes-or-no property. C. A regulator's statute may grant strong formal independence through fixed tenure and removal only for cause while its actual independence is weaker because of budgetary dependence on the ministry, informal pressure on appointments or a revolving-door relationship with the regulated industry, and the gap between the formal grant and the working reality is the standard analytical wedge for evaluating any specific regulator. D. The analytical mark lies in pairing, because fixed-term appointment is answered by an annual report laid before Parliament, funding from fees or cess rather than an annual grant is answered by audit of the regulator's own accounts, technical composition is answered by the government's power to issue policy directions in specified circumstances, statutory rule-making power is answered by mandatory consultation with a published response, and security of tenure is answered by appellate and judicial review, so listing autonomy features alone reads as advocacy while pairing them demonstrates that the trilemma is understood as a design problem.

Answer: A. Explanation: The recurring design tension is that greater autonomy improves technical and apolitical decision-making while weakening democratic answerability, greater accountability through closer ministerial control improves oversight while undermining the technical insulation regulators need, and expertise is the value both arrangements are meant to serve yet either extreme can compromise, so independence is a variable to be calibrated rather than a virtue to be maximised. The remaining options belong to different chronology, actor or analytical categories.

Q10. Which chronology card should be filed under The autonomy, accountability and expertise trilemma?

A. Capture is the situation in which a regulator comes over time to serve the interest of the industry it regulates rather than the public interest, and it usually operates lawfully through information asymmetry because the industry knows the sector better, through dependence on industry data, expertise and personnel, through a revolving door and industry-funded research, and finally through agenda and framing capture in which the regulator adopts the industry's own definition of the problem, so treating capture as a synonym for corruption misses every ordinary pathway by which it happens. B. The recurring design tension is that greater autonomy improves technical and apolitical decision-making while weakening democratic answerability, greater accountability through closer ministerial control improves oversight while undermining the technical insulation regulators need, and expertise is the value both arrangements are meant to serve yet either extreme can compromise, so independence is a variable to be calibrated rather than a virtue to be maximised. C. A regulator's statute may grant strong formal independence through fixed tenure and removal only for cause while its actual independence is weaker because of budgetary dependence on the ministry, informal pressure on appointments or a revolving-door relationship with the regulated industry, and the gap between the formal grant and the working reality is the standard analytical wedge for evaluating any specific regulator. D. No Indian regulator sits at either extreme of a spectrum running from a ministry-controlled department at one end to fixed tenure, own funding, removal only for cause and technical composition at the other; each statute places its regulator somewhere on that spectrum, and locating a named regulator on it using its specific design features is a better comparison method than treating regulatory independence as a single yes-or-no property.

Answer: B. Explanation: The recurring design tension is that greater autonomy improves technical and apolitical decision-making while weakening democratic answerability, greater accountability through closer ministerial control improves oversight while undermining the technical insulation regulators need, and expertise is the value both arrangements are meant to serve yet either extreme can compromise, so independence is a variable to be calibrated rather than a virtue to be maximised. The remaining options belong to different chronology, actor or analytical categories.

Q11. Which option preserves the source-bounded meaning of The autonomy, accountability and expertise trilemma?

A. Capture is the situation in which a regulator comes over time to serve the interest of the industry it regulates rather than the public interest, and it usually operates lawfully through information asymmetry because the industry knows the sector better, through dependence on industry data, expertise and personnel, through a revolving door and industry-funded research, and finally through agenda and framing capture in which the regulator adopts the industry's own definition of the problem, so treating capture as a synonym for corruption misses every ordinary pathway by which it happens. B. No Indian regulator sits at either extreme of a spectrum running from a ministry-controlled department at one end to fixed tenure, own funding, removal only for cause and technical composition at the other; each statute places its regulator somewhere on that spectrum, and locating a named regulator on it using its specific design features is a better comparison method than treating regulatory independence as a single yes-or-no property. C. The recurring design tension is that greater autonomy improves technical and apolitical decision-making while weakening democratic answerability, greater accountability through closer ministerial control improves oversight while undermining the technical insulation regulators need, and expertise is the value both arrangements are meant to serve yet either extreme can compromise, so independence is a variable to be calibrated rather than a virtue to be maximised. D. An under-independent regulator captured by the parent ministry rather than by the industry produces politically timed decisions and suppressed tariffs, so a balanced answer names both directions of failure, and the correctives against industry capture are procedural rather than exhortatory, namely mandatory consultation with published responses, reasoned orders, cooling-off periods, in-house technical capacity, user representation in consultation, appellate review, parliamentary reporting and conflict-of-interest disclosure.

Answer: C. Explanation: The recurring design tension is that greater autonomy improves technical and apolitical decision-making while weakening democratic answerability, greater accountability through closer ministerial control improves oversight while undermining the technical insulation regulators need, and expertise is the value both arrangements are meant to serve yet either extreme can compromise, so independence is a variable to be calibrated rather than a virtue to be maximised. The remaining options belong to different chronology, actor or analytical categories.

Q12. Which statement avoids a close-option trap about The autonomy, accountability and expertise trilemma?

A. Capture is the situation in which a regulator comes over time to serve the interest of the industry it regulates rather than the public interest, and it usually operates lawfully through information asymmetry because the industry knows the sector better, through dependence on industry data, expertise and personnel, through a revolving door and industry-funded research, and finally through agenda and framing capture in which the regulator adopts the industry's own definition of the problem, so treating capture as a synonym for corruption misses every ordinary pathway by which it happens. B. Any regulator, including an unfamiliar or entirely novel one, can be assessed on six tests, namely the statutory mandate and the Act that confers it, the appointment and removal process and whether removal can be arbitrary, the funding source and whether the regulated entity or the ministry controls it, the rule-making process including pre-consultation, a published response to comments and any impact appraisal, enforcement due process covering notice, hearing, a reasoned order, proportionate penalty and absence of bias, and finally review and reporting through an appellate route and legislative reporting. C. An under-independent regulator captured by the parent ministry rather than by the industry produces politically timed decisions and suppressed tariffs, so a balanced answer names both directions of failure, and the correctives against industry capture are procedural rather than exhortatory, namely mandatory consultation with published responses, reasoned orders, cooling-off periods, in-house technical capacity, user representation in consultation, appellate review, parliamentary reporting and conflict-of-interest disclosure. D. The recurring design tension is that greater autonomy improves technical and apolitical decision-making while weakening democratic answerability, greater accountability through closer ministerial control improves oversight while undermining the technical insulation regulators need, and expertise is the value both arrangements are meant to serve yet either extreme can compromise, so independence is a variable to be calibrated rather than a virtue to be maximised.

Answer: D. Explanation: The recurring design tension is that greater autonomy improves technical and apolitical decision-making while weakening democratic answerability, greater accountability through closer ministerial control improves oversight while undermining the technical insulation regulators need, and expertise is the value both arrangements are meant to serve yet either extreme can compromise, so independence is a variable to be calibrated rather than a virtue to be maximised. The remaining options belong to different chronology, actor or analytical categories.

Q13. Which statement correctly identifies Autonomy features paired with their accountability counterparts?

A. The analytical mark lies in pairing, because fixed-term appointment is answered by an annual report laid before Parliament, funding from fees or cess rather than an annual grant is answered by audit of the regulator's own accounts, technical composition is answered by the government's power to issue policy directions in specified circumstances, statutory rule-making power is answered by mandatory consultation with a published response, and security of tenure is answered by appellate and judicial review, so listing autonomy features alone reads as advocacy while pairing them demonstrates that the trilemma is understood as a design problem. B. Capture is the situation in which a regulator comes over time to serve the interest of the industry it regulates rather than the public interest, and it usually operates lawfully through information asymmetry because the industry knows the sector better, through dependence on industry data, expertise and personnel, through a revolving door and industry-funded research, and finally through agenda and framing capture in which the regulator adopts the industry's own definition of the problem, so treating capture as a synonym for corruption misses every ordinary pathway by which it happens. C. No Indian regulator sits at either extreme of a spectrum running from a ministry-controlled department at one end to fixed tenure, own funding, removal only for cause and technical composition at the other; each statute places its regulator somewhere on that spectrum, and locating a named regulator on it using its specific design features is a better comparison method than treating regulatory independence as a single yes-or-no property. D. A regulator's statute may grant strong formal independence through fixed tenure and removal only for cause while its actual independence is weaker because of budgetary dependence on the ministry, informal pressure on appointments or a revolving-door relationship with the regulated industry, and the gap between the formal grant and the working reality is the standard analytical wedge for evaluating any specific regulator.

Answer: A. Explanation: The analytical mark lies in pairing, because fixed-term appointment is answered by an annual report laid before Parliament, funding from fees or cess rather than an annual grant is answered by audit of the regulator's own accounts, technical composition is answered by the government's power to issue policy directions in specified circumstances, statutory rule-making power is answered by mandatory consultation with a published response, and security of tenure is answered by appellate and judicial review, so listing autonomy features alone reads as advocacy while pairing them demonstrates that the trilemma is understood as a design problem. The remaining options belong to different chronology, actor or analytical categories.

Q14. Which chronology card should be filed under Autonomy features paired with their accountability counterparts?

A. Capture is the situation in which a regulator comes over time to serve the interest of the industry it regulates rather than the public interest, and it usually operates lawfully through information asymmetry because the industry knows the sector better, through dependence on industry data, expertise and personnel, through a revolving door and industry-funded research, and finally through agenda and framing capture in which the regulator adopts the industry's own definition of the problem, so treating capture as a synonym for corruption misses every ordinary pathway by which it happens. B. The analytical mark lies in pairing, because fixed-term appointment is answered by an annual report laid before Parliament, funding from fees or cess rather than an annual grant is answered by audit of the regulator's own accounts, technical composition is answered by the government's power to issue policy directions in specified circumstances, statutory rule-making power is answered by mandatory consultation with a published response, and security of tenure is answered by appellate and judicial review, so listing autonomy features alone reads as advocacy while pairing them demonstrates that the trilemma is understood as a design problem. C. An under-independent regulator captured by the parent ministry rather than by the industry produces politically timed decisions and suppressed tariffs, so a balanced answer names both directions of failure, and the correctives against industry capture are procedural rather than exhortatory, namely mandatory consultation with published responses, reasoned orders, cooling-off periods, in-house technical capacity, user representation in consultation, appellate review, parliamentary reporting and conflict-of-interest disclosure. D. No Indian regulator sits at either extreme of a spectrum running from a ministry-controlled department at one end to fixed tenure, own funding, removal only for cause and technical composition at the other; each statute places its regulator somewhere on that spectrum, and locating a named regulator on it using its specific design features is a better comparison method than treating regulatory independence as a single yes-or-no property.

Answer: B. Explanation: The analytical mark lies in pairing, because fixed-term appointment is answered by an annual report laid before Parliament, funding from fees or cess rather than an annual grant is answered by audit of the regulator's own accounts, technical composition is answered by the government's power to issue policy directions in specified circumstances, statutory rule-making power is answered by mandatory consultation with a published response, and security of tenure is answered by appellate and judicial review, so listing autonomy features alone reads as advocacy while pairing them demonstrates that the trilemma is understood as a design problem. The remaining options belong to different chronology, actor or analytical categories.

Q15. Which option preserves the source-bounded meaning of Autonomy features paired with their accountability counterparts?

A. An under-independent regulator captured by the parent ministry rather than by the industry produces politically timed decisions and suppressed tariffs, so a balanced answer names both directions of failure, and the correctives against industry capture are procedural rather than exhortatory, namely mandatory consultation with published responses, reasoned orders, cooling-off periods, in-house technical capacity, user representation in consultation, appellate review, parliamentary reporting and conflict-of-interest disclosure. B. Capture is the situation in which a regulator comes over time to serve the interest of the industry it regulates rather than the public interest, and it usually operates lawfully through information asymmetry because the industry knows the sector better, through dependence on industry data, expertise and personnel, through a revolving door and industry-funded research, and finally through agenda and framing capture in which the regulator adopts the industry's own definition of the problem, so treating capture as a synonym for corruption misses every ordinary pathway by which it happens. C. The analytical mark lies in pairing, because fixed-term appointment is answered by an annual report laid before Parliament, funding from fees or cess rather than an annual grant is answered by audit of the regulator's own accounts, technical composition is answered by the government's power to issue policy directions in specified circumstances, statutory rule-making power is answered by mandatory consultation with a published response, and security of tenure is answered by appellate and judicial review, so listing autonomy features alone reads as advocacy while pairing them demonstrates that the trilemma is understood as a design problem. D. Any regulator, including an unfamiliar or entirely novel one, can be assessed on six tests, namely the statutory mandate and the Act that confers it, the appointment and removal process and whether removal can be arbitrary, the funding source and whether the regulated entity or the ministry controls it, the rule-making process including pre-consultation, a published response to comments and any impact appraisal, enforcement due process covering notice, hearing, a reasoned order, proportionate penalty and absence of bias, and finally review and reporting through an appellate route and legislative reporting.

Answer: C. Explanation: The analytical mark lies in pairing, because fixed-term appointment is answered by an annual report laid before Parliament, funding from fees or cess rather than an annual grant is answered by audit of the regulator's own accounts, technical composition is answered by the government's power to issue policy directions in specified circumstances, statutory rule-making power is answered by mandatory consultation with a published response, and security of tenure is answered by appellate and judicial review, so listing autonomy features alone reads as advocacy while pairing them demonstrates that the trilemma is understood as a design problem. The remaining options belong to different chronology, actor or analytical categories.

Q16. Which statement avoids a close-option trap about Autonomy features paired with their accountability counterparts?

A. Any regulator, including an unfamiliar or entirely novel one, can be assessed on six tests, namely the statutory mandate and the Act that confers it, the appointment and removal process and whether removal can be arbitrary, the funding source and whether the regulated entity or the ministry controls it, the rule-making process including pre-consultation, a published response to comments and any impact appraisal, enforcement due process covering notice, hearing, a reasoned order, proportionate penalty and absence of bias, and finally review and reporting through an appellate route and legislative reporting. B. A regulator's legitimacy rests on process rather than on independence asserted in its statute, because pre-consultation, published responses, reasoned orders and effective appellate review are what make unelected rule-making defensible, and a regulator that fails the rule-making and due-process tests is not made legitimate by passing the mandate, appointment and funding tests; regulatory impact assessment is the main available ex-ante discipline on rule-making quality and is unevenly institutionalised in India rather than a uniformly binding requirement. C. An under-independent regulator captured by the parent ministry rather than by the industry produces politically timed decisions and suppressed tariffs, so a balanced answer names both directions of failure, and the correctives against industry capture are procedural rather than exhortatory, namely mandatory consultation with published responses, reasoned orders, cooling-off periods, in-house technical capacity, user representation in consultation, appellate review, parliamentary reporting and conflict-of-interest disclosure. D. The analytical mark lies in pairing, because fixed-term appointment is answered by an annual report laid before Parliament, funding from fees or cess rather than an annual grant is answered by audit of the regulator's own accounts, technical composition is answered by the government's power to issue policy directions in specified circumstances, statutory rule-making power is answered by mandatory consultation with a published response, and security of tenure is answered by appellate and judicial review, so listing autonomy features alone reads as advocacy while pairing them demonstrates that the trilemma is understood as a design problem.

Answer: D. Explanation: The analytical mark lies in pairing, because fixed-term appointment is answered by an annual report laid before Parliament, funding from fees or cess rather than an annual grant is answered by audit of the regulator's own accounts, technical composition is answered by the government's power to issue policy directions in specified circumstances, statutory rule-making power is answered by mandatory consultation with a published response, and security of tenure is answered by appellate and judicial review, so listing autonomy features alone reads as advocacy while pairing them demonstrates that the trilemma is understood as a design problem. The remaining options belong to different chronology, actor or analytical categories.

Q17. Which statement correctly identifies De jure against de facto independence?

A. A regulator's statute may grant strong formal independence through fixed tenure and removal only for cause while its actual independence is weaker because of budgetary dependence on the ministry, informal pressure on appointments or a revolving-door relationship with the regulated industry, and the gap between the formal grant and the working reality is the standard analytical wedge for evaluating any specific regulator. B. An under-independent regulator captured by the parent ministry rather than by the industry produces politically timed decisions and suppressed tariffs, so a balanced answer names both directions of failure, and the correctives against industry capture are procedural rather than exhortatory, namely mandatory consultation with published responses, reasoned orders, cooling-off periods, in-house technical capacity, user representation in consultation, appellate review, parliamentary reporting and conflict-of-interest disclosure. C. No Indian regulator sits at either extreme of a spectrum running from a ministry-controlled department at one end to fixed tenure, own funding, removal only for cause and technical composition at the other; each statute places its regulator somewhere on that spectrum, and locating a named regulator on it using its specific design features is a better comparison method than treating regulatory independence as a single yes-or-no property. D. Capture is the situation in which a regulator comes over time to serve the interest of the industry it regulates rather than the public interest, and it usually operates lawfully through information asymmetry because the industry knows the sector better, through dependence on industry data, expertise and personnel, through a revolving door and industry-funded research, and finally through agenda and framing capture in which the regulator adopts the industry's own definition of the problem, so treating capture as a synonym for corruption misses every ordinary pathway by which it happens.

Answer: A. Explanation: A regulator's statute may grant strong formal independence through fixed tenure and removal only for cause while its actual independence is weaker because of budgetary dependence on the ministry, informal pressure on appointments or a revolving-door relationship with the regulated industry, and the gap between the formal grant and the working reality is the standard analytical wedge for evaluating any specific regulator. The remaining options belong to different chronology, actor or analytical categories.

Q18. Which chronology card should be filed under De jure against de facto independence?

A. Any regulator, including an unfamiliar or entirely novel one, can be assessed on six tests, namely the statutory mandate and the Act that confers it, the appointment and removal process and whether removal can be arbitrary, the funding source and whether the regulated entity or the ministry controls it, the rule-making process including pre-consultation, a published response to comments and any impact appraisal, enforcement due process covering notice, hearing, a reasoned order, proportionate penalty and absence of bias, and finally review and reporting through an appellate route and legislative reporting. B. A regulator's statute may grant strong formal independence through fixed tenure and removal only for cause while its actual independence is weaker because of budgetary dependence on the ministry, informal pressure on appointments or a revolving-door relationship with the regulated industry, and the gap between the formal grant and the working reality is the standard analytical wedge for evaluating any specific regulator. C. Capture is the situation in which a regulator comes over time to serve the interest of the industry it regulates rather than the public interest, and it usually operates lawfully through information asymmetry because the industry knows the sector better, through dependence on industry data, expertise and personnel, through a revolving door and industry-funded research, and finally through agenda and framing capture in which the regulator adopts the industry's own definition of the problem, so treating capture as a synonym for corruption misses every ordinary pathway by which it happens. D. An under-independent regulator captured by the parent ministry rather than by the industry produces politically timed decisions and suppressed tariffs, so a balanced answer names both directions of failure, and the correctives against industry capture are procedural rather than exhortatory, namely mandatory consultation with published responses, reasoned orders, cooling-off periods, in-house technical capacity, user representation in consultation, appellate review, parliamentary reporting and conflict-of-interest disclosure.

Answer: B. Explanation: A regulator's statute may grant strong formal independence through fixed tenure and removal only for cause while its actual independence is weaker because of budgetary dependence on the ministry, informal pressure on appointments or a revolving-door relationship with the regulated industry, and the gap between the formal grant and the working reality is the standard analytical wedge for evaluating any specific regulator. The remaining options belong to different chronology, actor or analytical categories.

Q19. Which option preserves the source-bounded meaning of De jure against de facto independence?

A. An under-independent regulator captured by the parent ministry rather than by the industry produces politically timed decisions and suppressed tariffs, so a balanced answer names both directions of failure, and the correctives against industry capture are procedural rather than exhortatory, namely mandatory consultation with published responses, reasoned orders, cooling-off periods, in-house technical capacity, user representation in consultation, appellate review, parliamentary reporting and conflict-of-interest disclosure. B. A regulator's legitimacy rests on process rather than on independence asserted in its statute, because pre-consultation, published responses, reasoned orders and effective appellate review are what make unelected rule-making defensible, and a regulator that fails the rule-making and due-process tests is not made legitimate by passing the mandate, appointment and funding tests; regulatory impact assessment is the main available ex-ante discipline on rule-making quality and is unevenly institutionalised in India rather than a uniformly binding requirement. C. A regulator's statute may grant strong formal independence through fixed tenure and removal only for cause while its actual independence is weaker because of budgetary dependence on the ministry, informal pressure on appointments or a revolving-door relationship with the regulated industry, and the gap between the formal grant and the working reality is the standard analytical wedge for evaluating any specific regulator. D. Any regulator, including an unfamiliar or entirely novel one, can be assessed on six tests, namely the statutory mandate and the Act that confers it, the appointment and removal process and whether removal can be arbitrary, the funding source and whether the regulated entity or the ministry controls it, the rule-making process including pre-consultation, a published response to comments and any impact appraisal, enforcement due process covering notice, hearing, a reasoned order, proportionate penalty and absence of bias, and finally review and reporting through an appellate route and legislative reporting.

Answer: C. Explanation: A regulator's statute may grant strong formal independence through fixed tenure and removal only for cause while its actual independence is weaker because of budgetary dependence on the ministry, informal pressure on appointments or a revolving-door relationship with the regulated industry, and the gap between the formal grant and the working reality is the standard analytical wedge for evaluating any specific regulator. The remaining options belong to different chronology, actor or analytical categories.

Q20. Which statement avoids a close-option trap about De jure against de facto independence?

A. The Competition Commission of India is the statutory competition regulator under the Competition Act, 2002, enforcing the prohibitions on anti-competitive agreements and on abuse of dominant position and reviewing combinations, with appeals lying to the National Company Law Appellate Tribunal and thereafter to the Supreme Court; its own official website, read on 2 September 2026, states that its purpose is to promote and sustain an enabling competition culture through engagement and enforcement that would inspire businesses to be fair, competitive and innovative, enhance consumer welfare and support economic growth. B. Any regulator, including an unfamiliar or entirely novel one, can be assessed on six tests, namely the statutory mandate and the Act that confers it, the appointment and removal process and whether removal can be arbitrary, the funding source and whether the regulated entity or the ministry controls it, the rule-making process including pre-consultation, a published response to comments and any impact appraisal, enforcement due process covering notice, hearing, a reasoned order, proportionate penalty and absence of bias, and finally review and reporting through an appellate route and legislative reporting. C. A regulator's legitimacy rests on process rather than on independence asserted in its statute, because pre-consultation, published responses, reasoned orders and effective appellate review are what make unelected rule-making defensible, and a regulator that fails the rule-making and due-process tests is not made legitimate by passing the mandate, appointment and funding tests; regulatory impact assessment is the main available ex-ante discipline on rule-making quality and is unevenly institutionalised in India rather than a uniformly binding requirement. D. A regulator's statute may grant strong formal independence through fixed tenure and removal only for cause while its actual independence is weaker because of budgetary dependence on the ministry, informal pressure on appointments or a revolving-door relationship with the regulated industry, and the gap between the formal grant and the working reality is the standard analytical wedge for evaluating any specific regulator.

Answer: D. Explanation: A regulator's statute may grant strong formal independence through fixed tenure and removal only for cause while its actual independence is weaker because of budgetary dependence on the ministry, informal pressure on appointments or a revolving-door relationship with the regulated industry, and the gap between the formal grant and the working reality is the standard analytical wedge for evaluating any specific regulator. The remaining options belong to different chronology, actor or analytical categories.

Q21. Which statement correctly identifies The independence spectrum as the analytical question?

A. No Indian regulator sits at either extreme of a spectrum running from a ministry-controlled department at one end to fixed tenure, own funding, removal only for cause and technical composition at the other; each statute places its regulator somewhere on that spectrum, and locating a named regulator on it using its specific design features is a better comparison method than treating regulatory independence as a single yes-or-no property. B. Capture is the situation in which a regulator comes over time to serve the interest of the industry it regulates rather than the public interest, and it usually operates lawfully through information asymmetry because the industry knows the sector better, through dependence on industry data, expertise and personnel, through a revolving door and industry-funded research, and finally through agenda and framing capture in which the regulator adopts the industry's own definition of the problem, so treating capture as a synonym for corruption misses every ordinary pathway by which it happens. C. Any regulator, including an unfamiliar or entirely novel one, can be assessed on six tests, namely the statutory mandate and the Act that confers it, the appointment and removal process and whether removal can be arbitrary, the funding source and whether the regulated entity or the ministry controls it, the rule-making process including pre-consultation, a published response to comments and any impact appraisal, enforcement due process covering notice, hearing, a reasoned order, proportionate penalty and absence of bias, and finally review and reporting through an appellate route and legislative reporting. D. An under-independent regulator captured by the parent ministry rather than by the industry produces politically timed decisions and suppressed tariffs, so a balanced answer names both directions of failure, and the correctives against industry capture are procedural rather than exhortatory, namely mandatory consultation with published responses, reasoned orders, cooling-off periods, in-house technical capacity, user representation in consultation, appellate review, parliamentary reporting and conflict-of-interest disclosure.

Answer: A. Explanation: No Indian regulator sits at either extreme of a spectrum running from a ministry-controlled department at one end to fixed tenure, own funding, removal only for cause and technical composition at the other; each statute places its regulator somewhere on that spectrum, and locating a named regulator on it using its specific design features is a better comparison method than treating regulatory independence as a single yes-or-no property. The remaining options belong to different chronology, actor or analytical categories.

Q22. Which chronology card should be filed under The independence spectrum as the analytical question?

A. A regulator's legitimacy rests on process rather than on independence asserted in its statute, because pre-consultation, published responses, reasoned orders and effective appellate review are what make unelected rule-making defensible, and a regulator that fails the rule-making and due-process tests is not made legitimate by passing the mandate, appointment and funding tests; regulatory impact assessment is the main available ex-ante discipline on rule-making quality and is unevenly institutionalised in India rather than a uniformly binding requirement. B. No Indian regulator sits at either extreme of a spectrum running from a ministry-controlled department at one end to fixed tenure, own funding, removal only for cause and technical composition at the other; each statute places its regulator somewhere on that spectrum, and locating a named regulator on it using its specific design features is a better comparison method than treating regulatory independence as a single yes-or-no property. C. Any regulator, including an unfamiliar or entirely novel one, can be assessed on six tests, namely the statutory mandate and the Act that confers it, the appointment and removal process and whether removal can be arbitrary, the funding source and whether the regulated entity or the ministry controls it, the rule-making process including pre-consultation, a published response to comments and any impact appraisal, enforcement due process covering notice, hearing, a reasoned order, proportionate penalty and absence of bias, and finally review and reporting through an appellate route and legislative reporting. D. An under-independent regulator captured by the parent ministry rather than by the industry produces politically timed decisions and suppressed tariffs, so a balanced answer names both directions of failure, and the correctives against industry capture are procedural rather than exhortatory, namely mandatory consultation with published responses, reasoned orders, cooling-off periods, in-house technical capacity, user representation in consultation, appellate review, parliamentary reporting and conflict-of-interest disclosure.

Answer: B. Explanation: No Indian regulator sits at either extreme of a spectrum running from a ministry-controlled department at one end to fixed tenure, own funding, removal only for cause and technical composition at the other; each statute places its regulator somewhere on that spectrum, and locating a named regulator on it using its specific design features is a better comparison method than treating regulatory independence as a single yes-or-no property. The remaining options belong to different chronology, actor or analytical categories.

Q23. Which option preserves the source-bounded meaning of The independence spectrum as the analytical question?

A. Any regulator, including an unfamiliar or entirely novel one, can be assessed on six tests, namely the statutory mandate and the Act that confers it, the appointment and removal process and whether removal can be arbitrary, the funding source and whether the regulated entity or the ministry controls it, the rule-making process including pre-consultation, a published response to comments and any impact appraisal, enforcement due process covering notice, hearing, a reasoned order, proportionate penalty and absence of bias, and finally review and reporting through an appellate route and legislative reporting. B. A regulator's legitimacy rests on process rather than on independence asserted in its statute, because pre-consultation, published responses, reasoned orders and effective appellate review are what make unelected rule-making defensible, and a regulator that fails the rule-making and due-process tests is not made legitimate by passing the mandate, appointment and funding tests; regulatory impact assessment is the main available ex-ante discipline on rule-making quality and is unevenly institutionalised in India rather than a uniformly binding requirement. C. No Indian regulator sits at either extreme of a spectrum running from a ministry-controlled department at one end to fixed tenure, own funding, removal only for cause and technical composition at the other; each statute places its regulator somewhere on that spectrum, and locating a named regulator on it using its specific design features is a better comparison method than treating regulatory independence as a single yes-or-no property. D. The Competition Commission of India is the statutory competition regulator under the Competition Act, 2002, enforcing the prohibitions on anti-competitive agreements and on abuse of dominant position and reviewing combinations, with appeals lying to the National Company Law Appellate Tribunal and thereafter to the Supreme Court; its own official website, read on 2 September 2026, states that its purpose is to promote and sustain an enabling competition culture through engagement and enforcement that would inspire businesses to be fair, competitive and innovative, enhance consumer welfare and support economic growth.

Answer: C. Explanation: No Indian regulator sits at either extreme of a spectrum running from a ministry-controlled department at one end to fixed tenure, own funding, removal only for cause and technical composition at the other; each statute places its regulator somewhere on that spectrum, and locating a named regulator on it using its specific design features is a better comparison method than treating regulatory independence as a single yes-or-no property. The remaining options belong to different chronology, actor or analytical categories.

Q24. Which statement avoids a close-option trap about The independence spectrum as the analytical question?

A. The Competition Commission of India is the statutory competition regulator under the Competition Act, 2002, enforcing the prohibitions on anti-competitive agreements and on abuse of dominant position and reviewing combinations, with appeals lying to the National Company Law Appellate Tribunal and thereafter to the Supreme Court; its own official website, read on 2 September 2026, states that its purpose is to promote and sustain an enabling competition culture through engagement and enforcement that would inspire businesses to be fair, competitive and innovative, enhance consumer welfare and support economic growth. B. The conceptual foundation that separates a governance answer from a company-law answer is that dominance itself is not unlawful and only its abuse is, because competition law protects the competitive process rather than individual competitors and its object is consumer welfare and market access, and abuse takes identifiable forms including predatory or unfair pricing, unfair or discriminatory conditions, limiting production or technical development, denial of market access, tying and bundling, and leveraging dominance in one market to enter or protect another. C. A regulator's legitimacy rests on process rather than on independence asserted in its statute, because pre-consultation, published responses, reasoned orders and effective appellate review are what make unelected rule-making defensible, and a regulator that fails the rule-making and due-process tests is not made legitimate by passing the mandate, appointment and funding tests; regulatory impact assessment is the main available ex-ante discipline on rule-making quality and is unevenly institutionalised in India rather than a uniformly binding requirement. D. No Indian regulator sits at either extreme of a spectrum running from a ministry-controlled department at one end to fixed tenure, own funding, removal only for cause and technical composition at the other; each statute places its regulator somewhere on that spectrum, and locating a named regulator on it using its specific design features is a better comparison method than treating regulatory independence as a single yes-or-no property.

Answer: D. Explanation: No Indian regulator sits at either extreme of a spectrum running from a ministry-controlled department at one end to fixed tenure, own funding, removal only for cause and technical composition at the other; each statute places its regulator somewhere on that spectrum, and locating a named regulator on it using its specific design features is a better comparison method than treating regulatory independence as a single yes-or-no property. The remaining options belong to different chronology, actor or analytical categories.

Q25. Which statement correctly identifies Regulatory capture without any illegal transaction?

A. Capture is the situation in which a regulator comes over time to serve the interest of the industry it regulates rather than the public interest, and it usually operates lawfully through information asymmetry because the industry knows the sector better, through dependence on industry data, expertise and personnel, through a revolving door and industry-funded research, and finally through agenda and framing capture in which the regulator adopts the industry's own definition of the problem, so treating capture as a synonym for corruption misses every ordinary pathway by which it happens. B. Any regulator, including an unfamiliar or entirely novel one, can be assessed on six tests, namely the statutory mandate and the Act that confers it, the appointment and removal process and whether removal can be arbitrary, the funding source and whether the regulated entity or the ministry controls it, the rule-making process including pre-consultation, a published response to comments and any impact appraisal, enforcement due process covering notice, hearing, a reasoned order, proportionate penalty and absence of bias, and finally review and reporting through an appellate route and legislative reporting. C. A regulator's legitimacy rests on process rather than on independence asserted in its statute, because pre-consultation, published responses, reasoned orders and effective appellate review are what make unelected rule-making defensible, and a regulator that fails the rule-making and due-process tests is not made legitimate by passing the mandate, appointment and funding tests; regulatory impact assessment is the main available ex-ante discipline on rule-making quality and is unevenly institutionalised in India rather than a uniformly binding requirement. D. An under-independent regulator captured by the parent ministry rather than by the industry produces politically timed decisions and suppressed tariffs, so a balanced answer names both directions of failure, and the correctives against industry capture are procedural rather than exhortatory, namely mandatory consultation with published responses, reasoned orders, cooling-off periods, in-house technical capacity, user representation in consultation, appellate review, parliamentary reporting and conflict-of-interest disclosure.

Answer: A. Explanation: Capture is the situation in which a regulator comes over time to serve the interest of the industry it regulates rather than the public interest, and it usually operates lawfully through information asymmetry because the industry knows the sector better, through dependence on industry data, expertise and personnel, through a revolving door and industry-funded research, and finally through agenda and framing capture in which the regulator adopts the industry's own definition of the problem, so treating capture as a synonym for corruption misses every ordinary pathway by which it happens. The remaining options belong to different chronology, actor or analytical categories.

Q26. Which chronology card should be filed under Regulatory capture without any illegal transaction?

A. A regulator's legitimacy rests on process rather than on independence asserted in its statute, because pre-consultation, published responses, reasoned orders and effective appellate review are what make unelected rule-making defensible, and a regulator that fails the rule-making and due-process tests is not made legitimate by passing the mandate, appointment and funding tests; regulatory impact assessment is the main available ex-ante discipline on rule-making quality and is unevenly institutionalised in India rather than a uniformly binding requirement. B. Capture is the situation in which a regulator comes over time to serve the interest of the industry it regulates rather than the public interest, and it usually operates lawfully through information asymmetry because the industry knows the sector better, through dependence on industry data, expertise and personnel, through a revolving door and industry-funded research, and finally through agenda and framing capture in which the regulator adopts the industry's own definition of the problem, so treating capture as a synonym for corruption misses every ordinary pathway by which it happens. C. The Competition Commission of India is the statutory competition regulator under the Competition Act, 2002, enforcing the prohibitions on anti-competitive agreements and on abuse of dominant position and reviewing combinations, with appeals lying to the National Company Law Appellate Tribunal and thereafter to the Supreme Court; its own official website, read on 2 September 2026, states that its purpose is to promote and sustain an enabling competition culture through engagement and enforcement that would inspire businesses to be fair, competitive and innovative, enhance consumer welfare and support economic growth. D. Any regulator, including an unfamiliar or entirely novel one, can be assessed on six tests, namely the statutory mandate and the Act that confers it, the appointment and removal process and whether removal can be arbitrary, the funding source and whether the regulated entity or the ministry controls it, the rule-making process including pre-consultation, a published response to comments and any impact appraisal, enforcement due process covering notice, hearing, a reasoned order, proportionate penalty and absence of bias, and finally review and reporting through an appellate route and legislative reporting.

Answer: B. Explanation: Capture is the situation in which a regulator comes over time to serve the interest of the industry it regulates rather than the public interest, and it usually operates lawfully through information asymmetry because the industry knows the sector better, through dependence on industry data, expertise and personnel, through a revolving door and industry-funded research, and finally through agenda and framing capture in which the regulator adopts the industry's own definition of the problem, so treating capture as a synonym for corruption misses every ordinary pathway by which it happens. The remaining options belong to different chronology, actor or analytical categories.

Q27. Which option preserves the source-bounded meaning of Regulatory capture without any illegal transaction?

A. A regulator's legitimacy rests on process rather than on independence asserted in its statute, because pre-consultation, published responses, reasoned orders and effective appellate review are what make unelected rule-making defensible, and a regulator that fails the rule-making and due-process tests is not made legitimate by passing the mandate, appointment and funding tests; regulatory impact assessment is the main available ex-ante discipline on rule-making quality and is unevenly institutionalised in India rather than a uniformly binding requirement. B. The conceptual foundation that separates a governance answer from a company-law answer is that dominance itself is not unlawful and only its abuse is, because competition law protects the competitive process rather than individual competitors and its object is consumer welfare and market access, and abuse takes identifiable forms including predatory or unfair pricing, unfair or discriminatory conditions, limiting production or technical development, denial of market access, tying and bundling, and leveraging dominance in one market to enter or protect another. C. Capture is the situation in which a regulator comes over time to serve the interest of the industry it regulates rather than the public interest, and it usually operates lawfully through information asymmetry because the industry knows the sector better, through dependence on industry data, expertise and personnel, through a revolving door and industry-funded research, and finally through agenda and framing capture in which the regulator adopts the industry's own definition of the problem, so treating capture as a synonym for corruption misses every ordinary pathway by which it happens. D. The Competition Commission of India is the statutory competition regulator under the Competition Act, 2002, enforcing the prohibitions on anti-competitive agreements and on abuse of dominant position and reviewing combinations, with appeals lying to the National Company Law Appellate Tribunal and thereafter to the Supreme Court; its own official website, read on 2 September 2026, states that its purpose is to promote and sustain an enabling competition culture through engagement and enforcement that would inspire businesses to be fair, competitive and innovative, enhance consumer welfare and support economic growth.

Answer: C. Explanation: Capture is the situation in which a regulator comes over time to serve the interest of the industry it regulates rather than the public interest, and it usually operates lawfully through information asymmetry because the industry knows the sector better, through dependence on industry data, expertise and personnel, through a revolving door and industry-funded research, and finally through agenda and framing capture in which the regulator adopts the industry's own definition of the problem, so treating capture as a synonym for corruption misses every ordinary pathway by which it happens. The remaining options belong to different chronology, actor or analytical categories.

Q28. Which statement avoids a close-option trap about Regulatory capture without any illegal transaction?

A. The conceptual foundation that separates a governance answer from a company-law answer is that dominance itself is not unlawful and only its abuse is, because competition law protects the competitive process rather than individual competitors and its object is consumer welfare and market access, and abuse takes identifiable forms including predatory or unfair pricing, unfair or discriminatory conditions, limiting production or technical development, denial of market access, tying and bundling, and leveraging dominance in one market to enter or protect another. B. The competition regulator is an economy-wide, ex-post and conduct-based regulator that complements sector regulators acting ex-ante on licences and tariffs, so the overlap between them is a genuine jurisdictional question rather than an oversight, and the limitations that carry the analytical marks are that proving dominance requires a contested and slow market definition, that digital markets with network effects, zero-price services and data advantages are handled poorly by a turnover-based framework, that remedies arrive after the market structure has already shifted, and that enforcement outcomes are frequently suspended in appeal. C. The Competition Commission of India is the statutory competition regulator under the Competition Act, 2002, enforcing the prohibitions on anti-competitive agreements and on abuse of dominant position and reviewing combinations, with appeals lying to the National Company Law Appellate Tribunal and thereafter to the Supreme Court; its own official website, read on 2 September 2026, states that its purpose is to promote and sustain an enabling competition culture through engagement and enforcement that would inspire businesses to be fair, competitive and innovative, enhance consumer welfare and support economic growth. D. Capture is the situation in which a regulator comes over time to serve the interest of the industry it regulates rather than the public interest, and it usually operates lawfully through information asymmetry because the industry knows the sector better, through dependence on industry data, expertise and personnel, through a revolving door and industry-funded research, and finally through agenda and framing capture in which the regulator adopts the industry's own definition of the problem, so treating capture as a synonym for corruption misses every ordinary pathway by which it happens.

Answer: D. Explanation: Capture is the situation in which a regulator comes over time to serve the interest of the industry it regulates rather than the public interest, and it usually operates lawfully through information asymmetry because the industry knows the sector better, through dependence on industry data, expertise and personnel, through a revolving door and industry-funded research, and finally through agenda and framing capture in which the regulator adopts the industry's own definition of the problem, so treating capture as a synonym for corruption misses every ordinary pathway by which it happens. The remaining options belong to different chronology, actor or analytical categories.

Q29. Which statement correctly identifies The opposite failure of ministerial capture?

A. An under-independent regulator captured by the parent ministry rather than by the industry produces politically timed decisions and suppressed tariffs, so a balanced answer names both directions of failure, and the correctives against industry capture are procedural rather than exhortatory, namely mandatory consultation with published responses, reasoned orders, cooling-off periods, in-house technical capacity, user representation in consultation, appellate review, parliamentary reporting and conflict-of-interest disclosure. B. A regulator's legitimacy rests on process rather than on independence asserted in its statute, because pre-consultation, published responses, reasoned orders and effective appellate review are what make unelected rule-making defensible, and a regulator that fails the rule-making and due-process tests is not made legitimate by passing the mandate, appointment and funding tests; regulatory impact assessment is the main available ex-ante discipline on rule-making quality and is unevenly institutionalised in India rather than a uniformly binding requirement. C. The Competition Commission of India is the statutory competition regulator under the Competition Act, 2002, enforcing the prohibitions on anti-competitive agreements and on abuse of dominant position and reviewing combinations, with appeals lying to the National Company Law Appellate Tribunal and thereafter to the Supreme Court; its own official website, read on 2 September 2026, states that its purpose is to promote and sustain an enabling competition culture through engagement and enforcement that would inspire businesses to be fair, competitive and innovative, enhance consumer welfare and support economic growth. D. Any regulator, including an unfamiliar or entirely novel one, can be assessed on six tests, namely the statutory mandate and the Act that confers it, the appointment and removal process and whether removal can be arbitrary, the funding source and whether the regulated entity or the ministry controls it, the rule-making process including pre-consultation, a published response to comments and any impact appraisal, enforcement due process covering notice, hearing, a reasoned order, proportionate penalty and absence of bias, and finally review and reporting through an appellate route and legislative reporting.

Answer: A. Explanation: An under-independent regulator captured by the parent ministry rather than by the industry produces politically timed decisions and suppressed tariffs, so a balanced answer names both directions of failure, and the correctives against industry capture are procedural rather than exhortatory, namely mandatory consultation with published responses, reasoned orders, cooling-off periods, in-house technical capacity, user representation in consultation, appellate review, parliamentary reporting and conflict-of-interest disclosure. The remaining options belong to different chronology, actor or analytical categories.

Q30. Which chronology card should be filed under The opposite failure of ministerial capture?

A. The Competition Commission of India is the statutory competition regulator under the Competition Act, 2002, enforcing the prohibitions on anti-competitive agreements and on abuse of dominant position and reviewing combinations, with appeals lying to the National Company Law Appellate Tribunal and thereafter to the Supreme Court; its own official website, read on 2 September 2026, states that its purpose is to promote and sustain an enabling competition culture through engagement and enforcement that would inspire businesses to be fair, competitive and innovative, enhance consumer welfare and support economic growth. B. An under-independent regulator captured by the parent ministry rather than by the industry produces politically timed decisions and suppressed tariffs, so a balanced answer names both directions of failure, and the correctives against industry capture are procedural rather than exhortatory, namely mandatory consultation with published responses, reasoned orders, cooling-off periods, in-house technical capacity, user representation in consultation, appellate review, parliamentary reporting and conflict-of-interest disclosure. C. The conceptual foundation that separates a governance answer from a company-law answer is that dominance itself is not unlawful and only its abuse is, because competition law protects the competitive process rather than individual competitors and its object is consumer welfare and market access, and abuse takes identifiable forms including predatory or unfair pricing, unfair or discriminatory conditions, limiting production or technical development, denial of market access, tying and bundling, and leveraging dominance in one market to enter or protect another. D. A regulator's legitimacy rests on process rather than on independence asserted in its statute, because pre-consultation, published responses, reasoned orders and effective appellate review are what make unelected rule-making defensible, and a regulator that fails the rule-making and due-process tests is not made legitimate by passing the mandate, appointment and funding tests; regulatory impact assessment is the main available ex-ante discipline on rule-making quality and is unevenly institutionalised in India rather than a uniformly binding requirement.

Answer: B. Explanation: An under-independent regulator captured by the parent ministry rather than by the industry produces politically timed decisions and suppressed tariffs, so a balanced answer names both directions of failure, and the correctives against industry capture are procedural rather than exhortatory, namely mandatory consultation with published responses, reasoned orders, cooling-off periods, in-house technical capacity, user representation in consultation, appellate review, parliamentary reporting and conflict-of-interest disclosure. The remaining options belong to different chronology, actor or analytical categories.

Q31. Which option preserves the source-bounded meaning of The opposite failure of ministerial capture?

A. The competition regulator is an economy-wide, ex-post and conduct-based regulator that complements sector regulators acting ex-ante on licences and tariffs, so the overlap between them is a genuine jurisdictional question rather than an oversight, and the limitations that carry the analytical marks are that proving dominance requires a contested and slow market definition, that digital markets with network effects, zero-price services and data advantages are handled poorly by a turnover-based framework, that remedies arrive after the market structure has already shifted, and that enforcement outcomes are frequently suspended in appeal. B. The conceptual foundation that separates a governance answer from a company-law answer is that dominance itself is not unlawful and only its abuse is, because competition law protects the competitive process rather than individual competitors and its object is consumer welfare and market access, and abuse takes identifiable forms including predatory or unfair pricing, unfair or discriminatory conditions, limiting production or technical development, denial of market access, tying and bundling, and leveraging dominance in one market to enter or protect another. C. An under-independent regulator captured by the parent ministry rather than by the industry produces politically timed decisions and suppressed tariffs, so a balanced answer names both directions of failure, and the correctives against industry capture are procedural rather than exhortatory, namely mandatory consultation with published responses, reasoned orders, cooling-off periods, in-house technical capacity, user representation in consultation, appellate review, parliamentary reporting and conflict-of-interest disclosure. D. The Competition Commission of India is the statutory competition regulator under the Competition Act, 2002, enforcing the prohibitions on anti-competitive agreements and on abuse of dominant position and reviewing combinations, with appeals lying to the National Company Law Appellate Tribunal and thereafter to the Supreme Court; its own official website, read on 2 September 2026, states that its purpose is to promote and sustain an enabling competition culture through engagement and enforcement that would inspire businesses to be fair, competitive and innovative, enhance consumer welfare and support economic growth.

Answer: C. Explanation: An under-independent regulator captured by the parent ministry rather than by the industry produces politically timed decisions and suppressed tariffs, so a balanced answer names both directions of failure, and the correctives against industry capture are procedural rather than exhortatory, namely mandatory consultation with published responses, reasoned orders, cooling-off periods, in-house technical capacity, user representation in consultation, appellate review, parliamentary reporting and conflict-of-interest disclosure. The remaining options belong to different chronology, actor or analytical categories.

Q32. Which statement avoids a close-option trap about The opposite failure of ministerial capture?

A. The competition regulator is an economy-wide, ex-post and conduct-based regulator that complements sector regulators acting ex-ante on licences and tariffs, so the overlap between them is a genuine jurisdictional question rather than an oversight, and the limitations that carry the analytical marks are that proving dominance requires a contested and slow market definition, that digital markets with network effects, zero-price services and data advantages are handled poorly by a turnover-based framework, that remedies arrive after the market structure has already shifted, and that enforcement outcomes are frequently suspended in appeal. B. Tribunalisation is the proliferation of specialised quasi-judicial bodies to adjudicate disputes in specific regulatory or technical domains, justified by technical expertise unavailable in generalist courts and by speed with reduced court backlog, and carrying the twin risks of eroding the procedural safeguards associated with the ordinary court system and of proliferating without adequate independence safeguards, which is why disputes from a regulator's licensing denial or penalty order usually lie to a specified tribunal rather than directly to a civil court. C. The conceptual foundation that separates a governance answer from a company-law answer is that dominance itself is not unlawful and only its abuse is, because competition law protects the competitive process rather than individual competitors and its object is consumer welfare and market access, and abuse takes identifiable forms including predatory or unfair pricing, unfair or discriminatory conditions, limiting production or technical development, denial of market access, tying and bundling, and leveraging dominance in one market to enter or protect another. D. An under-independent regulator captured by the parent ministry rather than by the industry produces politically timed decisions and suppressed tariffs, so a balanced answer names both directions of failure, and the correctives against industry capture are procedural rather than exhortatory, namely mandatory consultation with published responses, reasoned orders, cooling-off periods, in-house technical capacity, user representation in consultation, appellate review, parliamentary reporting and conflict-of-interest disclosure.

Answer: D. Explanation: An under-independent regulator captured by the parent ministry rather than by the industry produces politically timed decisions and suppressed tariffs, so a balanced answer names both directions of failure, and the correctives against industry capture are procedural rather than exhortatory, namely mandatory consultation with published responses, reasoned orders, cooling-off periods, in-house technical capacity, user representation in consultation, appellate review, parliamentary reporting and conflict-of-interest disclosure. The remaining options belong to different chronology, actor or analytical categories.

Q33. Which statement correctly identifies The six-test regulator design checklist?

A. Any regulator, including an unfamiliar or entirely novel one, can be assessed on six tests, namely the statutory mandate and the Act that confers it, the appointment and removal process and whether removal can be arbitrary, the funding source and whether the regulated entity or the ministry controls it, the rule-making process including pre-consultation, a published response to comments and any impact appraisal, enforcement due process covering notice, hearing, a reasoned order, proportionate penalty and absence of bias, and finally review and reporting through an appellate route and legislative reporting. B. A regulator's legitimacy rests on process rather than on independence asserted in its statute, because pre-consultation, published responses, reasoned orders and effective appellate review are what make unelected rule-making defensible, and a regulator that fails the rule-making and due-process tests is not made legitimate by passing the mandate, appointment and funding tests; regulatory impact assessment is the main available ex-ante discipline on rule-making quality and is unevenly institutionalised in India rather than a uniformly binding requirement. C. The Competition Commission of India is the statutory competition regulator under the Competition Act, 2002, enforcing the prohibitions on anti-competitive agreements and on abuse of dominant position and reviewing combinations, with appeals lying to the National Company Law Appellate Tribunal and thereafter to the Supreme Court; its own official website, read on 2 September 2026, states that its purpose is to promote and sustain an enabling competition culture through engagement and enforcement that would inspire businesses to be fair, competitive and innovative, enhance consumer welfare and support economic growth. D. The conceptual foundation that separates a governance answer from a company-law answer is that dominance itself is not unlawful and only its abuse is, because competition law protects the competitive process rather than individual competitors and its object is consumer welfare and market access, and abuse takes identifiable forms including predatory or unfair pricing, unfair or discriminatory conditions, limiting production or technical development, denial of market access, tying and bundling, and leveraging dominance in one market to enter or protect another.

Answer: A. Explanation: Any regulator, including an unfamiliar or entirely novel one, can be assessed on six tests, namely the statutory mandate and the Act that confers it, the appointment and removal process and whether removal can be arbitrary, the funding source and whether the regulated entity or the ministry controls it, the rule-making process including pre-consultation, a published response to comments and any impact appraisal, enforcement due process covering notice, hearing, a reasoned order, proportionate penalty and absence of bias, and finally review and reporting through an appellate route and legislative reporting. The remaining options belong to different chronology, actor or analytical categories.

Q34. Which chronology card should be filed under The six-test regulator design checklist?

A. The conceptual foundation that separates a governance answer from a company-law answer is that dominance itself is not unlawful and only its abuse is, because competition law protects the competitive process rather than individual competitors and its object is consumer welfare and market access, and abuse takes identifiable forms including predatory or unfair pricing, unfair or discriminatory conditions, limiting production or technical development, denial of market access, tying and bundling, and leveraging dominance in one market to enter or protect another. B. Any regulator, including an unfamiliar or entirely novel one, can be assessed on six tests, namely the statutory mandate and the Act that confers it, the appointment and removal process and whether removal can be arbitrary, the funding source and whether the regulated entity or the ministry controls it, the rule-making process including pre-consultation, a published response to comments and any impact appraisal, enforcement due process covering notice, hearing, a reasoned order, proportionate penalty and absence of bias, and finally review and reporting through an appellate route and legislative reporting. C. The competition regulator is an economy-wide, ex-post and conduct-based regulator that complements sector regulators acting ex-ante on licences and tariffs, so the overlap between them is a genuine jurisdictional question rather than an oversight, and the limitations that carry the analytical marks are that proving dominance requires a contested and slow market definition, that digital markets with network effects, zero-price services and data advantages are handled poorly by a turnover-based framework, that remedies arrive after the market structure has already shifted, and that enforcement outcomes are frequently suspended in appeal. D. The Competition Commission of India is the statutory competition regulator under the Competition Act, 2002, enforcing the prohibitions on anti-competitive agreements and on abuse of dominant position and reviewing combinations, with appeals lying to the National Company Law Appellate Tribunal and thereafter to the Supreme Court; its own official website, read on 2 September 2026, states that its purpose is to promote and sustain an enabling competition culture through engagement and enforcement that would inspire businesses to be fair, competitive and innovative, enhance consumer welfare and support economic growth.

Answer: B. Explanation: Any regulator, including an unfamiliar or entirely novel one, can be assessed on six tests, namely the statutory mandate and the Act that confers it, the appointment and removal process and whether removal can be arbitrary, the funding source and whether the regulated entity or the ministry controls it, the rule-making process including pre-consultation, a published response to comments and any impact appraisal, enforcement due process covering notice, hearing, a reasoned order, proportionate penalty and absence of bias, and finally review and reporting through an appellate route and legislative reporting. The remaining options belong to different chronology, actor or analytical categories.

Q35. Which option preserves the source-bounded meaning of The six-test regulator design checklist?

A. The competition regulator is an economy-wide, ex-post and conduct-based regulator that complements sector regulators acting ex-ante on licences and tariffs, so the overlap between them is a genuine jurisdictional question rather than an oversight, and the limitations that carry the analytical marks are that proving dominance requires a contested and slow market definition, that digital markets with network effects, zero-price services and data advantages are handled poorly by a turnover-based framework, that remedies arrive after the market structure has already shifted, and that enforcement outcomes are frequently suspended in appeal. B. The conceptual foundation that separates a governance answer from a company-law answer is that dominance itself is not unlawful and only its abuse is, because competition law protects the competitive process rather than individual competitors and its object is consumer welfare and market access, and abuse takes identifiable forms including predatory or unfair pricing, unfair or discriminatory conditions, limiting production or technical development, denial of market access, tying and bundling, and leveraging dominance in one market to enter or protect another. C. Any regulator, including an unfamiliar or entirely novel one, can be assessed on six tests, namely the statutory mandate and the Act that confers it, the appointment and removal process and whether removal can be arbitrary, the funding source and whether the regulated entity or the ministry controls it, the rule-making process including pre-consultation, a published response to comments and any impact appraisal, enforcement due process covering notice, hearing, a reasoned order, proportionate penalty and absence of bias, and finally review and reporting through an appellate route and legislative reporting. D. Tribunalisation is the proliferation of specialised quasi-judicial bodies to adjudicate disputes in specific regulatory or technical domains, justified by technical expertise unavailable in generalist courts and by speed with reduced court backlog, and carrying the twin risks of eroding the procedural safeguards associated with the ordinary court system and of proliferating without adequate independence safeguards, which is why disputes from a regulator's licensing denial or penalty order usually lie to a specified tribunal rather than directly to a civil court.

Answer: C. Explanation: Any regulator, including an unfamiliar or entirely novel one, can be assessed on six tests, namely the statutory mandate and the Act that confers it, the appointment and removal process and whether removal can be arbitrary, the funding source and whether the regulated entity or the ministry controls it, the rule-making process including pre-consultation, a published response to comments and any impact appraisal, enforcement due process covering notice, hearing, a reasoned order, proportionate penalty and absence of bias, and finally review and reporting through an appellate route and legislative reporting. The remaining options belong to different chronology, actor or analytical categories.

Q36. Which statement avoids a close-option trap about The six-test regulator design checklist?

A. Tribunalisation is the proliferation of specialised quasi-judicial bodies to adjudicate disputes in specific regulatory or technical domains, justified by technical expertise unavailable in generalist courts and by speed with reduced court backlog, and carrying the twin risks of eroding the procedural safeguards associated with the ordinary court system and of proliferating without adequate independence safeguards, which is why disputes from a regulator's licensing denial or penalty order usually lie to a specified tribunal rather than directly to a civil court. B. The Tribunals Reforms Act, 2021 abolished a specific named set of appellate tribunals and authorities, including bodies under the Cinematograph Act, 1952, the Trade Marks Act, 1999, the Copyright Act, 1957 and certain Customs Act and Airports Authority of India Act appellate bodies, transferring their functions mainly to High Courts while prescribing appointment and service conditions for the tribunals that remain, and it did not abolish all tribunals in India, which is the standard misstatement in this area. C. The competition regulator is an economy-wide, ex-post and conduct-based regulator that complements sector regulators acting ex-ante on licences and tariffs, so the overlap between them is a genuine jurisdictional question rather than an oversight, and the limitations that carry the analytical marks are that proving dominance requires a contested and slow market definition, that digital markets with network effects, zero-price services and data advantages are handled poorly by a turnover-based framework, that remedies arrive after the market structure has already shifted, and that enforcement outcomes are frequently suspended in appeal. D. Any regulator, including an unfamiliar or entirely novel one, can be assessed on six tests, namely the statutory mandate and the Act that confers it, the appointment and removal process and whether removal can be arbitrary, the funding source and whether the regulated entity or the ministry controls it, the rule-making process including pre-consultation, a published response to comments and any impact appraisal, enforcement due process covering notice, hearing, a reasoned order, proportionate penalty and absence of bias, and finally review and reporting through an appellate route and legislative reporting.

Answer: D. Explanation: Any regulator, including an unfamiliar or entirely novel one, can be assessed on six tests, namely the statutory mandate and the Act that confers it, the appointment and removal process and whether removal can be arbitrary, the funding source and whether the regulated entity or the ministry controls it, the rule-making process including pre-consultation, a published response to comments and any impact appraisal, enforcement due process covering notice, hearing, a reasoned order, proportionate penalty and absence of bias, and finally review and reporting through an appellate route and legislative reporting. The remaining options belong to different chronology, actor or analytical categories.

Q37. Which statement correctly identifies Process legitimacy and regulatory impact assessment?

A. A regulator's legitimacy rests on process rather than on independence asserted in its statute, because pre-consultation, published responses, reasoned orders and effective appellate review are what make unelected rule-making defensible, and a regulator that fails the rule-making and due-process tests is not made legitimate by passing the mandate, appointment and funding tests; regulatory impact assessment is the main available ex-ante discipline on rule-making quality and is unevenly institutionalised in India rather than a uniformly binding requirement. B. The Competition Commission of India is the statutory competition regulator under the Competition Act, 2002, enforcing the prohibitions on anti-competitive agreements and on abuse of dominant position and reviewing combinations, with appeals lying to the National Company Law Appellate Tribunal and thereafter to the Supreme Court; its own official website, read on 2 September 2026, states that its purpose is to promote and sustain an enabling competition culture through engagement and enforcement that would inspire businesses to be fair, competitive and innovative, enhance consumer welfare and support economic growth. C. The conceptual foundation that separates a governance answer from a company-law answer is that dominance itself is not unlawful and only its abuse is, because competition law protects the competitive process rather than individual competitors and its object is consumer welfare and market access, and abuse takes identifiable forms including predatory or unfair pricing, unfair or discriminatory conditions, limiting production or technical development, denial of market access, tying and bundling, and leveraging dominance in one market to enter or protect another. D. The competition regulator is an economy-wide, ex-post and conduct-based regulator that complements sector regulators acting ex-ante on licences and tariffs, so the overlap between them is a genuine jurisdictional question rather than an oversight, and the limitations that carry the analytical marks are that proving dominance requires a contested and slow market definition, that digital markets with network effects, zero-price services and data advantages are handled poorly by a turnover-based framework, that remedies arrive after the market structure has already shifted, and that enforcement outcomes are frequently suspended in appeal.

Answer: A. Explanation: A regulator's legitimacy rests on process rather than on independence asserted in its statute, because pre-consultation, published responses, reasoned orders and effective appellate review are what make unelected rule-making defensible, and a regulator that fails the rule-making and due-process tests is not made legitimate by passing the mandate, appointment and funding tests; regulatory impact assessment is the main available ex-ante discipline on rule-making quality and is unevenly institutionalised in India rather than a uniformly binding requirement. The remaining options belong to different chronology, actor or analytical categories.

Q38. Which chronology card should be filed under Process legitimacy and regulatory impact assessment?

A. The competition regulator is an economy-wide, ex-post and conduct-based regulator that complements sector regulators acting ex-ante on licences and tariffs, so the overlap between them is a genuine jurisdictional question rather than an oversight, and the limitations that carry the analytical marks are that proving dominance requires a contested and slow market definition, that digital markets with network effects, zero-price services and data advantages are handled poorly by a turnover-based framework, that remedies arrive after the market structure has already shifted, and that enforcement outcomes are frequently suspended in appeal. B. A regulator's legitimacy rests on process rather than on independence asserted in its statute, because pre-consultation, published responses, reasoned orders and effective appellate review are what make unelected rule-making defensible, and a regulator that fails the rule-making and due-process tests is not made legitimate by passing the mandate, appointment and funding tests; regulatory impact assessment is the main available ex-ante discipline on rule-making quality and is unevenly institutionalised in India rather than a uniformly binding requirement. C. Tribunalisation is the proliferation of specialised quasi-judicial bodies to adjudicate disputes in specific regulatory or technical domains, justified by technical expertise unavailable in generalist courts and by speed with reduced court backlog, and carrying the twin risks of eroding the procedural safeguards associated with the ordinary court system and of proliferating without adequate independence safeguards, which is why disputes from a regulator's licensing denial or penalty order usually lie to a specified tribunal rather than directly to a civil court. D. The conceptual foundation that separates a governance answer from a company-law answer is that dominance itself is not unlawful and only its abuse is, because competition law protects the competitive process rather than individual competitors and its object is consumer welfare and market access, and abuse takes identifiable forms including predatory or unfair pricing, unfair or discriminatory conditions, limiting production or technical development, denial of market access, tying and bundling, and leveraging dominance in one market to enter or protect another.

Answer: B. Explanation: A regulator's legitimacy rests on process rather than on independence asserted in its statute, because pre-consultation, published responses, reasoned orders and effective appellate review are what make unelected rule-making defensible, and a regulator that fails the rule-making and due-process tests is not made legitimate by passing the mandate, appointment and funding tests; regulatory impact assessment is the main available ex-ante discipline on rule-making quality and is unevenly institutionalised in India rather than a uniformly binding requirement. The remaining options belong to different chronology, actor or analytical categories.

Q39. Which option preserves the source-bounded meaning of Process legitimacy and regulatory impact assessment?

A. The competition regulator is an economy-wide, ex-post and conduct-based regulator that complements sector regulators acting ex-ante on licences and tariffs, so the overlap between them is a genuine jurisdictional question rather than an oversight, and the limitations that carry the analytical marks are that proving dominance requires a contested and slow market definition, that digital markets with network effects, zero-price services and data advantages are handled poorly by a turnover-based framework, that remedies arrive after the market structure has already shifted, and that enforcement outcomes are frequently suspended in appeal. B. The Tribunals Reforms Act, 2021 abolished a specific named set of appellate tribunals and authorities, including bodies under the Cinematograph Act, 1952, the Trade Marks Act, 1999, the Copyright Act, 1957 and certain Customs Act and Airports Authority of India Act appellate bodies, transferring their functions mainly to High Courts while prescribing appointment and service conditions for the tribunals that remain, and it did not abolish all tribunals in India, which is the standard misstatement in this area. C. A regulator's legitimacy rests on process rather than on independence asserted in its statute, because pre-consultation, published responses, reasoned orders and effective appellate review are what make unelected rule-making defensible, and a regulator that fails the rule-making and due-process tests is not made legitimate by passing the mandate, appointment and funding tests; regulatory impact assessment is the main available ex-ante discipline on rule-making quality and is unevenly institutionalised in India rather than a uniformly binding requirement. D. Tribunalisation is the proliferation of specialised quasi-judicial bodies to adjudicate disputes in specific regulatory or technical domains, justified by technical expertise unavailable in generalist courts and by speed with reduced court backlog, and carrying the twin risks of eroding the procedural safeguards associated with the ordinary court system and of proliferating without adequate independence safeguards, which is why disputes from a regulator's licensing denial or penalty order usually lie to a specified tribunal rather than directly to a civil court.

Answer: C. Explanation: A regulator's legitimacy rests on process rather than on independence asserted in its statute, because pre-consultation, published responses, reasoned orders and effective appellate review are what make unelected rule-making defensible, and a regulator that fails the rule-making and due-process tests is not made legitimate by passing the mandate, appointment and funding tests; regulatory impact assessment is the main available ex-ante discipline on rule-making quality and is unevenly institutionalised in India rather than a uniformly binding requirement. The remaining options belong to different chronology, actor or analytical categories.

Q40. Which statement avoids a close-option trap about Process legitimacy and regulatory impact assessment?

A. In 2025 INSC 1330, delivered on 19 November 2025, the Supreme Court invalidated the re-enacted provisions covering the fifty-year minimum age, the two-name recommendation panel with a merely preferable appointment timeline, the four-year tenure and the impugned allowance framework as an impermissible legislative override that repeated defects already condemned in the earlier Madras Bar Association judgments, made those earlier standards controlling until constitutionally compliant legislation is enacted, and directed the Union Government to establish a National Tribunals Commission within four months. B. The Tribunals Reforms Act, 2021 abolished a specific named set of appellate tribunals and authorities, including bodies under the Cinematograph Act, 1952, the Trade Marks Act, 1999, the Copyright Act, 1957 and certain Customs Act and Airports Authority of India Act appellate bodies, transferring their functions mainly to High Courts while prescribing appointment and service conditions for the tribunals that remain, and it did not abolish all tribunals in India, which is the standard misstatement in this area. C. Tribunalisation is the proliferation of specialised quasi-judicial bodies to adjudicate disputes in specific regulatory or technical domains, justified by technical expertise unavailable in generalist courts and by speed with reduced court backlog, and carrying the twin risks of eroding the procedural safeguards associated with the ordinary court system and of proliferating without adequate independence safeguards, which is why disputes from a regulator's licensing denial or penalty order usually lie to a specified tribunal rather than directly to a civil court. D. A regulator's legitimacy rests on process rather than on independence asserted in its statute, because pre-consultation, published responses, reasoned orders and effective appellate review are what make unelected rule-making defensible, and a regulator that fails the rule-making and due-process tests is not made legitimate by passing the mandate, appointment and funding tests; regulatory impact assessment is the main available ex-ante discipline on rule-making quality and is unevenly institutionalised in India rather than a uniformly binding requirement.

Answer: D. Explanation: A regulator's legitimacy rests on process rather than on independence asserted in its statute, because pre-consultation, published responses, reasoned orders and effective appellate review are what make unelected rule-making defensible, and a regulator that fails the rule-making and due-process tests is not made legitimate by passing the mandate, appointment and funding tests; regulatory impact assessment is the main available ex-ante discipline on rule-making quality and is unevenly institutionalised in India rather than a uniformly binding requirement. The remaining options belong to different chronology, actor or analytical categories.

Q41. Which statement correctly identifies The competition regulator and its parent statute?

A. The Competition Commission of India is the statutory competition regulator under the Competition Act, 2002, enforcing the prohibitions on anti-competitive agreements and on abuse of dominant position and reviewing combinations, with appeals lying to the National Company Law Appellate Tribunal and thereafter to the Supreme Court; its own official website, read on 2 September 2026, states that its purpose is to promote and sustain an enabling competition culture through engagement and enforcement that would inspire businesses to be fair, competitive and innovative, enhance consumer welfare and support economic growth. B. The competition regulator is an economy-wide, ex-post and conduct-based regulator that complements sector regulators acting ex-ante on licences and tariffs, so the overlap between them is a genuine jurisdictional question rather than an oversight, and the limitations that carry the analytical marks are that proving dominance requires a contested and slow market definition, that digital markets with network effects, zero-price services and data advantages are handled poorly by a turnover-based framework, that remedies arrive after the market structure has already shifted, and that enforcement outcomes are frequently suspended in appeal. C. Tribunalisation is the proliferation of specialised quasi-judicial bodies to adjudicate disputes in specific regulatory or technical domains, justified by technical expertise unavailable in generalist courts and by speed with reduced court backlog, and carrying the twin risks of eroding the procedural safeguards associated with the ordinary court system and of proliferating without adequate independence safeguards, which is why disputes from a regulator's licensing denial or penalty order usually lie to a specified tribunal rather than directly to a civil court. D. The conceptual foundation that separates a governance answer from a company-law answer is that dominance itself is not unlawful and only its abuse is, because competition law protects the competitive process rather than individual competitors and its object is consumer welfare and market access, and abuse takes identifiable forms including predatory or unfair pricing, unfair or discriminatory conditions, limiting production or technical development, denial of market access, tying and bundling, and leveraging dominance in one market to enter or protect another.

Answer: A. Explanation: The Competition Commission of India is the statutory competition regulator under the Competition Act, 2002, enforcing the prohibitions on anti-competitive agreements and on abuse of dominant position and reviewing combinations, with appeals lying to the National Company Law Appellate Tribunal and thereafter to the Supreme Court; its own official website, read on 2 September 2026, states that its purpose is to promote and sustain an enabling competition culture through engagement and enforcement that would inspire businesses to be fair, competitive and innovative, enhance consumer welfare and support economic growth. The remaining options belong to different chronology, actor or analytical categories.

Q42. Which chronology card should be filed under The competition regulator and its parent statute?

A. Tribunalisation is the proliferation of specialised quasi-judicial bodies to adjudicate disputes in specific regulatory or technical domains, justified by technical expertise unavailable in generalist courts and by speed with reduced court backlog, and carrying the twin risks of eroding the procedural safeguards associated with the ordinary court system and of proliferating without adequate independence safeguards, which is why disputes from a regulator's licensing denial or penalty order usually lie to a specified tribunal rather than directly to a civil court. B. The Competition Commission of India is the statutory competition regulator under the Competition Act, 2002, enforcing the prohibitions on anti-competitive agreements and on abuse of dominant position and reviewing combinations, with appeals lying to the National Company Law Appellate Tribunal and thereafter to the Supreme Court; its own official website, read on 2 September 2026, states that its purpose is to promote and sustain an enabling competition culture through engagement and enforcement that would inspire businesses to be fair, competitive and innovative, enhance consumer welfare and support economic growth. C. The Tribunals Reforms Act, 2021 abolished a specific named set of appellate tribunals and authorities, including bodies under the Cinematograph Act, 1952, the Trade Marks Act, 1999, the Copyright Act, 1957 and certain Customs Act and Airports Authority of India Act appellate bodies, transferring their functions mainly to High Courts while prescribing appointment and service conditions for the tribunals that remain, and it did not abolish all tribunals in India, which is the standard misstatement in this area. D. The competition regulator is an economy-wide, ex-post and conduct-based regulator that complements sector regulators acting ex-ante on licences and tariffs, so the overlap between them is a genuine jurisdictional question rather than an oversight, and the limitations that carry the analytical marks are that proving dominance requires a contested and slow market definition, that digital markets with network effects, zero-price services and data advantages are handled poorly by a turnover-based framework, that remedies arrive after the market structure has already shifted, and that enforcement outcomes are frequently suspended in appeal.

Answer: B. Explanation: The Competition Commission of India is the statutory competition regulator under the Competition Act, 2002, enforcing the prohibitions on anti-competitive agreements and on abuse of dominant position and reviewing combinations, with appeals lying to the National Company Law Appellate Tribunal and thereafter to the Supreme Court; its own official website, read on 2 September 2026, states that its purpose is to promote and sustain an enabling competition culture through engagement and enforcement that would inspire businesses to be fair, competitive and innovative, enhance consumer welfare and support economic growth. The remaining options belong to different chronology, actor or analytical categories.

Q43. Which option preserves the source-bounded meaning of The competition regulator and its parent statute?

A. Tribunalisation is the proliferation of specialised quasi-judicial bodies to adjudicate disputes in specific regulatory or technical domains, justified by technical expertise unavailable in generalist courts and by speed with reduced court backlog, and carrying the twin risks of eroding the procedural safeguards associated with the ordinary court system and of proliferating without adequate independence safeguards, which is why disputes from a regulator's licensing denial or penalty order usually lie to a specified tribunal rather than directly to a civil court. B. In 2025 INSC 1330, delivered on 19 November 2025, the Supreme Court invalidated the re-enacted provisions covering the fifty-year minimum age, the two-name recommendation panel with a merely preferable appointment timeline, the four-year tenure and the impugned allowance framework as an impermissible legislative override that repeated defects already condemned in the earlier Madras Bar Association judgments, made those earlier standards controlling until constitutionally compliant legislation is enacted, and directed the Union Government to establish a National Tribunals Commission within four months. C. The Competition Commission of India is the statutory competition regulator under the Competition Act, 2002, enforcing the prohibitions on anti-competitive agreements and on abuse of dominant position and reviewing combinations, with appeals lying to the National Company Law Appellate Tribunal and thereafter to the Supreme Court; its own official website, read on 2 September 2026, states that its purpose is to promote and sustain an enabling competition culture through engagement and enforcement that would inspire businesses to be fair, competitive and innovative, enhance consumer welfare and support economic growth. D. The Tribunals Reforms Act, 2021 abolished a specific named set of appellate tribunals and authorities, including bodies under the Cinematograph Act, 1952, the Trade Marks Act, 1999, the Copyright Act, 1957 and certain Customs Act and Airports Authority of India Act appellate bodies, transferring their functions mainly to High Courts while prescribing appointment and service conditions for the tribunals that remain, and it did not abolish all tribunals in India, which is the standard misstatement in this area.

Answer: C. Explanation: The Competition Commission of India is the statutory competition regulator under the Competition Act, 2002, enforcing the prohibitions on anti-competitive agreements and on abuse of dominant position and reviewing combinations, with appeals lying to the National Company Law Appellate Tribunal and thereafter to the Supreme Court; its own official website, read on 2 September 2026, states that its purpose is to promote and sustain an enabling competition culture through engagement and enforcement that would inspire businesses to be fair, competitive and innovative, enhance consumer welfare and support economic growth. The remaining options belong to different chronology, actor or analytical categories.

Q44. Which statement avoids a close-option trap about The competition regulator and its parent statute?

A. In 2025 INSC 1330, delivered on 19 November 2025, the Supreme Court invalidated the re-enacted provisions covering the fifty-year minimum age, the two-name recommendation panel with a merely preferable appointment timeline, the four-year tenure and the impugned allowance framework as an impermissible legislative override that repeated defects already condemned in the earlier Madras Bar Association judgments, made those earlier standards controlling until constitutionally compliant legislation is enacted, and directed the Union Government to establish a National Tribunals Commission within four months. B. An interim order of 9 March 2026 allowed temporary extensions for specified serving incumbents until 8 September 2026 or the applicable maximum age, whichever was earlier, in order to prevent tribunals becoming defunct, and that order did not revive the invalidated provisions; no official establishment notification for the National Tribunals Commission was located by the owners' audit cut-off of 13 August 2026, so implementation must be described as unresolved and neither establishment nor non-establishment may be asserted as a settled fact. C. The Tribunals Reforms Act, 2021 abolished a specific named set of appellate tribunals and authorities, including bodies under the Cinematograph Act, 1952, the Trade Marks Act, 1999, the Copyright Act, 1957 and certain Customs Act and Airports Authority of India Act appellate bodies, transferring their functions mainly to High Courts while prescribing appointment and service conditions for the tribunals that remain, and it did not abolish all tribunals in India, which is the standard misstatement in this area. D. The Competition Commission of India is the statutory competition regulator under the Competition Act, 2002, enforcing the prohibitions on anti-competitive agreements and on abuse of dominant position and reviewing combinations, with appeals lying to the National Company Law Appellate Tribunal and thereafter to the Supreme Court; its own official website, read on 2 September 2026, states that its purpose is to promote and sustain an enabling competition culture through engagement and enforcement that would inspire businesses to be fair, competitive and innovative, enhance consumer welfare and support economic growth.

Answer: D. Explanation: The Competition Commission of India is the statutory competition regulator under the Competition Act, 2002, enforcing the prohibitions on anti-competitive agreements and on abuse of dominant position and reviewing combinations, with appeals lying to the National Company Law Appellate Tribunal and thereafter to the Supreme Court; its own official website, read on 2 September 2026, states that its purpose is to promote and sustain an enabling competition culture through engagement and enforcement that would inspire businesses to be fair, competitive and innovative, enhance consumer welfare and support economic growth. The remaining options belong to different chronology, actor or analytical categories.

Q45. Which statement correctly identifies Dominance is not unlawful and the forms abuse takes?

A. The conceptual foundation that separates a governance answer from a company-law answer is that dominance itself is not unlawful and only its abuse is, because competition law protects the competitive process rather than individual competitors and its object is consumer welfare and market access, and abuse takes identifiable forms including predatory or unfair pricing, unfair or discriminatory conditions, limiting production or technical development, denial of market access, tying and bundling, and leveraging dominance in one market to enter or protect another. B. The competition regulator is an economy-wide, ex-post and conduct-based regulator that complements sector regulators acting ex-ante on licences and tariffs, so the overlap between them is a genuine jurisdictional question rather than an oversight, and the limitations that carry the analytical marks are that proving dominance requires a contested and slow market definition, that digital markets with network effects, zero-price services and data advantages are handled poorly by a turnover-based framework, that remedies arrive after the market structure has already shifted, and that enforcement outcomes are frequently suspended in appeal. C. Tribunalisation is the proliferation of specialised quasi-judicial bodies to adjudicate disputes in specific regulatory or technical domains, justified by technical expertise unavailable in generalist courts and by speed with reduced court backlog, and carrying the twin risks of eroding the procedural safeguards associated with the ordinary court system and of proliferating without adequate independence safeguards, which is why disputes from a regulator's licensing denial or penalty order usually lie to a specified tribunal rather than directly to a civil court. D. The Tribunals Reforms Act, 2021 abolished a specific named set of appellate tribunals and authorities, including bodies under the Cinematograph Act, 1952, the Trade Marks Act, 1999, the Copyright Act, 1957 and certain Customs Act and Airports Authority of India Act appellate bodies, transferring their functions mainly to High Courts while prescribing appointment and service conditions for the tribunals that remain, and it did not abolish all tribunals in India, which is the standard misstatement in this area.

Answer: A. Explanation: The conceptual foundation that separates a governance answer from a company-law answer is that dominance itself is not unlawful and only its abuse is, because competition law protects the competitive process rather than individual competitors and its object is consumer welfare and market access, and abuse takes identifiable forms including predatory or unfair pricing, unfair or discriminatory conditions, limiting production or technical development, denial of market access, tying and bundling, and leveraging dominance in one market to enter or protect another. The remaining options belong to different chronology, actor or analytical categories.

Q46. Which chronology card should be filed under Dominance is not unlawful and the forms abuse takes?

A. In 2025 INSC 1330, delivered on 19 November 2025, the Supreme Court invalidated the re-enacted provisions covering the fifty-year minimum age, the two-name recommendation panel with a merely preferable appointment timeline, the four-year tenure and the impugned allowance framework as an impermissible legislative override that repeated defects already condemned in the earlier Madras Bar Association judgments, made those earlier standards controlling until constitutionally compliant legislation is enacted, and directed the Union Government to establish a National Tribunals Commission within four months. B. The conceptual foundation that separates a governance answer from a company-law answer is that dominance itself is not unlawful and only its abuse is, because competition law protects the competitive process rather than individual competitors and its object is consumer welfare and market access, and abuse takes identifiable forms including predatory or unfair pricing, unfair or discriminatory conditions, limiting production or technical development, denial of market access, tying and bundling, and leveraging dominance in one market to enter or protect another. C. The Tribunals Reforms Act, 2021 abolished a specific named set of appellate tribunals and authorities, including bodies under the Cinematograph Act, 1952, the Trade Marks Act, 1999, the Copyright Act, 1957 and certain Customs Act and Airports Authority of India Act appellate bodies, transferring their functions mainly to High Courts while prescribing appointment and service conditions for the tribunals that remain, and it did not abolish all tribunals in India, which is the standard misstatement in this area. D. Tribunalisation is the proliferation of specialised quasi-judicial bodies to adjudicate disputes in specific regulatory or technical domains, justified by technical expertise unavailable in generalist courts and by speed with reduced court backlog, and carrying the twin risks of eroding the procedural safeguards associated with the ordinary court system and of proliferating without adequate independence safeguards, which is why disputes from a regulator's licensing denial or penalty order usually lie to a specified tribunal rather than directly to a civil court.

Answer: B. Explanation: The conceptual foundation that separates a governance answer from a company-law answer is that dominance itself is not unlawful and only its abuse is, because competition law protects the competitive process rather than individual competitors and its object is consumer welfare and market access, and abuse takes identifiable forms including predatory or unfair pricing, unfair or discriminatory conditions, limiting production or technical development, denial of market access, tying and bundling, and leveraging dominance in one market to enter or protect another. The remaining options belong to different chronology, actor or analytical categories.

Q47. Which option preserves the source-bounded meaning of Dominance is not unlawful and the forms abuse takes?

A. An interim order of 9 March 2026 allowed temporary extensions for specified serving incumbents until 8 September 2026 or the applicable maximum age, whichever was earlier, in order to prevent tribunals becoming defunct, and that order did not revive the invalidated provisions; no official establishment notification for the National Tribunals Commission was located by the owners' audit cut-off of 13 August 2026, so implementation must be described as unresolved and neither establishment nor non-establishment may be asserted as a settled fact. B. The Tribunals Reforms Act, 2021 abolished a specific named set of appellate tribunals and authorities, including bodies under the Cinematograph Act, 1952, the Trade Marks Act, 1999, the Copyright Act, 1957 and certain Customs Act and Airports Authority of India Act appellate bodies, transferring their functions mainly to High Courts while prescribing appointment and service conditions for the tribunals that remain, and it did not abolish all tribunals in India, which is the standard misstatement in this area. C. The conceptual foundation that separates a governance answer from a company-law answer is that dominance itself is not unlawful and only its abuse is, because competition law protects the competitive process rather than individual competitors and its object is consumer welfare and market access, and abuse takes identifiable forms including predatory or unfair pricing, unfair or discriminatory conditions, limiting production or technical development, denial of market access, tying and bundling, and leveraging dominance in one market to enter or protect another. D. In 2025 INSC 1330, delivered on 19 November 2025, the Supreme Court invalidated the re-enacted provisions covering the fifty-year minimum age, the two-name recommendation panel with a merely preferable appointment timeline, the four-year tenure and the impugned allowance framework as an impermissible legislative override that repeated defects already condemned in the earlier Madras Bar Association judgments, made those earlier standards controlling until constitutionally compliant legislation is enacted, and directed the Union Government to establish a National Tribunals Commission within four months.

Answer: C. Explanation: The conceptual foundation that separates a governance answer from a company-law answer is that dominance itself is not unlawful and only its abuse is, because competition law protects the competitive process rather than individual competitors and its object is consumer welfare and market access, and abuse takes identifiable forms including predatory or unfair pricing, unfair or discriminatory conditions, limiting production or technical development, denial of market access, tying and bundling, and leveraging dominance in one market to enter or protect another. The remaining options belong to different chronology, actor or analytical categories.

Q48. Which statement avoids a close-option trap about Dominance is not unlawful and the forms abuse takes?

A. In 2025 INSC 1330, delivered on 19 November 2025, the Supreme Court invalidated the re-enacted provisions covering the fifty-year minimum age, the two-name recommendation panel with a merely preferable appointment timeline, the four-year tenure and the impugned allowance framework as an impermissible legislative override that repeated defects already condemned in the earlier Madras Bar Association judgments, made those earlier standards controlling until constitutionally compliant legislation is enacted, and directed the Union Government to establish a National Tribunals Commission within four months. B. The Financial Sector Legislative Reforms Commission of 2013, chaired by Justice B.N. Srikrishna, recommended a Unified Financial Agency to subsume most financial-sector regulators except the Reserve Bank of India for banking and payments, grounded in a regulation-by-activity principle under which financial products and activities are regulated consistently regardless of which institution offers them, and it separately proposed a draft Indian Financial Code to consolidate financial-sector legislation; neither comprehensive proposal has been implemented in full, and the 2015 merger of the Forward Markets Commission into the securities regulator is cited as a partial related step rather than as adoption. C. An interim order of 9 March 2026 allowed temporary extensions for specified serving incumbents until 8 September 2026 or the applicable maximum age, whichever was earlier, in order to prevent tribunals becoming defunct, and that order did not revive the invalidated provisions; no official establishment notification for the National Tribunals Commission was located by the owners' audit cut-off of 13 August 2026, so implementation must be described as unresolved and neither establishment nor non-establishment may be asserted as a settled fact. D. The conceptual foundation that separates a governance answer from a company-law answer is that dominance itself is not unlawful and only its abuse is, because competition law protects the competitive process rather than individual competitors and its object is consumer welfare and market access, and abuse takes identifiable forms including predatory or unfair pricing, unfair or discriminatory conditions, limiting production or technical development, denial of market access, tying and bundling, and leveraging dominance in one market to enter or protect another.

Answer: D. Explanation: The conceptual foundation that separates a governance answer from a company-law answer is that dominance itself is not unlawful and only its abuse is, because competition law protects the competitive process rather than individual competitors and its object is consumer welfare and market access, and abuse takes identifiable forms including predatory or unfair pricing, unfair or discriminatory conditions, limiting production or technical development, denial of market access, tying and bundling, and leveraging dominance in one market to enter or protect another. The remaining options belong to different chronology, actor or analytical categories.

Q49. Which statement correctly identifies Ex-ante sector regulation against ex-post conduct regulation?

A. The competition regulator is an economy-wide, ex-post and conduct-based regulator that complements sector regulators acting ex-ante on licences and tariffs, so the overlap between them is a genuine jurisdictional question rather than an oversight, and the limitations that carry the analytical marks are that proving dominance requires a contested and slow market definition, that digital markets with network effects, zero-price services and data advantages are handled poorly by a turnover-based framework, that remedies arrive after the market structure has already shifted, and that enforcement outcomes are frequently suspended in appeal. B. Tribunalisation is the proliferation of specialised quasi-judicial bodies to adjudicate disputes in specific regulatory or technical domains, justified by technical expertise unavailable in generalist courts and by speed with reduced court backlog, and carrying the twin risks of eroding the procedural safeguards associated with the ordinary court system and of proliferating without adequate independence safeguards, which is why disputes from a regulator's licensing denial or penalty order usually lie to a specified tribunal rather than directly to a civil court. C. In 2025 INSC 1330, delivered on 19 November 2025, the Supreme Court invalidated the re-enacted provisions covering the fifty-year minimum age, the two-name recommendation panel with a merely preferable appointment timeline, the four-year tenure and the impugned allowance framework as an impermissible legislative override that repeated defects already condemned in the earlier Madras Bar Association judgments, made those earlier standards controlling until constitutionally compliant legislation is enacted, and directed the Union Government to establish a National Tribunals Commission within four months. D. The Tribunals Reforms Act, 2021 abolished a specific named set of appellate tribunals and authorities, including bodies under the Cinematograph Act, 1952, the Trade Marks Act, 1999, the Copyright Act, 1957 and certain Customs Act and Airports Authority of India Act appellate bodies, transferring their functions mainly to High Courts while prescribing appointment and service conditions for the tribunals that remain, and it did not abolish all tribunals in India, which is the standard misstatement in this area.

Answer: A. Explanation: The competition regulator is an economy-wide, ex-post and conduct-based regulator that complements sector regulators acting ex-ante on licences and tariffs, so the overlap between them is a genuine jurisdictional question rather than an oversight, and the limitations that carry the analytical marks are that proving dominance requires a contested and slow market definition, that digital markets with network effects, zero-price services and data advantages are handled poorly by a turnover-based framework, that remedies arrive after the market structure has already shifted, and that enforcement outcomes are frequently suspended in appeal. The remaining options belong to different chronology, actor or analytical categories.

Q50. Which chronology card should be filed under Ex-ante sector regulation against ex-post conduct regulation?

A. An interim order of 9 March 2026 allowed temporary extensions for specified serving incumbents until 8 September 2026 or the applicable maximum age, whichever was earlier, in order to prevent tribunals becoming defunct, and that order did not revive the invalidated provisions; no official establishment notification for the National Tribunals Commission was located by the owners' audit cut-off of 13 August 2026, so implementation must be described as unresolved and neither establishment nor non-establishment may be asserted as a settled fact. B. The competition regulator is an economy-wide, ex-post and conduct-based regulator that complements sector regulators acting ex-ante on licences and tariffs, so the overlap between them is a genuine jurisdictional question rather than an oversight, and the limitations that carry the analytical marks are that proving dominance requires a contested and slow market definition, that digital markets with network effects, zero-price services and data advantages are handled poorly by a turnover-based framework, that remedies arrive after the market structure has already shifted, and that enforcement outcomes are frequently suspended in appeal. C. The Tribunals Reforms Act, 2021 abolished a specific named set of appellate tribunals and authorities, including bodies under the Cinematograph Act, 1952, the Trade Marks Act, 1999, the Copyright Act, 1957 and certain Customs Act and Airports Authority of India Act appellate bodies, transferring their functions mainly to High Courts while prescribing appointment and service conditions for the tribunals that remain, and it did not abolish all tribunals in India, which is the standard misstatement in this area. D. In 2025 INSC 1330, delivered on 19 November 2025, the Supreme Court invalidated the re-enacted provisions covering the fifty-year minimum age, the two-name recommendation panel with a merely preferable appointment timeline, the four-year tenure and the impugned allowance framework as an impermissible legislative override that repeated defects already condemned in the earlier Madras Bar Association judgments, made those earlier standards controlling until constitutionally compliant legislation is enacted, and directed the Union Government to establish a National Tribunals Commission within four months.

Answer: B. Explanation: The competition regulator is an economy-wide, ex-post and conduct-based regulator that complements sector regulators acting ex-ante on licences and tariffs, so the overlap between them is a genuine jurisdictional question rather than an oversight, and the limitations that carry the analytical marks are that proving dominance requires a contested and slow market definition, that digital markets with network effects, zero-price services and data advantages are handled poorly by a turnover-based framework, that remedies arrive after the market structure has already shifted, and that enforcement outcomes are frequently suspended in appeal. The remaining options belong to different chronology, actor or analytical categories.

Q51. Which option preserves the source-bounded meaning of Ex-ante sector regulation against ex-post conduct regulation?

A. An interim order of 9 March 2026 allowed temporary extensions for specified serving incumbents until 8 September 2026 or the applicable maximum age, whichever was earlier, in order to prevent tribunals becoming defunct, and that order did not revive the invalidated provisions; no official establishment notification for the National Tribunals Commission was located by the owners' audit cut-off of 13 August 2026, so implementation must be described as unresolved and neither establishment nor non-establishment may be asserted as a settled fact. B. In 2025 INSC 1330, delivered on 19 November 2025, the Supreme Court invalidated the re-enacted provisions covering the fifty-year minimum age, the two-name recommendation panel with a merely preferable appointment timeline, the four-year tenure and the impugned allowance framework as an impermissible legislative override that repeated defects already condemned in the earlier Madras Bar Association judgments, made those earlier standards controlling until constitutionally compliant legislation is enacted, and directed the Union Government to establish a National Tribunals

Commission within four months. C. The competition regulator is an economy-wide, ex-post and conduct-based regulator that complements sector regulators acting ex-ante on licences and tariffs, so the overlap between them is a genuine jurisdictional question rather than an oversight, and the limitations that carry the analytical marks are that proving dominance requires a contested and slow market definition, that digital markets with network effects, zero-price services and data advantages are handled poorly by a turnover-based framework, that remedies arrive after the market structure has already shifted, and that enforcement outcomes are frequently suspended in appeal. D. The Financial Sector Legislative Reforms Commission of 2013, chaired by Justice B.N. Srikrishna, recommended a Unified Financial Agency to subsume most financial-sector regulators except the Reserve Bank of India for banking and payments, grounded in a regulation-by-activity principle under which financial products and activities are regulated consistently regardless of which institution offers them, and it separately proposed a draft Indian Financial Code to consolidate financial-sector legislation; neither comprehensive proposal has been implemented in full, and the 2015 merger of the Forward Markets Commission into the securities regulator is cited as a partial related step rather than as adoption.

Answer: C. Explanation: The competition regulator is an economy-wide, ex-post and conduct-based regulator that complements sector regulators acting ex-ante on licences and tariffs, so the overlap between them is a genuine jurisdictional question rather than an oversight, and the limitations that carry the analytical marks are that proving dominance requires a contested and slow market definition, that digital markets with network effects, zero-price services and data advantages are handled poorly by a turnover-based framework, that remedies arrive after the market structure has already shifted, and that enforcement outcomes are frequently suspended in appeal. The remaining options belong to different chronology, actor or analytical categories.

Q52. Which statement avoids a close-option trap about Ex-ante sector regulation against ex-post conduct regulation?

A. The Financial Sector Legislative Reforms Commission of 2013, chaired by Justice B.N. Srikrishna, recommended a Unified Financial Agency to subsume most financial-sector regulators except the Reserve Bank of India for banking and payments, grounded in a regulation-by-activity principle under which financial products and activities are regulated consistently regardless of which institution offers them, and it separately proposed a draft Indian Financial Code to consolidate financial-sector legislation; neither comprehensive proposal has been implemented in full, and the 2015 merger of the Forward Markets Commission into the securities regulator is cited as a partial related step rather than as adoption. B. An interim order of 9 March 2026 allowed temporary extensions for specified serving incumbents until 8 September 2026 or the applicable maximum age, whichever was earlier, in order to prevent tribunals becoming defunct, and that order did not revive the invalidated provisions; no official establishment notification for the National Tribunals Commission was located by the owners' audit cut-off of 13 August 2026, so implementation must be described as unresolved and neither establishment nor non-establishment may be asserted as a settled fact. C. The Jan Vishwas Amendment of Provisions Act, 2023 decriminalised or rationalised one hundred and eighty-three provisions across forty-two Central Acts and is the Indian anchor for trust-based regulation, whose method is to diagnose whether conduct involves fraud, violence, public safety or deliberate evasion or merely a technical or default failure, to use warning, cure period, graded civil penalty and digital compliance for the latter and to retain criminal sanction for serious or repeated harm, while remembering that decriminalisation is not deregulation because proportionate penalty, hearing, reasoned order and appeal all remain necessary. D. The competition regulator is an economy-wide, ex-post and conduct-based regulator that complements sector regulators acting ex-ante on licences and tariffs, so the overlap between them is a genuine jurisdictional question rather than an oversight, and the limitations that carry the analytical marks are that proving dominance requires a contested and slow market definition, that digital markets with network effects, zero-price services and data advantages are handled poorly by a turnover-based framework, that remedies arrive after the market structure has already shifted, and that enforcement outcomes are frequently suspended in appeal.

Answer: D. Explanation: The competition regulator is an economy-wide, ex-post and conduct-based regulator that complements sector regulators acting ex-ante on licences and tariffs, so the overlap between them is a genuine jurisdictional question rather than an oversight, and the limitations that carry the analytical marks are that proving dominance requires a contested and slow market definition, that digital markets with network effects, zero-price services and data advantages are handled poorly by a turnover-based framework, that remedies arrive after the market structure has already shifted, and that enforcement outcomes are frequently suspended in appeal. The remaining options belong to different chronology, actor or analytical categories.

Q53. Which statement correctly identifies Tribunalisation with its dual rationale and dual risk?

A. Tribunalisation is the proliferation of specialised quasi-judicial bodies to adjudicate disputes in specific regulatory or technical domains, justified by technical expertise unavailable in generalist courts and by speed with reduced court backlog, and carrying the twin risks of eroding the procedural safeguards associated with the ordinary court system and of proliferating without adequate independence safeguards, which is why disputes from a regulator's licensing denial or penalty order usually lie to a specified tribunal rather than directly to a civil court. B. An interim order of 9 March 2026 allowed temporary extensions for specified serving incumbents until 8 September 2026 or the applicable maximum age, whichever was earlier, in order to prevent tribunals becoming defunct, and that order did not revive the invalidated provisions; no official establishment notification for the National Tribunals Commission was located by the owners' audit cut-off of 13 August 2026, so implementation must be described as unresolved and neither establishment nor non-establishment may be asserted as a settled fact. C. The Tribunals Reforms Act, 2021 abolished a specific named set of appellate tribunals and authorities, including bodies under the Cinematograph Act, 1952, the Trade Marks Act, 1999, the Copyright Act, 1957 and certain Customs Act and Airports Authority of India Act appellate bodies, transferring their functions mainly to High Courts while prescribing appointment and service conditions for the tribunals that remain, and it did not abolish all tribunals in India, which is the standard misstatement in this area. D. In 2025 INSC 1330, delivered on 19 November 2025, the Supreme Court invalidated the re-enacted provisions covering the fifty-year minimum age, the two-name recommendation panel with a merely preferable appointment timeline, the four-year tenure and the impugned allowance framework as an impermissible legislative override that repeated defects already condemned in the earlier Madras Bar Association judgments, made those earlier standards controlling until constitutionally compliant legislation is enacted, and directed the Union Government to establish a National Tribunals Commission within four months.

Answer: A. Explanation: Tribunalisation is the proliferation of specialised quasi-judicial bodies to adjudicate disputes in specific regulatory or technical domains, justified by technical expertise unavailable in generalist courts and by speed with reduced court backlog, and carrying the twin risks of eroding the procedural safeguards associated with the ordinary court system and of proliferating without adequate independence safeguards, which is why disputes from a regulator's licensing denial or penalty order usually lie to a specified tribunal rather than directly to a civil court. The remaining options belong to different chronology, actor or analytical categories.

Q54. Which chronology card should be filed under Tribunalisation with its dual rationale and dual risk?

A. An interim order of 9 March 2026 allowed temporary extensions for specified serving incumbents until 8 September 2026 or the applicable maximum age, whichever was earlier, in order to prevent tribunals becoming defunct, and that order did not revive the invalidated provisions; no official establishment notification for the National Tribunals Commission was located by the owners' audit cut-off of 13 August 2026, so implementation must be described as unresolved and neither establishment nor non-establishment may be asserted as a settled fact. B. Tribunalisation is the proliferation of specialised quasi-judicial bodies to adjudicate disputes in specific regulatory or technical domains, justified by technical expertise unavailable in generalist courts and by speed with reduced court backlog, and carrying the twin risks of eroding the procedural safeguards associated with the ordinary court system and of proliferating without adequate independence safeguards, which is why disputes from a regulator's licensing denial or penalty order usually lie to a specified tribunal rather than directly to a civil court. C. In 2025 INSC 1330, delivered on 19 November 2025, the Supreme Court invalidated the re-enacted provisions covering the fifty-year minimum age, the two-name recommendation panel with a merely preferable appointment timeline, the four-year tenure and the impugned allowance framework as an impermissible legislative override that repeated defects already condemned in the earlier Madras Bar Association judgments, made those earlier standards controlling until constitutionally compliant legislation is enacted, and directed the Union Government to establish a National Tribunals Commission within four months. D. The Financial Sector Legislative Reforms Commission of 2013, chaired by Justice B.N. Srikrishna, recommended a Unified Financial Agency to subsume most financial-sector regulators except the Reserve Bank of India for banking and payments, grounded in a regulation-by-activity principle under which financial products and activities are regulated consistently regardless of which institution offers them, and it separately proposed a draft Indian Financial Code to consolidate financial-sector legislation; neither comprehensive proposal has been implemented in full, and the 2015 merger of the Forward Markets Commission into the securities regulator is cited as a partial related step rather than as adoption.

Answer: B. Explanation: Tribunalisation is the proliferation of specialised quasi-judicial bodies to adjudicate disputes in specific regulatory or technical domains, justified by technical expertise unavailable in generalist courts and by speed with reduced court backlog, and carrying the twin risks of eroding the procedural safeguards associated with the ordinary court system and of proliferating without adequate independence safeguards, which is why disputes from a regulator's licensing denial or penalty order usually lie to a specified tribunal rather than directly to a civil court. The remaining options belong to different chronology, actor or analytical categories.

Q55. Which option preserves the source-bounded meaning of Tribunalisation with its dual rationale and dual risk?

A. An interim order of 9 March 2026 allowed temporary extensions for specified serving incumbents until 8 September 2026 or the applicable maximum age, whichever was earlier, in order to prevent tribunals becoming defunct, and that order did not revive the invalidated provisions; no official establishment notification for the National Tribunals Commission was located by the owners' audit cut-off of 13 August 2026, so implementation must be described as unresolved and neither establishment nor non-establishment may be asserted as a settled fact. B. The Jan Vishwas Amendment of Provisions Act, 2023 decriminalised or rationalised one hundred and eighty-three provisions across forty-two Central Acts and is the Indian anchor for trust-based regulation, whose method is to diagnose whether conduct involves fraud, violence, public safety or deliberate evasion or merely a technical or default failure, to use warning, cure period, graded civil penalty and digital compliance for the latter and to retain criminal sanction for serious or repeated harm, while remembering that decriminalisation is not deregulation because proportionate penalty, hearing, reasoned order and appeal all remain necessary. C. Tribunalisation is the proliferation of specialised quasi-judicial bodies to adjudicate disputes in specific regulatory or technical domains, justified by technical expertise unavailable in generalist courts and by speed with reduced court backlog, and carrying the twin risks of eroding the procedural safeguards associated with the ordinary court system and of proliferating without adequate independence safeguards, which is why disputes from a regulator's licensing denial or penalty order usually lie to a specified tribunal rather than directly to a civil court. D. The Financial Sector Legislative Reforms Commission of 2013, chaired by Justice B.N. Srikrishna, recommended a Unified Financial Agency to subsume most financial-sector regulators except the Reserve Bank of India for banking and payments, grounded in a regulation-by-activity principle under which financial products and activities are regulated consistently regardless of which institution offers them, and it separately proposed a draft Indian Financial Code to consolidate financial-sector legislation; neither comprehensive proposal has been implemented in full, and the 2015 merger of the Forward Markets Commission into the securities regulator is cited as a partial related step rather than as adoption.

Answer: C. Explanation: Tribunalisation is the proliferation of specialised quasi-judicial bodies to adjudicate disputes in specific regulatory or technical domains, justified by technical expertise unavailable in generalist courts and by speed with reduced court backlog, and carrying the twin risks of eroding the procedural safeguards associated with the ordinary court system and of proliferating without adequate independence safeguards, which is why disputes from a regulator's licensing denial or penalty order usually lie to a specified tribunal rather than directly to a civil court. The remaining options belong to different chronology, actor or analytical categories.

Q56. Which statement avoids a close-option trap about Tribunalisation with its dual rationale and dual risk?

A. The Financial Sector Legislative Reforms Commission of 2013, chaired by Justice B.N. Srikrishna, recommended a Unified Financial Agency to subsume most financial-sector regulators except the Reserve Bank of India for banking and payments, grounded in a regulation-by-activity principle under which financial products and activities are regulated consistently regardless of which institution offers them, and it separately proposed a draft Indian Financial Code to consolidate financial-sector legislation; neither comprehensive proposal has been implemented in full, and the 2015 merger of the Forward Markets Commission into the securities regulator is cited as a partial related step rather than as adoption. B. The audited 2018-2023 Mains ledger routes the 2023 General Studies Paper-II demand on the competition regulator and abuse of dominant position to this Basic owner jointly with the Polity consolidated statutory-body owner, and the same ledger routes two objective demands on a food-safety statute and on a petroleum and natural gas regulator here, for which the official keys are not held locally so no option or answer is inferred; one ownership conflict is recorded openly rather than resolved by assertion, because the 2025 General Studies Paper-II demand on the need for administrative tribunals and the 2021 rationalisation is discussed at length in the text of this owner but is routed by the audited 2024-2025 ledger to the Polity administrative-tribunals owner, so it is solved there and this owner supplies only the regulatory-governance half; no regulator composition, member count, tenure or appointment authority is asserted here because Polity owns that anatomy, and no competition case name, party, penalty, order date, pendency figure or enforcement statistic is asserted anywhere. C. The Jan Vishwas Amendment of Provisions Act, 2023 decriminalised or rationalised one hundred and eighty-three provisions across forty-two Central Acts and is the Indian anchor for trust-based regulation, whose method is to diagnose whether conduct involves fraud, violence, public safety or deliberate evasion or merely a technical or default failure, to use warning, cure period, graded civil penalty and digital compliance for the latter and to retain criminal sanction for serious or repeated harm, while remembering that decriminalisation is not deregulation because proportionate penalty, hearing, reasoned order and appeal all remain necessary. D. Tribunalisation is the proliferation of specialised quasi-judicial bodies to adjudicate disputes in specific regulatory or technical domains, justified by technical expertise unavailable in generalist courts and by speed with reduced court backlog, and carrying the twin risks of eroding the procedural safeguards associated with the ordinary court system and of proliferating without adequate independence safeguards, which is why disputes from a regulator's licensing denial or penalty order usually lie to a specified tribunal rather than directly to a civil court.

Answer: D. Explanation: Tribunalisation is the proliferation of specialised quasi-judicial bodies to adjudicate disputes in specific regulatory or technical domains, justified by technical expertise unavailable in generalist courts and by speed with reduced court backlog, and carrying the twin risks of eroding the procedural safeguards associated with the ordinary court system and of proliferating without adequate independence safeguards, which is why disputes from a regulator's licensing denial or penalty order usually lie to a specified tribunal rather than directly to a civil court. The remaining options belong to different chronology, actor or analytical categories.

Q57. Which statement correctly identifies What the Tribunals Reforms Act, 2021 actually did?

A. The Tribunals Reforms Act, 2021 abolished a specific named set of appellate tribunals and authorities, including bodies under the Cinematograph Act, 1952, the Trade Marks Act, 1999, the Copyright Act, 1957 and certain Customs Act and Airports Authority of India Act appellate bodies, transferring their functions mainly to High Courts while prescribing appointment and service conditions for the tribunals that remain, and it did not abolish all tribunals in India, which is the standard misstatement in this area. B. An interim order of 9 March 2026 allowed temporary extensions for specified serving incumbents until 8 September 2026 or the applicable maximum age, whichever was earlier, in order to prevent tribunals becoming defunct, and that order did not revive the invalidated provisions; no official establishment notification for the National Tribunals Commission was located by the owners' audit cut-off of 13 August 2026, so implementation must be described as unresolved and neither establishment nor non-establishment may be asserted as a settled fact. C. In 2025 INSC 1330, delivered on 19 November 2025, the Supreme Court invalidated the re-enacted provisions covering the fifty-year minimum age, the two-name recommendation panel with a merely preferable appointment timeline, the four-year tenure and the impugned allowance framework as an impermissible legislative override that repeated defects already condemned in the earlier Madras Bar Association judgments, made those earlier standards controlling until constitutionally compliant legislation is enacted, and directed the Union Government to establish a National Tribunals Commission within four months. D. The Financial Sector Legislative Reforms Commission of 2013, chaired by Justice B.N. Srikrishna, recommended a Unified Financial Agency to subsume most financial-sector regulators except the Reserve Bank of India for banking and payments, grounded in a regulation-by-activity principle under which financial products and activities are regulated consistently regardless of which institution offers them, and it separately proposed a draft Indian Financial Code to consolidate financial-sector legislation; neither comprehensive proposal has been implemented in full, and the 2015 merger of the Forward Markets Commission into the securities regulator is cited as a partial related step rather than as adoption.

Answer: A. Explanation: The Tribunals Reforms Act, 2021 abolished a specific named set of appellate tribunals and authorities, including bodies under the Cinematograph Act, 1952, the Trade Marks Act, 1999, the Copyright Act, 1957 and certain Customs Act and Airports Authority of India Act appellate bodies, transferring their functions mainly to High Courts while prescribing appointment and service conditions for the tribunals that remain, and it did not abolish all tribunals in India, which is the standard misstatement in this area. The remaining options belong to different chronology, actor or analytical categories.

Q58. Which chronology card should be filed under What the Tribunals Reforms Act, 2021 actually did?

A. The Jan Vishwas Amendment of Provisions Act, 2023 decriminalised or rationalised one hundred and eighty-three provisions across forty-two Central Acts and is the Indian anchor for trust-based regulation, whose method is to diagnose whether conduct involves fraud, violence, public safety or deliberate evasion or merely a technical or default failure, to use warning, cure period, graded civil penalty and digital compliance for the latter and to retain criminal sanction for serious or repeated harm, while remembering that decriminalisation is not deregulation because proportionate penalty, hearing, reasoned order and appeal all remain necessary. B. The Tribunals Reforms Act, 2021 abolished a specific named set of appellate tribunals and authorities, including bodies under the Cinematograph Act, 1952, the Trade Marks Act, 1999, the Copyright Act, 1957 and certain Customs Act and Airports Authority of India Act appellate bodies, transferring their functions mainly to High Courts while prescribing appointment and service conditions for the tribunals that remain, and it did not abolish all tribunals in India, which is the standard misstatement in this area. C. An interim order of 9 March 2026 allowed temporary extensions for specified serving incumbents until 8 September 2026 or the applicable maximum age, whichever was earlier, in order to prevent tribunals becoming defunct, and that order did not revive the invalidated provisions; no official establishment notification for the National Tribunals Commission was located by the owners' audit cut-off of 13 August 2026, so implementation must be described as unresolved and neither establishment nor non-establishment may be asserted as a settled fact. D. The Financial Sector Legislative Reforms Commission of 2013, chaired by Justice B.N. Srikrishna, recommended a Unified Financial Agency to subsume most financial-sector regulators except the Reserve Bank of India for banking and payments, grounded in a regulation-by-activity principle under which financial products and activities are regulated consistently regardless of which institution offers them, and it separately proposed a draft Indian Financial Code to consolidate financial-sector legislation; neither comprehensive proposal has been implemented in full, and the 2015 merger of the Forward Markets Commission into the securities regulator is cited as a partial related step rather than as adoption.

Answer: B. Explanation: The Tribunals Reforms Act, 2021 abolished a specific named set of appellate tribunals and authorities, including bodies under the Cinematograph Act, 1952, the Trade Marks Act, 1999, the Copyright Act, 1957 and certain Customs Act and Airports Authority of India Act appellate bodies, transferring their functions mainly to High Courts while prescribing appointment and service conditions for the tribunals that remain, and it did not abolish all tribunals in India, which is the standard misstatement in this area. The remaining options belong to different chronology, actor or analytical categories.

Q59. Which option preserves the source-bounded meaning of What the Tribunals Reforms Act, 2021 actually did?

A. The Jan Vishwas Amendment of Provisions Act, 2023 decriminalised or rationalised one hundred and eighty-three provisions across forty-two Central Acts and is the Indian anchor for trust-based regulation, whose method is to diagnose whether conduct involves fraud, violence, public safety or deliberate evasion or merely a technical or default failure, to use warning, cure period, graded civil penalty and digital compliance for the latter and to retain criminal sanction for serious or repeated harm, while remembering that decriminalisation is not deregulation because proportionate penalty, hearing, reasoned order and appeal all remain necessary. B. The audited 2018-2023 Mains ledger routes the 2023 General Studies Paper-II demand on the competition regulator and abuse of dominant position to this Basic owner jointly with the Polity consolidated statutory-body owner, and the same ledger routes two objective demands on a food-safety statute and on a petroleum and natural gas regulator here, for which the official keys are not held locally so no option or answer is inferred; one ownership conflict is recorded openly rather than resolved by assertion, because the 2025 General Studies Paper-II demand on the need for administrative tribunals and the 2021 rationalisation is discussed at length in the text of this owner but is routed by the audited 2024-2025 ledger to the Polity administrative-tribunals owner, so it is solved there and this owner supplies only the regulatory-governance half; no regulator composition, member count, tenure or appointment authority is asserted here because Polity owns that anatomy, and no competition case name, party, penalty, order date, pendency figure or enforcement statistic is asserted anywhere. C. The Tribunals Reforms Act, 2021 abolished a specific named set of appellate tribunals and authorities, including bodies under the Cinematograph Act, 1952, the Trade Marks Act, 1999, the Copyright Act, 1957 and certain Customs Act and Airports Authority of India Act appellate bodies, transferring their functions mainly to High Courts while prescribing appointment and service conditions for the tribunals that remain, and it did not abolish all tribunals in India, which is the standard misstatement in this area. D. The Financial Sector Legislative Reforms

Commission of 2013, chaired by Justice B.N. Srikrishna, recommended a Unified Financial Agency to subsume most financial-sector regulators except the Reserve Bank of India for banking and payments, grounded in a regulation-by-activity principle under which financial products and activities are regulated consistently regardless of which institution offers them, and it separately proposed a draft Indian Financial Code to consolidate financial-sector legislation; neither comprehensive proposal has been implemented in full, and the 2015 merger of the Forward Markets Commission into the securities regulator is cited as a partial related step rather than as adoption.

Answer: C. Explanation: The Tribunals Reforms Act, 2021 abolished a specific named set of appellate tribunals and authorities, including bodies under the Cinematograph Act, 1952, the Trade Marks Act, 1999, the Copyright Act, 1957 and certain Customs Act and Airports Authority of India Act appellate bodies, transferring their functions mainly to High Courts while prescribing appointment and service conditions for the tribunals that remain, and it did not abolish all tribunals in India, which is the standard misstatement in this area. The remaining options belong to different chronology, actor or analytical categories.

Q60. Which statement avoids a close-option trap about What the Tribunals Reforms Act, 2021 actually did?

A. Independent sectoral regulators exist because certain sectors combine technical complexity, a need for insulation from day-to-day political and executive direction, and a need for consistent and predictable rule-making, so Parliament creates a statutory body with rule-making, licensing, monitoring and enforcement powers over that sector; the same independence then creates an accountability problem and a capture risk that governance design must continually manage rather than resolve once. B. The audited 2018-2023 Mains ledger routes the 2023 General Studies Paper-II demand on the competition regulator and abuse of dominant position to this Basic owner jointly with the Polity consolidated statutory-body owner, and the same ledger routes two objective demands on a food-safety statute and on a petroleum and natural gas regulator here, for which the official keys are not held locally so no option or answer is inferred; one ownership conflict is recorded openly rather than resolved by assertion, because the 2025 General Studies Paper-II demand on the need for administrative tribunals and the 2021 rationalisation is discussed at length in the text of this owner but is routed by the audited 2024-2025 ledger to the Polity administrative-tribunals owner, so it is solved there and this owner supplies only the regulatory-governance half; no regulator composition, member count, tenure or appointment authority is asserted here because Polity owns that anatomy, and no competition case name, party, penalty, order date, pendency figure or enforcement statistic is asserted anywhere. C. The Jan Vishwas Amendment of Provisions Act, 2023 decriminalised or rationalised one hundred and eighty-three provisions across forty-two Central Acts and is the Indian anchor for trust-based regulation, whose method is to diagnose whether conduct involves fraud, violence, public safety or deliberate evasion or merely a technical or default failure, to use warning, cure period, graded civil penalty and digital compliance for the latter and to retain criminal sanction for serious or repeated harm, while remembering that decriminalisation is not deregulation because proportionate penalty, hearing, reasoned order and appeal all remain necessary. D. The Tribunals Reforms Act, 2021 abolished a specific named set of appellate tribunals and authorities, including bodies under the Cinematograph Act, 1952, the Trade Marks Act, 1999, the Copyright Act, 1957 and certain Customs Act and Airports Authority of India Act appellate bodies, transferring their functions mainly to High Courts while prescribing appointment and service conditions for the tribunals that remain, and it did not abolish all tribunals in India, which is the standard misstatement in this area.

Answer: D. Explanation: The Tribunals Reforms Act, 2021 abolished a specific named set of appellate tribunals and authorities, including bodies under the Cinematograph Act, 1952, the Trade Marks Act, 1999, the Copyright Act, 1957 and certain Customs Act and Airports Authority of India Act appellate bodies, transferring their functions mainly to High Courts while prescribing appointment and service conditions for the tribunals that remain, and it did not abolish all tribunals in India, which is the standard misstatement in this area. The remaining options belong to different chronology, actor or analytical categories.

Q61. Which statement correctly identifies The 2025 judgment and its four heads of invalidation?

A. In 2025 INSC 1330, delivered on 19 November 2025, the Supreme Court invalidated the re-enacted provisions covering the fifty-year minimum age, the two-name recommendation panel with a merely preferable appointment timeline, the four-year tenure and the impugned allowance framework as an impermissible legislative override that repeated defects already condemned in the earlier Madras Bar Association judgments, made those earlier standards controlling until constitutionally compliant legislation is enacted, and directed the Union Government to establish a National Tribunals Commission within four months. B. The Financial Sector Legislative Reforms Commission of 2013, chaired by Justice B.N. Srikrishna, recommended a Unified Financial Agency to subsume most financial-sector regulators except the Reserve Bank of India for banking and payments, grounded in a regulation-by-activity principle under which financial products and activities are regulated consistently regardless of which institution offers them, and it separately proposed a draft Indian Financial Code to consolidate financial-sector legislation; neither comprehensive proposal has been implemented in full, and the 2015 merger of the Forward Markets Commission into the securities regulator is cited as a partial related step rather than as adoption. C. The Jan Vishwas Amendment of Provisions Act, 2023 decriminalised or rationalised one hundred and eighty-three provisions across forty-two Central Acts and is the Indian anchor for trust-based regulation, whose method is to diagnose whether conduct involves fraud, violence, public safety or deliberate evasion or merely a technical or default failure, to use warning, cure period, graded civil penalty and digital compliance for the latter and to retain criminal sanction for serious or repeated harm, while remembering that decriminalisation is not deregulation because proportionate penalty, hearing, reasoned order and appeal all remain necessary. D. An interim order of 9 March 2026 allowed temporary extensions for specified serving incumbents until 8 September 2026 or the applicable maximum age, whichever was earlier, in order to prevent tribunals becoming defunct, and that order did not revive the invalidated provisions; no official establishment notification for the National Tribunals Commission was located by the owners' audit cut-off of 13 August 2026, so implementation must be described as unresolved and neither establishment nor non-establishment may be asserted as a settled fact.

Answer: A. Explanation: In 2025 INSC 1330, delivered on 19 November 2025, the Supreme Court invalidated the re-enacted provisions covering the fifty-year minimum age, the two-name recommendation panel with a merely preferable appointment timeline, the four-year tenure and the impugned allowance framework as an impermissible legislative override that repeated defects already condemned in the earlier Madras Bar Association judgments, made those earlier standards controlling until constitutionally compliant legislation is enacted, and directed the Union Government to establish a National Tribunals Commission within four months. The remaining options belong to different chronology, actor or analytical categories.

Q62. Which chronology card should be filed under The 2025 judgment and its four heads of invalidation?

A. The audited 2018-2023 Mains ledger routes the 2023 General Studies Paper-II demand on the competition regulator and abuse of dominant position to this Basic owner jointly with the Polity consolidated statutory-body owner, and the same ledger routes two objective demands on a food-safety statute and on a petroleum and natural gas regulator here, for which the official keys are not held locally so no option or answer is inferred; one ownership conflict is recorded openly rather than resolved by assertion, because the 2025 General Studies Paper-II demand on the need for administrative tribunals and the 2021 rationalisation is discussed at length in the text of this owner but is routed by the audited 2024-2025 ledger to the Polity administrative-tribunals owner, so it is solved there and this owner supplies only the regulatory-governance half; no regulator composition, member count, tenure or appointment authority is asserted here because Polity owns that anatomy, and no competition case name, party, penalty, order date, pendency figure or enforcement statistic is asserted anywhere. B. In 2025 INSC 1330, delivered on 19 November 2025, the Supreme Court invalidated the re-enacted provisions covering the fifty-year minimum age, the two-name recommendation panel with a merely preferable appointment timeline, the four-year tenure and the impugned allowance framework as an impermissible legislative override that repeated defects already condemned in the earlier Madras Bar Association judgments, made those earlier standards controlling until constitutionally compliant legislation is enacted, and directed the Union Government to establish a National Tribunals Commission within four months. C. The Jan Vishwas Amendment of Provisions Act, 2023 decriminalised or rationalised one hundred and eighty-three provisions across forty-two Central Acts and is the Indian anchor for trust-based regulation, whose method is to diagnose whether conduct involves fraud, violence, public safety or deliberate evasion or merely a technical or default failure, to use warning, cure period, graded civil penalty and digital compliance for the latter and to retain criminal sanction for serious or repeated harm, while remembering that decriminalisation is not deregulation because proportionate penalty, hearing, reasoned order and appeal all remain necessary. D. The Financial Sector Legislative Reforms Commission of 2013, chaired by Justice B.N. Srikrishna, recommended a Unified Financial Agency to subsume most financial-sector regulators except the Reserve Bank of India for banking and payments, grounded in a regulation-by-activity principle under which financial products and activities are regulated consistently regardless of which institution offers them, and it separately proposed a draft Indian Financial Code to consolidate financial-sector legislation; neither comprehensive proposal has been implemented in full, and the 2015 merger of the Forward Markets Commission into the securities regulator is cited as a partial related step rather than as adoption.

Answer: B. Explanation: In 2025 INSC 1330, delivered on 19 November 2025, the Supreme Court invalidated the re-enacted provisions covering the fifty-year minimum age, the two-name recommendation panel with a merely preferable appointment timeline, the four-year tenure and the impugned allowance framework as an impermissible legislative override that repeated defects already condemned in the earlier Madras Bar Association judgments, made those earlier standards controlling until constitutionally compliant legislation is enacted, and directed the Union Government to establish a National Tribunals Commission within four months. The remaining options belong to different chronology, actor or analytical categories.

Q63. Which option preserves the source-bounded meaning of The 2025 judgment and its four heads of invalidation?

A. The audited 2018-2023 Mains ledger routes the 2023 General Studies Paper-II demand on the competition regulator and abuse of dominant position to this Basic owner jointly with the Polity consolidated statutory-body owner, and the same ledger routes two objective demands on a food-safety statute and on a petroleum and natural gas regulator here, for which the official keys are not held locally so no option or answer is inferred; one ownership conflict is recorded openly rather than resolved by assertion, because the 2025 General Studies Paper-II demand on the need for administrative tribunals and the 2021 rationalisation is discussed at length in the text of this owner but is routed by the audited 2024-2025 ledger to the Polity administrative-tribunals owner, so it is solved there and this owner supplies only the regulatory-governance half; no regulator composition, member count, tenure or appointment authority is asserted here because Polity owns that anatomy, and no competition case name, party, penalty, order date, pendency figure or enforcement statistic is asserted anywhere. B. Independent sectoral regulators exist because certain sectors combine technical complexity, a need for insulation from day-to-day political and executive direction, and a need for consistent and predictable rule-making, so Parliament creates a statutory body with rule-making, licensing, monitoring and enforcement powers over that sector; the same independence then creates an accountability problem and a capture risk that governance design must continually manage rather than resolve once. C. In 2025 INSC 1330, delivered on 19 November 2025, the Supreme Court invalidated the re-enacted provisions covering the fifty-year minimum age, the two-name recommendation panel with a merely preferable appointment timeline, the four-year tenure and the impugned allowance framework as an impermissible legislative override that repeated defects already condemned in the earlier Madras Bar Association judgments, made those earlier standards controlling until constitutionally compliant legislation is enacted, and directed the Union Government to establish a National Tribunals Commission within four months. D. The Jan Vishwas Amendment of Provisions Act, 2023 decriminalised or rationalised one hundred and eighty-three provisions across forty-two Central Acts and is the Indian anchor for trust-based regulation, whose method is to diagnose whether conduct involves fraud, violence, public safety or deliberate evasion or merely a technical or default failure, to use warning, cure period, graded civil penalty and digital compliance for the latter and to retain criminal sanction for serious or repeated harm, while remembering that decriminalisation is not deregulation because proportionate penalty, hearing, reasoned order and appeal all remain necessary.

Answer: C. Explanation: In 2025 INSC 1330, delivered on 19 November 2025, the Supreme Court invalidated the re-enacted provisions covering the fifty-year minimum age, the two-name recommendation panel with a merely preferable appointment timeline, the four-year tenure and the impugned allowance framework as an impermissible legislative override that repeated defects already condemned in the earlier Madras Bar Association judgments, made those earlier standards controlling until constitutionally compliant legislation is enacted, and directed the Union Government to establish a National Tribunals Commission within four months. The remaining options belong to different chronology, actor or analytical categories.

Q64. Which statement avoids a close-option trap about The 2025 judgment and its four heads of invalidation?

A. The audited 2018-2023 Mains ledger routes the 2023 General Studies Paper-II demand on the competition regulator and abuse of dominant position to this Basic owner jointly with the Polity consolidated statutory-body owner, and the same ledger routes two objective demands on a food-safety statute and on a petroleum and natural gas regulator here, for which the official keys are not held locally so no option or answer is inferred; one ownership conflict is recorded openly rather than resolved by assertion, because the 2025 General Studies Paper-II demand on the need for administrative tribunals and the 2021 rationalisation is discussed at length in the text of this owner but is routed by the audited 2024-2025 ledger to the Polity administrative-tribunals owner, so it is solved there and this owner supplies only the regulatory-governance half; no regulator composition, member count, tenure or appointment authority is asserted here because Polity owns that anatomy, and no competition case name, party, penalty, order date, pendency figure or enforcement statistic is asserted anywhere. B. The Reserve Bank of India for banking and payments, the securities-market regulator, the insurance regulator, the pension-fund regulator, the telecom regulator, the electricity regulatory commission, the petroleum and natural gas regulatory board and the competition regulator are each created by their own separate statute, and the standard trap is to assume they share a uniform independence or accountability design, because each parent Act prescribes its own tenure, funding, appointment and oversight arrangements which vary considerably in the degree of insulation from executive control. C. Independent sectoral regulators exist because certain sectors combine technical complexity, a need for insulation from day-to-day political and executive direction, and a need for consistent and predictable rule-making, so Parliament creates a statutory body with rule-making, licensing, monitoring and enforcement powers over that sector; the same independence then creates an accountability problem and a capture risk that governance design must continually manage rather than resolve once. D. In 2025 INSC 1330, delivered on 19 November 2025, the Supreme Court invalidated the re-enacted provisions covering the fifty-year minimum age, the two-name recommendation panel with a merely preferable appointment timeline, the four-year tenure and the impugned allowance framework as an impermissible legislative override that repeated defects already condemned in the earlier Madras Bar Association judgments, made those earlier standards controlling until constitutionally compliant legislation is enacted, and directed the Union Government to establish a National Tribunals Commission within four months.

Answer: D. Explanation: In 2025 INSC 1330, delivered on 19 November 2025, the Supreme Court invalidated the re-enacted provisions covering the fifty-year minimum age, the two-name recommendation panel with a merely preferable appointment timeline, the four-year tenure and the impugned allowance framework as an impermissible legislative override that repeated defects already condemned in the earlier Madras Bar Association judgments, made those earlier standards controlling until constitutionally compliant legislation is enacted, and directed the Union Government to establish a National Tribunals Commission within four months. The remaining options belong to different chronology, actor or analytical categories.

Q65. Which statement correctly identifies The interim continuity order and the unresolved commission?

A. An interim order of 9 March 2026 allowed temporary extensions for specified serving incumbents until 8 September 2026 or the applicable maximum age, whichever was earlier, in order to prevent tribunals becoming defunct, and that order did not revive the invalidated provisions; no official establishment notification for the National Tribunals Commission was located by the owners' audit cut-off of 13 August 2026, so implementation must be described as unresolved and neither establishment nor non-establishment may be asserted as a settled fact. B. The Financial Sector Legislative Reforms Commission of 2013, chaired by Justice B.N. Srikrishna, recommended a Unified Financial Agency to subsume most financial-sector regulators except the Reserve Bank of India for banking and payments, grounded in a regulation-by-activity principle under which financial products and activities are regulated consistently regardless of which institution offers them, and it separately proposed a draft Indian Financial Code to consolidate financial-sector legislation; neither comprehensive proposal has been implemented in full, and the 2015 merger of the Forward Markets Commission into the securities regulator is cited as a partial related step rather than as adoption. C. The Jan Vishwas Amendment of Provisions Act, 2023 decriminalised or rationalised one hundred and eighty-three provisions across forty-two Central Acts and is the Indian anchor for trust-based regulation, whose method is to diagnose whether conduct involves fraud, violence, public safety or deliberate evasion or merely a technical or default failure, to use warning, cure period, graded civil penalty and digital compliance for the latter and to retain criminal sanction for serious or repeated harm, while remembering that decriminalisation is not deregulation because proportionate penalty, hearing, reasoned order and appeal all remain necessary. D. The audited 2018-2023 Mains ledger routes the 2023 General Studies Paper-II demand on the competition regulator and abuse of dominant position to this Basic owner jointly with the Polity consolidated statutory-body owner, and the same ledger routes two objective demands on a food-safety statute and on a petroleum and natural gas regulator here, for which the official keys are not held locally so no option or answer is inferred; one ownership conflict is recorded openly rather than resolved by assertion, because the 2025 General Studies Paper-II demand on the need for administrative tribunals and the 2021 rationalisation is discussed at length in the text of this owner but is routed by the audited 2024-2025 ledger to the Polity administrative-tribunals owner, so it is solved there and this owner supplies only the regulatory-governance half; no regulator composition, member count, tenure or appointment authority is asserted here because Polity owns that anatomy, and no competition case name, party, penalty, order date, pendency figure or enforcement statistic is asserted anywhere.

Answer: A. Explanation: An interim order of 9 March 2026 allowed temporary extensions for specified serving incumbents until 8 September 2026 or the applicable maximum age, whichever was earlier, in order to prevent tribunals becoming defunct, and that order did not revive the invalidated provisions; no official establishment notification for the National Tribunals Commission was located by the owners' audit cut-off of 13 August 2026, so implementation must be described as unresolved and neither establishment nor non-establishment may be asserted as a settled fact. The remaining options belong to different chronology, actor or analytical categories.

Q66. Which chronology card should be filed under The interim continuity order and the unresolved commission?

A. The audited 2018-2023 Mains ledger routes the 2023 General Studies Paper-II demand on the competition regulator and abuse of dominant position to this Basic owner jointly with the Polity consolidated statutory-body owner, and the same ledger routes two objective demands on a food-safety statute and on a petroleum and natural gas regulator here, for which the official keys are not held locally so no option or answer is inferred; one ownership conflict is recorded openly rather than resolved by assertion, because the 2025 General Studies Paper-II demand on the need for administrative tribunals and the 2021 rationalisation is discussed at length in the text of this owner but is routed by the audited 2024-2025 ledger to the Polity administrative-tribunals owner, so it is solved there and this owner supplies only the regulatory-governance half; no regulator composition, member count, tenure or appointment authority is asserted here because Polity owns that anatomy, and no competition case name, party, penalty, order date, pendency figure or enforcement statistic is asserted anywhere. B. An interim order of 9 March 2026 allowed temporary extensions for specified serving incumbents until 8 September 2026 or the applicable maximum age, whichever was earlier, in order to prevent tribunals becoming defunct, and that order did not revive the invalidated provisions; no official establishment notification for the National Tribunals Commission was located by the owners' audit cut-off of 13 August 2026, so implementation must be described as unresolved and neither establishment nor non-establishment may be asserted as a settled fact. C. The Jan Vishwas Amendment of Provisions Act, 2023 decriminalised or rationalised one hundred and eighty-three provisions across forty-two Central Acts and is the Indian anchor for trust-based regulation, whose method is to diagnose whether conduct involves fraud, violence, public safety or deliberate evasion or merely a technical or default failure, to use warning, cure period, graded civil penalty and digital compliance for the latter and to retain criminal sanction for serious or repeated harm, while remembering that decriminalisation is not deregulation because proportionate penalty, hearing, reasoned order and appeal all remain necessary. D. Independent sectoral regulators exist because certain sectors combine technical complexity, a need for insulation from day-to-day political and executive direction, and a need for consistent and predictable rule-making, so Parliament creates a statutory body with rule-making, licensing, monitoring and enforcement powers over that sector; the same independence then creates an accountability problem and a capture risk that governance design must continually manage rather than resolve once.

Answer: B. Explanation: An interim order of 9 March 2026 allowed temporary extensions for specified serving incumbents until 8 September 2026 or the applicable maximum age, whichever was earlier, in order to prevent tribunals becoming defunct, and that order did not revive the invalidated provisions; no official establishment notification for the National Tribunals Commission was located by the owners' audit cut-off of 13 August 2026, so implementation must be described as unresolved and neither establishment nor non-establishment may be asserted as a settled fact. The remaining options belong to different chronology, actor or analytical categories.

Q67. Which option preserves the source-bounded meaning of The interim continuity order and the unresolved commission?

A. Independent sectoral regulators exist because certain sectors combine technical complexity, a need for insulation from day-to-day political and executive direction, and a need for consistent and predictable rule-making, so Parliament creates a statutory body with rule-making, licensing, monitoring and enforcement powers over that sector; the same independence then creates an accountability problem and a capture risk that governance design must continually manage rather than resolve once. B. The audited 2018-2023 Mains ledger routes the 2023 General Studies Paper-II demand on the competition regulator and abuse of dominant position to this Basic owner jointly with the Polity consolidated statutory-body owner, and the same ledger routes two objective demands on a food-safety statute and on a petroleum and natural gas regulator here, for which the official keys are not held locally so no option or answer is inferred; one ownership conflict is recorded openly rather than resolved by assertion, because the 2025 General Studies Paper-II demand on the need for administrative tribunals and the 2021 rationalisation is discussed at length in the text of this owner but is routed by the audited 2024-2025 ledger to the Polity administrative-tribunals owner, so it is solved there and this owner supplies only the regulatory-governance half; no regulator composition, member count, tenure or appointment authority is asserted here because Polity owns that anatomy, and no competition case name, party, penalty, order date, pendency figure or enforcement statistic is asserted anywhere. C. An interim order of 9 March 2026 allowed temporary extensions for specified serving incumbents until 8 September 2026 or the applicable maximum age, whichever was earlier, in order to prevent tribunals becoming defunct, and that order did not revive the invalidated provisions; no official establishment notification for the National Tribunals Commission was located by the owners' audit cut-off of 13 August 2026, so implementation must be described as unresolved and neither establishment nor non-establishment may be asserted as a settled fact. D. The Reserve Bank of India for banking and payments, the securities-market regulator, the insurance regulator, the pension-fund regulator, the telecom regulator, the electricity regulatory commission, the petroleum and natural gas regulatory board and the competition regulator are each created by their own separate statute, and the standard trap is to assume they share a uniform independence or accountability design, because each parent Act prescribes its own tenure, funding, appointment and oversight arrangements which vary considerably in the degree of insulation from executive control.

Answer: C. Explanation: An interim order of 9 March 2026 allowed temporary extensions for specified serving incumbents until 8 September 2026 or the applicable maximum age, whichever was earlier, in order to prevent tribunals becoming defunct, and that order did not revive the invalidated provisions; no official establishment notification for the National Tribunals Commission was located by the owners' audit cut-off of 13 August 2026, so implementation must be described as unresolved and neither establishment nor non-establishment may be asserted as a settled fact. The remaining options belong to different chronology, actor or analytical categories.

Q68. Which statement avoids a close-option trap about The interim continuity order and the unresolved commission?

A. The recurring design tension is that greater autonomy improves technical and apolitical decision-making while weakening democratic answerability, greater accountability through closer ministerial control improves oversight while undermining the technical insulation regulators need, and expertise is the value both arrangements are meant to serve yet either extreme can compromise, so independence is a variable to be calibrated rather than a virtue to be maximised. B. The Reserve Bank of India for banking and payments, the securities-market regulator, the insurance regulator, the pension-fund regulator, the telecom regulator, the electricity regulatory commission, the petroleum and natural gas regulatory board and the competition regulator are each created by their own separate statute, and the standard trap is to assume they share a uniform independence or accountability design, because each parent Act prescribes its own tenure, funding, appointment and oversight arrangements which vary considerably in the degree of insulation from executive control. C. Independent sectoral regulators exist because certain sectors combine technical complexity, a need for insulation from day-to-day political and executive direction, and a need for consistent and predictable rule-making, so Parliament creates a statutory body with rule-making, licensing, monitoring and enforcement powers over that sector; the same independence then creates an accountability problem and a capture risk that governance design must continually manage rather than resolve once. D. An interim order of 9 March 2026 allowed temporary extensions for specified serving incumbents until 8 September 2026 or the applicable maximum age, whichever was earlier, in order to prevent tribunals becoming defunct, and that order did not revive the invalidated provisions; no official establishment notification for the National Tribunals Commission was located by the owners' audit cut-off of 13 August 2026, so implementation must be described as unresolved and neither establishment nor non-establishment may be asserted as a settled fact.

Answer: D. Explanation: An interim order of 9 March 2026 allowed temporary extensions for specified serving incumbents until 8 September 2026 or the applicable maximum age, whichever was earlier, in order to prevent tribunals becoming defunct, and that order did not revive the invalidated provisions; no official establishment notification for the National Tribunals Commission was located by the owners' audit cut-off of 13 August 2026, so implementation must be described as unresolved and neither establishment nor non-establishment may be asserted as a settled fact. The remaining options belong to different chronology, actor or analytical categories.

Q69. Which statement correctly identifies The financial-sector commission and regulation by activity?

A. The Financial Sector Legislative Reforms Commission of 2013, chaired by Justice B.N. Srikrishna, recommended a Unified Financial Agency to subsume most financial-sector regulators except the Reserve Bank of India for banking and payments, grounded in a regulation-by-activity principle under which financial products and activities are regulated consistently regardless of which institution offers them, and it separately proposed a draft Indian Financial Code to consolidate financial-sector legislation; neither comprehensive proposal has been implemented in full, and the 2015 merger of the Forward Markets Commission into the securities regulator is cited as a partial related step rather than as adoption. B. Independent sectoral regulators exist because certain sectors combine technical complexity, a need for insulation from day-to-day political and executive direction, and a need for consistent and predictable rule-making, so Parliament creates a statutory body with rule-making, licensing, monitoring and enforcement powers over that sector; the same independence then creates an accountability problem and a capture risk that governance design must continually manage rather than resolve once. C. The audited 2018-2023 Mains ledger routes the 2023 General Studies Paper-II demand on the competition regulator and abuse of dominant position to this Basic owner jointly with the Polity consolidated statutory-body owner, and the same ledger routes two objective demands on a food-safety statute and on a petroleum and natural gas regulator here, for which the official keys are not held locally so no option or answer is inferred; one ownership conflict is recorded openly rather than resolved by assertion, because the 2025 General Studies Paper-II demand on the need for administrative tribunals and the 2021 rationalisation is discussed at length in the text of this owner but is routed by the audited 2024-2025 ledger to the Polity administrative-tribunals owner, so it is solved there and this owner supplies only the regulatory-governance half; no regulator composition, member count, tenure or appointment authority is asserted here because Polity owns that anatomy, and no competition case name, party, penalty, order date, pendency figure or enforcement statistic is asserted anywhere. D. The Jan Vishwas Amendment of Provisions Act, 2023 decriminalised or rationalised one hundred and eighty-three provisions across forty-two Central Acts and is the Indian anchor for trust-based regulation, whose method is to diagnose whether conduct involves fraud, violence, public safety or deliberate evasion or merely a technical or default failure, to use warning, cure period, graded civil penalty and digital compliance for the latter and to retain criminal sanction for serious or repeated harm, while remembering that decriminalisation is not deregulation because proportionate penalty, hearing, reasoned order and appeal all remain necessary.

Answer: A. Explanation: The Financial Sector Legislative Reforms Commission of 2013, chaired by Justice B.N. Srikrishna, recommended a Unified Financial Agency to subsume most financial-sector regulators except the Reserve Bank of India for banking and payments, grounded in a regulation-by-activity principle under which financial products and activities are regulated consistently regardless of which institution offers them, and it separately proposed a draft Indian Financial Code to consolidate financial-sector legislation; neither comprehensive proposal has been implemented in full, and the 2015 merger of the Forward Markets Commission into the securities regulator is cited as a partial related step rather than as adoption. The remaining options belong to different chronology, actor or analytical categories.

Q70. Which chronology card should be filed under The financial-sector commission and regulation by activity?

A. The Reserve Bank of India for banking and payments, the securities-market regulator, the insurance regulator, the pension-fund regulator, the telecom regulator, the electricity regulatory commission, the petroleum and natural gas regulatory board and the competition regulator are each created by their own separate statute, and the standard trap is to assume they share a uniform independence or accountability design, because each parent Act prescribes its own tenure, funding, appointment and oversight arrangements which vary considerably in the degree of insulation from executive control. B. The Financial Sector Legislative Reforms Commission of 2013, chaired by Justice B.N. Srikrishna, recommended a Unified Financial Agency to subsume most financial-sector regulators except the Reserve Bank of India for banking and payments, grounded in a regulation-by-activity principle under which financial products and activities are regulated consistently regardless of which institution offers them, and it separately proposed a draft Indian Financial Code to consolidate financial-sector legislation; neither comprehensive proposal has been implemented in full, and the 2015 merger of the Forward Markets Commission into the securities regulator is cited as a partial related step rather than as adoption. C. Independent sectoral regulators exist because certain sectors combine technical complexity, a need for insulation from day-to-day political and executive direction, and a need for consistent and predictable rule-making, so Parliament creates a statutory body with rule-making, licensing, monitoring and enforcement powers over that sector; the same independence then creates an accountability problem and a capture risk that governance design must continually manage rather than resolve once. D. The audited 2018-2023 Mains ledger routes the 2023 General Studies Paper-II demand on the competition regulator and abuse of dominant position to this Basic owner jointly with the Polity consolidated statutory-body owner, and the same ledger routes two objective demands on a food-safety statute and on a petroleum and natural gas regulator here, for which the official keys are not held locally so no option or answer is inferred; one ownership conflict is recorded openly rather than resolved by assertion, because the 2025 General Studies Paper-II demand on the need for administrative tribunals and the 2021 rationalisation is discussed at length in the text of this owner but is routed by the audited 2024-2025 ledger to the Polity administrative-tribunals owner, so it is solved there and this owner supplies only the regulatory-governance half; no regulator composition, member count, tenure or appointment authority is asserted here because Polity owns that anatomy, and no competition case name, party, penalty, order date, pendency figure or enforcement statistic is asserted anywhere.

Answer: B. Explanation: The Financial Sector Legislative Reforms Commission of 2013, chaired by Justice B.N. Srikrishna, recommended a Unified Financial Agency to subsume most financial-sector regulators except the Reserve Bank of India for banking and payments, grounded in a regulation-by-activity principle under which financial products and activities are regulated consistently regardless of which institution offers them, and it separately proposed a draft Indian Financial Code to consolidate financial-sector legislation; neither comprehensive proposal has been implemented in full, and the 2015 merger of the Forward Markets Commission into the securities regulator is cited as a partial related step rather than as adoption. The remaining options belong to different chronology, actor or analytical categories.

Q71. Which option preserves the source-bounded meaning of The financial-sector commission and regulation by activity?

A. The recurring design tension is that greater autonomy improves technical and apolitical decision-making while weakening democratic answerability, greater accountability through closer ministerial control improves oversight while undermining the technical insulation regulators need, and expertise is the value both arrangements are meant to serve yet either extreme can compromise, so independence is a variable to be calibrated rather than a virtue to be maximised. B. The Reserve Bank of India for banking and payments, the securities-market regulator, the insurance regulator, the pension-fund regulator, the telecom regulator, the electricity regulatory commission, the petroleum and natural gas regulatory board and the competition regulator are each created by their own separate statute, and the standard trap is to assume they share a uniform independence or accountability design, because each parent Act prescribes its own tenure, funding, appointment and oversight arrangements which vary considerably in the degree of insulation from executive control. C. The Financial Sector Legislative Reforms Commission of 2013, chaired by Justice B.N. Srikrishna, recommended a Unified Financial Agency to subsume most financial-sector regulators except the Reserve Bank of India for banking and payments, grounded in a regulation-by-activity principle under which financial products and activities are regulated consistently regardless of which institution offers them, and it separately proposed a draft Indian Financial Code to consolidate financial-sector legislation; neither comprehensive proposal has been implemented in full, and the 2015 merger of the Forward Markets Commission into the securities regulator is cited as a partial related step rather than as adoption. D. Independent sectoral regulators exist because certain sectors combine technical complexity, a need for insulation from day-to-day political and executive direction, and a need for consistent and predictable rule-making, so Parliament creates a statutory body with rule-making, licensing, monitoring and enforcement powers over that sector; the same independence then creates an accountability problem and a capture risk that governance design must continually manage rather than resolve once.

Answer: C. Explanation: The Financial Sector Legislative Reforms Commission of 2013, chaired by Justice B.N. Srikrishna, recommended a Unified Financial Agency to subsume most financial-sector regulators except the Reserve Bank of India for banking and payments, grounded in a regulation-by-activity principle under which financial products and activities are regulated consistently regardless of which institution offers them, and it separately proposed a draft Indian Financial Code to consolidate financial-sector legislation; neither comprehensive proposal has been implemented in full, and the 2015 merger of the Forward Markets Commission into the securities regulator is cited as a partial related step rather than as adoption. The remaining options belong to different chronology, actor or analytical categories.

Q72. Which statement avoids a close-option trap about The financial-sector commission and regulation by activity?

A. The Reserve Bank of India for banking and payments, the securities-market regulator, the insurance regulator, the pension-fund regulator, the telecom regulator, the electricity regulatory commission, the petroleum and natural gas regulatory board and the competition regulator are each created by their own separate statute, and the standard trap is to assume they share a uniform independence or accountability design, because each parent Act prescribes its own tenure, funding, appointment and oversight arrangements which vary considerably in the degree of insulation from executive control. B. The recurring design tension is that greater autonomy improves technical and apolitical decision-making while weakening democratic answerability, greater accountability through closer ministerial control improves oversight while undermining the technical insulation regulators need, and expertise is the value both arrangements are meant to serve yet either extreme can compromise, so independence is a variable to be calibrated rather than a virtue to be maximised. C. The analytical mark lies in pairing, because fixed-term appointment is answered by an annual report laid before Parliament, funding from fees or cess rather than an annual grant is answered by audit of the regulator's own accounts, technical composition is answered by the government's power to issue policy directions in specified circumstances, statutory rule-making power is answered by mandatory consultation with a published response, and security of tenure is answered by appellate and judicial review, so listing autonomy features alone reads as advocacy while pairing them demonstrates that the trilemma is understood as a design problem. D. The Financial Sector Legislative Reforms Commission of 2013, chaired by Justice B.N. Srikrishna, recommended a Unified Financial Agency to subsume most financial-sector regulators except the Reserve Bank of India for banking and payments, grounded in a regulation-by-activity principle under which financial products and activities are regulated consistently regardless of which institution offers them, and it separately proposed a draft Indian Financial Code to consolidate financial-sector legislation; neither comprehensive proposal has been implemented in full, and the 2015 merger of the Forward Markets Commission into the securities regulator is cited as a partial related step rather than as adoption.

Answer: D. Explanation: The Financial Sector Legislative Reforms Commission of 2013, chaired by Justice B.N. Srikrishna, recommended a Unified Financial Agency to subsume most financial-sector regulators except the Reserve Bank of India for banking and payments, grounded in a regulation-by-activity principle under which financial products and activities are regulated consistently regardless of which institution offers them, and it separately proposed a draft Indian Financial Code to consolidate financial-sector legislation; neither comprehensive proposal has been implemented in full, and the 2015 merger of the Forward Markets Commission into the securities regulator is cited as a partial related step rather than as adoption. The remaining options belong to different chronology, actor or analytical categories.

Q73. Which statement correctly identifies Trust-based regulation and proportionate decriminalisation?

A. The Jan Vishwas Amendment of Provisions Act, 2023 decriminalised or rationalised one hundred and eighty-three provisions across forty-two Central Acts and is the Indian anchor for trust-based regulation, whose method is to diagnose whether conduct involves fraud, violence, public safety or deliberate evasion or merely a technical or default failure, to use warning, cure period, graded civil penalty and digital compliance for the latter and to retain criminal sanction for serious or repeated harm, while remembering that decriminalisation is not deregulation because proportionate penalty, hearing, reasoned order and appeal all remain necessary. B. Independent sectoral regulators exist because certain sectors combine technical complexity, a need for insulation from day-to-day political and executive direction, and a need for consistent and predictable rule-making, so Parliament creates a statutory body with rule-making, licensing, monitoring and enforcement powers over that sector; the same independence then creates an accountability problem and a capture risk that governance design must continually manage rather than resolve once. C. The Reserve Bank of India for banking and payments, the securities-market regulator, the insurance regulator, the pension-fund regulator, the telecom regulator, the electricity regulatory commission, the petroleum and natural gas regulatory board and the competition regulator are each created by their own separate statute, and the standard trap is to assume they share a uniform independence or accountability design, because each parent Act prescribes its own tenure, funding, appointment and oversight arrangements which vary considerably in the degree of insulation from executive control. D. The audited 2018-2023 Mains ledger routes the 2023 General Studies Paper-II demand on the competition regulator and abuse of dominant position to this Basic owner jointly with the Polity consolidated statutory-body owner, and the same ledger routes two objective demands on a food-safety statute and on a petroleum and natural gas regulator here, for which the official keys are not held locally so no option or answer is inferred; one ownership conflict is recorded openly rather than resolved by assertion, because the 2025 General Studies Paper-II demand on the need for administrative tribunals and the 2021 rationalisation is discussed at length in the text of this owner but is routed by the audited 2024-2025 ledger to the Polity administrative-tribunals owner, so it is solved there and this owner supplies only the regulatory-governance half; no regulator composition, member count, tenure or appointment authority is asserted here because Polity owns that anatomy, and no competition case name, party, penalty, order date, pendency figure or enforcement statistic is asserted anywhere.

Answer: A. Explanation: The Jan Vishwas Amendment of Provisions Act, 2023 decriminalised or rationalised one hundred and eighty-three provisions across forty-two Central Acts and is the Indian anchor for trust-based regulation, whose method is to diagnose whether conduct involves fraud, violence, public safety or deliberate evasion or merely a technical or default failure, to use warning, cure period, graded civil penalty and digital compliance for the latter and to retain criminal sanction for serious or repeated harm, while remembering that decriminalisation is not deregulation because proportionate penalty, hearing, reasoned order and appeal all remain necessary. The remaining options belong to different chronology, actor or analytical categories.

Q74. Which chronology card should be filed under Trust-based regulation and proportionate decriminalisation?

A. Independent sectoral regulators exist because certain sectors combine technical complexity, a need for insulation from day-to-day political and executive direction, and a need for consistent and predictable rule-making, so Parliament creates a statutory body with rule-making, licensing, monitoring and enforcement powers over that sector; the same independence then creates an accountability problem and a capture risk that governance design must continually manage rather than resolve once. B. The Jan Vishwas Amendment of Provisions Act, 2023 decriminalised or rationalised one hundred and eighty-three provisions across forty-two Central Acts and is the Indian anchor for trust-based regulation, whose method is to diagnose whether conduct involves fraud, violence, public safety or deliberate evasion or merely a technical or default failure, to use warning, cure period, graded civil penalty and digital compliance for the latter and to retain criminal sanction for serious or repeated harm, while remembering that decriminalisation is not deregulation because proportionate penalty, hearing, reasoned order and appeal all remain necessary. C. The recurring design tension is that greater autonomy improves technical and apolitical decision-making while weakening democratic answerability, greater accountability through closer ministerial control improves oversight while undermining the technical insulation regulators need, and expertise is the value both arrangements are meant to serve yet either extreme can compromise, so independence is a variable to be calibrated rather than a virtue to be maximised. D. The Reserve Bank of India for banking and payments, the securities-market regulator, the insurance regulator, the pension-fund regulator, the telecom regulator, the electricity regulatory commission, the petroleum and natural gas regulatory board and the competition regulator are each created by their own separate statute, and the standard trap is to assume they share a uniform independence or accountability design, because each parent Act prescribes its own tenure, funding, appointment and oversight arrangements which vary considerably in the degree of insulation from executive control.

Answer: B. Explanation: The Jan Vishwas Amendment of Provisions Act, 2023 decriminalised or rationalised one hundred and eighty-three provisions across forty-two Central Acts and is the Indian anchor for trust-based regulation, whose method is to diagnose whether conduct involves fraud, violence, public safety or deliberate evasion or merely a technical or default failure, to use warning, cure period, graded civil penalty and digital compliance for the latter and to retain criminal sanction for serious or repeated harm, while remembering that decriminalisation is not deregulation because proportionate penalty, hearing, reasoned order and appeal all remain necessary. The remaining options belong to different chronology, actor or analytical categories.

Q75. Which option preserves the source-bounded meaning of Trust-based regulation and proportionate decriminalisation?

A. The analytical mark lies in pairing, because fixed-term appointment is answered by an annual report laid before Parliament, funding from fees or cess rather than an annual grant is answered by audit of the regulator's own accounts, technical composition is answered by the government's power to issue policy directions in specified circumstances, statutory rule-making power is answered by mandatory consultation with a published response, and security of tenure is answered by appellate and judicial review, so listing autonomy features alone reads as advocacy while pairing them demonstrates that the trilemma is understood as a design problem. B. The recurring design tension is that greater autonomy improves technical and apolitical decision-making while weakening democratic answerability, greater accountability through closer ministerial control improves oversight while undermining the technical insulation regulators need, and expertise is the value both arrangements are meant to serve yet either extreme can compromise, so independence is a variable to be calibrated rather than a virtue to be maximised. C. The Jan Vishwas Amendment of Provisions Act, 2023 decriminalised or rationalised one hundred and eighty-three provisions across forty-two Central Acts and is the Indian anchor for trust-based regulation, whose method is to diagnose whether conduct involves fraud, violence, public safety or deliberate evasion or merely a technical or default failure, to use warning, cure period, graded civil penalty and digital compliance for the latter and to retain criminal sanction for serious or repeated harm, while remembering that decriminalisation is not deregulation because proportionate penalty, hearing, reasoned order and appeal all remain necessary. D. The Reserve Bank of India for banking and payments, the securities-market regulator, the insurance regulator, the pension-fund regulator, the telecom regulator, the electricity regulatory commission, the petroleum and natural gas regulatory board and the competition regulator are each created by their own separate statute, and the standard trap is to assume they share a uniform independence or accountability design, because each parent Act prescribes its own tenure, funding, appointment and oversight arrangements which vary considerably in the degree of insulation from executive control.

Answer: C. Explanation: The Jan Vishwas Amendment of Provisions Act, 2023 decriminalised or rationalised one hundred and eighty-three provisions across forty-two Central Acts and is the Indian anchor for trust-based regulation, whose method is to diagnose whether conduct involves fraud, violence, public safety or deliberate evasion or merely a technical or default failure, to use warning, cure period, graded civil penalty and digital compliance for the latter and to retain criminal sanction for serious or repeated harm, while remembering that decriminalisation is not deregulation because proportionate penalty, hearing, reasoned order and appeal all remain necessary. The remaining options belong to different chronology, actor or analytical categories.

Q76. Which statement avoids a close-option trap about Trust-based regulation and proportionate decriminalisation?

A. The analytical mark lies in pairing, because fixed-term appointment is answered by an annual report laid before Parliament, funding from fees or cess rather than an annual grant is answered by audit of the regulator's own accounts, technical composition is answered by the government's power to issue policy directions in specified circumstances, statutory rule-making power is answered by mandatory consultation with a published response, and security of tenure is answered by appellate and judicial review, so listing autonomy features alone reads as advocacy while pairing them demonstrates that the trilemma is understood as a design problem. B. The recurring design tension is that greater autonomy improves technical and apolitical decision-making while weakening democratic answerability, greater accountability through closer ministerial control improves oversight while undermining the technical insulation regulators need, and expertise is the value both arrangements are meant to serve yet either extreme can compromise, so independence is a variable to be calibrated rather than a virtue to be maximised. C. A regulator's statute may grant strong formal independence through fixed tenure and removal only for cause while its actual independence is weaker because of budgetary dependence on the ministry, informal pressure on appointments or a revolving-door relationship with the regulated industry, and the gap between the formal grant and the working reality is the standard analytical wedge for evaluating any specific regulator. D. The Jan Vishwas Amendment of Provisions Act, 2023 decriminalised or rationalised one hundred and eighty-three provisions across forty-two Central Acts and is the Indian anchor for trust-based regulation, whose method is to diagnose whether conduct involves fraud, violence, public safety or deliberate evasion or merely a technical or default failure, to use warning, cure period, graded civil penalty and digital compliance for the latter and to retain criminal sanction for serious or repeated harm, while remembering that decriminalisation is not deregulation because proportionate penalty, hearing, reasoned order and appeal all remain necessary.

Answer: D. Explanation: The Jan Vishwas Amendment of Provisions Act, 2023 decriminalised or rationalised one hundred and eighty-three provisions across forty-two Central Acts and is the Indian anchor for trust-based regulation, whose method is to diagnose whether conduct involves fraud, violence, public safety or deliberate evasion or merely a technical or default failure, to use warning, cure period, graded civil penalty and digital compliance for the latter and to retain criminal sanction for serious or repeated harm, while remembering that decriminalisation is not deregulation because proportionate penalty, hearing, reasoned order and appeal all remain necessary. The remaining options belong to different chronology, actor or analytical categories.

Q77. Which statement correctly identifies Verified question ownership, one recorded routing conflict and the data boundary?

A. The audited 2018-2023 Mains ledger routes the 2023 General Studies Paper-II demand on the competition regulator and abuse of dominant position to this Basic owner jointly with the Polity consolidated statutory-body owner, and the same ledger routes two objective demands on a food-safety statute and on a petroleum and natural gas regulator here, for which the official keys are not held locally so no option or answer is inferred; one ownership conflict is recorded openly rather than resolved by assertion, because the 2025 General Studies Paper-II demand on the need for administrative tribunals and the 2021 rationalisation is discussed at length in the text of this owner but is routed by the audited 2024-2025 ledger to the Polity administrative-tribunals owner, so it is solved there and this owner supplies only the regulatory-governance half; no regulator composition, member count, tenure or appointment authority is asserted here because Polity owns that anatomy, and no competition case name, party, penalty, order date, pendency figure or enforcement statistic is asserted anywhere. B. The recurring design tension is that greater autonomy improves technical and apolitical decision-making while weakening democratic answerability, greater accountability through closer ministerial control improves oversight while undermining the technical insulation regulators need, and expertise is the value both arrangements are meant to serve yet either extreme can compromise, so independence is a variable to be calibrated rather than a virtue to be maximised. C. The Reserve Bank of India for banking and payments, the securities-market regulator, the insurance regulator, the pension-fund regulator, the telecom regulator, the electricity regulatory commission, the petroleum and natural gas regulatory board and the competition regulator are each created by their own separate statute, and the standard trap is to assume they share a uniform independence or accountability design, because each parent Act prescribes its own tenure, funding, appointment and oversight arrangements which vary considerably in the degree of insulation from executive control. D. Independent sectoral regulators exist because certain sectors combine technical complexity, a need for insulation from day-to-day political and executive direction, and a need for consistent and predictable rule-making, so Parliament creates a statutory body with rule-making, licensing, monitoring and enforcement powers over that sector; the same independence then creates an accountability problem and a capture risk that governance design must continually manage rather than resolve once.

Answer: A. Explanation: The audited 2018-2023 Mains ledger routes the 2023 General Studies Paper-II demand on the competition regulator and abuse of dominant position to this Basic owner jointly with the Polity consolidated statutory-body owner, and the same ledger routes two objective demands on a food-safety statute and on a petroleum and natural gas regulator here, for which the official keys are not held locally so no option or answer is inferred; one ownership conflict is recorded openly rather than resolved by assertion, because the 2025 General Studies Paper-II demand on the need for administrative tribunals and the 2021 rationalisation is discussed at length in the text of this owner but is routed by the audited 2024-2025 ledger to the Polity administrative-tribunals owner, so it is solved there and this owner supplies only the regulatory-governance half; no regulator composition, member count, tenure or appointment authority is asserted here because Polity owns that anatomy, and no competition case name, party, penalty, order date, pendency figure or enforcement statistic is asserted anywhere. The remaining options belong to different chronology, actor or analytical categories.

Q78. Which chronology card should be filed under Verified question ownership, one recorded routing conflict and the data boundary?

A. The Reserve Bank of India for banking and payments, the securities-market regulator, the insurance regulator, the pension-fund regulator, the telecom regulator, the electricity regulatory commission, the petroleum and natural gas regulatory board and the competition regulator are each created by their own separate statute, and the standard trap is to assume they share a uniform independence or accountability design, because each parent Act prescribes its own tenure, funding, appointment and oversight arrangements which vary considerably in the degree of insulation from executive control. B. The audited 2018-2023 Mains ledger routes the 2023 General Studies Paper-II demand on the competition regulator and abuse of dominant position to this Basic owner jointly with the Polity consolidated statutory-body owner, and the same ledger routes two objective demands on a food-safety statute and on a petroleum and natural gas regulator here, for which the official keys are not held locally so no option or answer is inferred; one ownership conflict is recorded openly rather than resolved by assertion, because the 2025 General Studies Paper-II demand on the need for administrative tribunals and the 2021 rationalisation is discussed at length in the text of this owner but is routed by the audited 2024-2025 ledger to the Polity administrative-tribunals owner, so it is solved there and this owner supplies only the regulatory-governance half; no regulator composition, member count, tenure or appointment authority is asserted here because Polity owns that anatomy, and no competition case name, party, penalty, order date, pendency figure or enforcement statistic is asserted anywhere. C. The analytical mark lies in pairing, because fixed-term appointment is answered by an annual report laid before Parliament, funding from fees or cess rather than an annual grant is answered by audit of the regulator's own accounts, technical composition is answered by the government's power to issue policy directions in specified circumstances, statutory rule-making power is answered by mandatory consultation with a published response, and security of tenure is answered by appellate and judicial review, so listing autonomy features alone reads as advocacy while pairing them demonstrates that the trilemma is understood as a design problem. D. The recurring design tension is that greater autonomy improves technical and apolitical decision-making while weakening democratic answerability, greater accountability through closer ministerial control improves oversight while undermining the technical insulation regulators need, and expertise is the value both arrangements are meant to serve yet either extreme can compromise, so independence is a variable to be calibrated rather than a virtue to be maximised.

Answer: B. Explanation: The audited 2018-2023 Mains ledger routes the 2023 General Studies Paper-II demand on the competition regulator and abuse of dominant position to this Basic owner jointly with the Polity consolidated statutory-body owner, and the same ledger routes two objective demands on a food-safety statute and on a petroleum and natural gas regulator here, for which the official keys are not held locally so no option or answer is inferred; one ownership conflict is recorded openly rather than resolved by assertion, because the 2025 General Studies Paper-II demand on the need for administrative tribunals and the 2021 rationalisation is discussed at length in the text of this owner but is routed by the audited 2024-2025 ledger to the Polity administrative-tribunals owner, so it is solved there and this owner supplies only the regulatory-governance half; no regulator composition, member count, tenure or appointment authority is

asserted here because Polity owns that anatomy, and no competition case name, party, penalty, order date, pendency figure or enforcement statistic is asserted anywhere. The remaining options belong to different chronology, actor or analytical categories.

Q79. Which option preserves the source-bounded meaning of Verified question ownership, one recorded routing conflict and the data boundary?

A. A regulator's statute may grant strong formal independence through fixed tenure and removal only for cause while its actual independence is weaker because of budgetary dependence on the ministry, informal pressure on appointments or a revolving-door relationship with the regulated industry, and the gap between the formal grant and the working reality is the standard analytical wedge for evaluating any specific regulator. B. The recurring design tension is that greater autonomy improves technical and apolitical decision-making while weakening democratic answerability, greater accountability through closer ministerial control improves oversight while undermining the technical insulation regulators need, and expertise is the value both arrangements are meant to serve yet either extreme can compromise, so independence is a variable to be calibrated rather than a virtue to be maximised. C. The audited 2018-2023 Mains ledger routes the 2023 General Studies Paper-II demand on the competition regulator and abuse of dominant position to this Basic owner jointly with the Polity consolidated statutory-body owner, and the same ledger routes two objective demands on a food-safety statute and on a petroleum and natural gas regulator here, for which the official keys are not held locally so no option or answer is inferred; one ownership conflict is recorded openly rather than resolved by assertion, because the 2025 General Studies Paper-II demand on the need for administrative tribunals and the 2021 rationalisation is discussed at length in the text of this owner but is routed by the audited 2024-2025 ledger to the Polity administrative-tribunals owner, so it is solved there and this owner supplies only the regulatory-governance half; no regulator composition, member count, tenure or appointment authority is asserted here because Polity owns that anatomy, and no competition case name, party, penalty, order date, pendency figure or enforcement statistic is asserted anywhere. D. The analytical mark lies in pairing, because fixed-term appointment is answered by an annual report laid before Parliament, funding from fees or cess rather than an annual grant is answered by audit of the regulator's own accounts, technical composition is answered by the government's power to issue policy directions in specified circumstances, statutory rule-making power is answered by mandatory consultation with a published response, and security of tenure is answered by appellate and judicial review, so listing autonomy features alone reads as advocacy while pairing them demonstrates that the trilemma is understood as a design problem.

Answer: C. Explanation: The audited 2018-2023 Mains ledger routes the 2023 General Studies Paper-II demand on the competition regulator and abuse of dominant position to this Basic owner jointly with the Polity consolidated statutory-body owner, and the same ledger routes two objective demands on a food-safety statute and on a petroleum and natural gas regulator here, for which the official keys are not held locally so no option or answer is inferred; one ownership conflict is recorded openly rather than resolved by assertion, because the 2025 General Studies Paper-II demand on the need for administrative tribunals and the 2021 rationalisation is discussed at length in the text of this owner but is routed by the audited 2024-2025 ledger to the Polity administrative-tribunals owner, so it is solved there and this owner supplies only the regulatory-governance half; no regulator composition, member count, tenure or appointment authority is asserted here because Polity owns that anatomy, and no competition case name, party, penalty, order date, pendency figure or enforcement statistic is asserted anywhere. The remaining options belong to different chronology, actor or analytical categories.

Q80. Which statement avoids a close-option trap about Verified question ownership, one recorded routing conflict and the data boundary?

A. A regulator's statute may grant strong formal independence through fixed tenure and removal only for cause while its actual independence is weaker because of budgetary dependence on the ministry, informal pressure on appointments or a revolving-door relationship with the regulated industry, and the gap between the formal grant and the working reality is the standard analytical wedge for evaluating any specific regulator. B. The analytical mark lies in pairing, because fixed-term appointment is answered by an annual report laid before Parliament, funding from fees or cess rather than an annual grant is answered by audit of the regulator's own accounts, technical composition is answered by the government's power to issue policy directions in specified circumstances, statutory rule-making power is answered by mandatory consultation with a published response, and security of tenure is answered by appellate and judicial review, so listing autonomy features alone reads as advocacy while pairing them demonstrates that the trilemma is understood as a design problem. C. No Indian regulator sits at either extreme of a spectrum running from a ministry-controlled department at one end to fixed tenure, own funding, removal only for cause and technical composition at the other; each statute places its regulator somewhere on that spectrum, and locating a named regulator on it using its specific design features is a better comparison method than treating regulatory independence as a single yes-or-no property. D. The audited 2018-2023 Mains ledger routes the 2023 General Studies Paper-II demand on the competition regulator and abuse of dominant position to this Basic owner jointly with the Polity consolidated statutory-body owner, and the same ledger routes two objective demands on a food-safety statute and on a petroleum and natural gas regulator here, for which the official keys are not held locally so no option or answer is inferred; one ownership conflict is recorded openly rather than resolved by assertion, because the 2025 General Studies Paper-II demand on the need for administrative tribunals and the 2021 rationalisation is discussed at length in the text of this owner but is routed by the audited 2024-2025 ledger to the Polity administrative-tribunals owner, so it is solved there and this owner supplies only the regulatory-governance half; no regulator composition, member count, tenure or appointment authority is asserted here because Polity owns that anatomy, and no competition case name, party, penalty, order date, pendency figure or enforcement statistic is asserted anywhere.

Answer: D. Explanation: The audited 2018-2023 Mains ledger routes the 2023 General Studies Paper-II demand on the competition regulator and abuse of dominant position to this Basic owner jointly with the Polity consolidated statutory-body owner, and the same ledger routes two objective demands on a food-safety statute and on a petroleum and natural gas regulator here, for which the official keys are not held locally so no option or answer is inferred; one ownership conflict is recorded openly rather than resolved by assertion, because the 2025 General Studies Paper-II demand on the need for administrative tribunals and the 2021 rationalisation is discussed at length in the text of this owner but is routed by the audited 2024-2025 ledger to the Polity administrative-tribunals owner, so it is solved there and this owner supplies only the regulatory-governance half; no regulator composition, member count, tenure or appointment authority is asserted here because Polity owns that anatomy, and no competition case name, party, penalty, order date, pendency figure or enforcement statistic is asserted anywhere. The remaining options belong to different chronology, actor or analytical categories.

PYQS AND ANSWER PRACTICE

VERIFIED PYQ OWNERSHIP AUDIT

One direct General Studies Paper-II Mains demand and two applied objective demands are routed to this topic across the audited ledgers, and the routed Mains stem was confirmed word for word in the locally held OCR-searchable official question papers. The audited 2018-2023 Mains ledger routes the 2023 demand on the role of the Competition Commission of India in containing the abuse of dominant position by multi-national corporations to this Basic owner jointly with the Polity consolidated statutory, regulatory and quasi-judicial bodies owner, so the regulatory-governance content is answered here and the composition and appointment anatomy is cross-linked rather than restated. The audited 2018-2023 Prelims ledger routes the 2018 objective demand on the Food Safety and Standards Act, 2006 and the food-safety authority's structure, and the 2019 objective demand on the Petroleum and Natural Gas Regulatory Board's role and appeals, to this owner jointly with the consolidated Polity owner and the energy owner; the official 2018-2023 Preliminary Examination keys are not held locally, so no option, answer letter or distractor is recorded or inferred for either, and no composition, membership number or appointment authority is asserted for either body. One ownership conflict is recorded openly rather than resolved by assertion: the 2025 General Studies Paper-II demand on the need for administrative tribunals compared with the court system and the impact of the 2021 rationalisation is discussed at length in the text of this owner, but the audited 2024-2025 Mains ledger routes that demand to the Polity administrative-tribunals owner, so it is solved there and this owner supplies only the regulatory-governance half of the tribunal question. No official answer key or marking scheme is held locally for any routed demand, so every model solution below is an authored answer route rather than an official key.

OWNER PYQ LEDGER EXTRACTS

9. PYQ application

- FACT: 2025 Q2: "Comment on the need of administrative tribunals as compared to the court

system. Assess the impact of the recent tribunal reforms through rationalization of tribunals made in 2021." - structure the answer as (a) the tribunal rationale (technical expertise, speed, reduced court backlog) versus the ordinary court system's rationale (broader jurisdiction, established procedural safeguards); (b) the 2021 Act's specific changes (named tribunal abolitions, function transfer to High Courts, and its original appointment/tenure norms); (c) a critical assessment of impact (potential High Court workload increase, loss of specialised technical adjudication in the abolished tribunals' domains, versus gains in appointment-process uniformity and reduced tribunal proliferation); (d) for any answer written after November 2025, add that the Supreme Court invalidated the re-enacted appointment, tenure and allowance provisions and restored the earlier controlling standards. The March 2026 incumbent extensions were temporary continuity measures, not a merits reversal. No official establishment notification for the National Tribunals Commission was located by 10 August 2026.

Historical PYQ Integration (2018-2023)

> **Status:** Question-level PYQ demand is integrated into this owner. **Provenance:** Audited local official-paper routing ledgers: `_PYQ-ROUTING-MAINS-GS1-GS2-ESSAY-2018-2023.md`, `_PYQ-ROUTING-PRELIMS-2018-2023.md`. **Answer-key rule:** The official 2018-2023 Prelims/CSAT keys are not held locally; no option or answer has been inferred.

- **Years represented:** 2018, 2019, 2023
- **Paper(s):** GS-II, Prelims GS-I
- **Routed question demands:** 3

Year	Paper	Q	PYQ demand (neutral rendering)	Directive / format	Source status	Owner requirement
2018	Prelims GS-I	23	Food Safety and Standards Act 2006 and FSSAI structure	Objective question; official key unavailable locally	Regulatory specialist plus consolidated statutory-body Core; key unavailable locally	Cover the named fact/concept and its likely statement-level distinctions.
2019	Prelims GS-I	74	Petroleum Natural Gas Regulatory Board role and appeals	Objective question; official key unavailable locally	Regulatory, petroleum-sector and consolidated institutional owners; key unavailable locally	Cover the named fact/concept and its likely statement-level distinctions.
2023	GS-II	7	Competition Commission of India and abuse of dominant position	Discuss the role · 10 marks · 150 words	Regulatory-governance specialist plus consolidated statutory/regulatory Core; word limit taken from instruction block	Prepare context, core dimensions, evidence/examples, counterpoint and a concise conclusion.

What this owner must now support

- Food Safety and Standards Act 2006 and FSSAI structure
- Petroleum Natural Gas Regulatory Board role and appeals
- Competition Commission of India and abuse of dominant position

> The table integrates the examinable demand and paper metadata. It does not turn an unkeyed objective question into a solved answer, and it does not claim that lexical presence alone proves full conceptual sufficiency.

10. PYQ-based analytical application

- FACT: 2025 Q2 rewards an explicitly two-sided "assess the impact" answer: citing the

standardisation/anti-politicisation gain from search-cum-selection committees alongside the specialised-adjudication-capacity risk from tribunal abolition and High Court workload transfer - a generic "tribunals are good because they are fast" answer would under-perform relative to this trade-off-aware structure. For any answer written after November 2025, add that the Supreme Court invalidated the re-enacted appointment, tenure and allowance provisions. The March 2026 order was only an incumbent-continuity measure and did not reverse that merits ruling.

PYQ DEMAND CARD 1 - 2023 General Studies Paper-II

Demand: Discuss the role of the Competition Commission of India in containing the abuse of dominant position by the Multi-National Corporations in India. Refer to the recent decisions. Answer in 150 words for 10 marks.

Status: Routed by the audited 2018-2023 Mains ledger to this Basic owner jointly with the Polity consolidated statutory-body owner, and confirmed word for word in the locally held official 2023 General Studies Paper-II. No official answer key is held locally, so the model solution is an authored answer route. The stem's instruction to refer to recent decisions is recorded and deliberately not satisfied by invention: no competition case, party, penalty amount or order date is held in any source used here, so the route below tells the candidate to insert a decision verified from the Commission's own official orders page rather than supplying one.

Model solution: Discuss requires both the institutional role and its limits, and the opening move that separates a governance answer from a company-law answer is the conceptual foundation: dominance is not unlawful and only its abuse is, because competition law protects the competitive process rather than individual competitors and its object is consumer welfare and market access. Name the institution precisely: the Competition Commission of India is the statutory competition regulator under the Competition Act, 2002, enforcing the prohibitions on anti-competitive agreements and on abuse of dominant position and reviewing combinations, with appeals lying to the National Company Law Appellate Tribunal and thereafter to the Supreme Court, and its own official statement of purpose, read on 2 September 2026, is to promote and sustain an enabling competition culture through engagement and enforcement that would inspire businesses to be fair, competitive and innovative, enhance consumer welfare and support economic growth. Then give the analytical content the stem asks about, namely the forms abuse takes when a multi-national holds market power: predatory or unfair pricing that a smaller rival cannot sustain, unfair or discriminatory conditions imposed on business users, limiting production or technical development, denial of market access to competitors or complements, tying and bundling of a dominant product with an adjacent one, and leveraging dominance in one market to enter or protect another. Set out the governance mechanism next, because it is what makes this a Paper-II answer: the Commission is an economy-wide, ex-post and conduct-based regulator that complements sector regulators acting ex-ante on licences and tariffs, so where a multi-national operates across telecom, payments, energy or media the overlap with the sector regulator is a genuine jurisdictional question rather than an administrative oversight. Now the limitations, which is where the discuss marks are concentrated. Proving dominance requires defining the relevant market, and market definition is contested, evidence-heavy and slow, which is precisely the advantage a well-resourced multi-national holds. Digital markets built on network effects, zero-price services and data advantages fit a turnover-based framework poorly, so a firm may hold decisive user power without the revenue signature the framework expects. Remedies arrive after the market structure has already shifted, so a behavioural order may correct conduct in a market that competition has already left. Enforcement outcomes are frequently suspended in appeal, so an order is not an outcome until the appellate route is exhausted. On the stem's instruction to refer to recent decisions, state honestly that a decision should be cited only from the Commission's own published orders, with the party, the relevant market defined and the direction issued, because a misremembered case is a heavier penalty than an omitted one. Conclude that the Commission is the correct institution for conduct and that conduct regulation alone is a slow instrument against fast-moving structural market power, so the credible reform direction is faster interim relief, market-study-based ex-ante obligations for entrenched digital gatekeepers, and closer coordination with sector regulators rather than a wider penalty range. Assert no case, party, penalty, order date, pendency figure or enforcement statistic, and assert no composition or appointment detail for the Commission, which Polity owns.

PYQ DEMAND CARD 2 - 2018 Preliminary Examination General Studies Paper-I

Demand: Objective demand on the Food Safety and Standards Act, 2006 and the food-safety authority's structure, routed to this owner jointly with the consolidated Polity statutory-body owner by the audited 2018-2023 Prelims ledger.

Status: The official 2018-2023 Preliminary Examination key is not held locally, so no option, answer letter or distractor is recorded or inferred, and no composition, membership number or appointment authority is asserted for the authority named in the stem.

Model solution: The examinable skill is generic regulator anatomy applied to a specific named statute, so the safe method is to test each statement against the anatomy and against the Act named in the stem rather than against a remembered composition. Apply five checks in order. First, the parent statute alone defines the powers, so a statement attributing to the authority a power that the named Act does not confer fails whatever the authority does in practice; a food-safety regulator created by a 2006 statute derives its standard-setting, licensing, registration, monitoring and enforcement powers from that Act and from regulations made under it. Second, jurisdiction is defined by a sector, an activity or both, so a statement extending the authority's writ beyond the articles and activities the Act covers is a scope error. Third, the function mix is characteristically rule-making plus licensing or registration plus monitoring plus enforcement, so a statement that a sectoral regulator is purely advisory, or conversely that it exercises judicial power, misdescribes the class. Fourth, the appellate route for most sector regulators is a specified tribunal or appellate authority under the parent Act rather than a direct writ to a High Court, so a statement asserting an unmediated route to constitutional courts as the ordinary remedy is unsafe. Fifth, the parent ministry holds policy and not control over individual regulatory decisions, so a statement that the ministry decides licensing or enforcement outcomes confuses policy with adjudication. Add the classification discipline, because it costs disproportionately in the opening line of any answer: a body of this kind is statutory rather than constitutional, and a body created by executive order is neither. No option is selected, no answer letter is recorded, and no composition, member count, tenure or appointment authority is asserted.

PYQ DEMAND CARD 3 - 2019 Preliminary Examination General Studies Paper-I

Demand: Objective demand on the Petroleum and Natural Gas Regulatory Board's role and appeals, routed to this owner jointly with the consolidated Polity statutory-body owner and the energy owner by the audited 2018-2023 Prelims ledger.

Status: The official 2018-2023 Preliminary Examination key is not held locally, so no option, answer letter or distractor is recorded or inferred, and no composition, membership number or appointment authority is asserted for the board named in the stem.

Model solution: This demand tests the same anatomy on an energy-sector body, and the additional examinable element named in the ledger rendering is the appellate route, so answer it in two layers. On role, a petroleum and natural gas regulator of this kind is a statutory sector regulator whose functions run to authorising or registering entities, regulating access to and tariffs for common-carrier infrastructure, setting technical and safety standards through regulations, monitoring compliance and enforcing against breach; each of these powers exists only to the extent the parent Act confers it, which is why a statement must be tested against the statute rather than against a general impression of what an energy regulator does. On appeals, the general Indian design is that a decision of a sector regulator lies to a specified appellate tribunal for that sector rather than directly to a civil court, on the premise that technical disputes benefit from technically informed adjudicators, and that is the rationale for tribunalisation as a whole; a statement asserting that a regulator's order is final and unappealable, or that it is appealable directly to the Supreme Court as an ordinary route, is unsafe on its face. Add the two live disciplines that a statement-based stem can reach. First, tribunal design is constitutionally controlled rather than a free legislative field, since 2025 INSC 1330 of 19 November 2025 invalidated the re-enacted minimum-age, two-name panel and timeline, four-year tenure and allowance provisions of the Tribunals Reforms Act, 2021 and made the earlier Madras Bar Association standards controlling. Second, the ex-ante character of a sector regulator distinguishes it from the ex-post, economy-wide competition regulator, so a statement collapsing the two into one jurisdiction is a category error. No option is selected, no answer letter is recorded, and no composition, tariff, throughput or enforcement figure is asserted.

ORIGINAL MAINS 1 - 10 MARKS

Question: Discuss the role of the competition regulator in containing the abuse of a dominant position in India. Answer in about 150 words.

Model thesis: The regulator is the correct institution for conduct because competition law protects the competitive process rather than individual competitors, but conduct regulation is a slow instrument against fast-moving structural market power, which is why the honest verdict pairs the institutional answer with the market-definition, digital-market and appellate-suspension limitations.

Claim -> named evidence -> analysis -> qualification:

- The Competition Commission of India is the statutory competition regulator under the Competition Act, 2002, enforcing the prohibitions on anti-competitive agreements and on abuse of dominant position and reviewing combinations, with appeals lying to the National Company Law Appellate Tribunal and thereafter to the Supreme Court; its own official website, read on 2 September 2026, states that its purpose is to promote and sustain an enabling competition culture through engagement and enforcement that would inspire businesses to be fair, competitive and innovative, enhance consumer welfare and support economic growth.
- The conceptual foundation that separates a governance answer from a company-law answer is that dominance itself is not unlawful and only its abuse is, because competition law protects the competitive process rather than individual competitors and its object is consumer welfare and market access, and abuse takes identifiable forms including predatory or unfair pricing, unfair or discriminatory conditions, limiting production or technical development, denial of market access, tying and bundling, and leveraging dominance in one market to enter or protect another.
- The competition regulator is an economy-wide, ex-post and conduct-based regulator that complements sector regulators acting ex-ante on licences and tariffs, so the overlap between them is a genuine jurisdictional question rather than an oversight, and the limitations that carry the analytical marks are that proving dominance requires a contested and slow market definition, that digital markets with network effects, zero-price services and data advantages are handled poorly by a turnover-based framework, that remedies arrive after the market structure has already shifted, and that enforcement outcomes are frequently suspended in appeal.
- No Indian regulator sits at either extreme of a spectrum running from a ministry-controlled department at one end to fixed tenure, own funding, removal only for cause and technical composition at the other; each statute places its regulator somewhere on that spectrum, and locating a named regulator on it using its specific design features is a better comparison method than treating regulatory independence as a single yes-or-no property.

Qualified conclusion: The regulator is the correct institution for conduct because competition law protects the competitive process rather than individual competitors, but conduct regulation is a slow instrument against fast-moving structural market power, which is why the honest verdict pairs the institutional answer with the market-definition, digital-market and appellate-suspension limitations.

ORIGINAL MAINS 2 - 10 MARKS

Question: Explain why regulatory capture is usually lawful and what disciplines it more effectively than closer ministerial control. Answer in about 150 words.

Model thesis: Capture is a structural consequence of information asymmetry rather than a moral failing, so the effective correctives are procedural, and closer ministerial control substitutes one form of capture for another rather than curing the first.

Claim -> named evidence -> analysis -> qualification:

- Capture is the situation in which a regulator comes over time to serve the interest of the industry it regulates rather than the public interest, and it usually operates lawfully through information asymmetry because the industry knows the sector better, through dependence on industry data, expertise and personnel, through a revolving door and industry-funded research, and finally through agenda and framing capture in which the regulator adopts the industry's own definition of the problem, so treating capture as a synonym for corruption misses every ordinary pathway by which it happens.
- An under-independent regulator captured by the parent ministry rather than by the industry produces politically timed decisions and suppressed tariffs, so a balanced answer names both directions of failure, and the correctives

against industry capture are procedural rather than exhortatory, namely mandatory consultation with published responses, reasoned orders, cooling-off periods, in-house technical capacity, user representation in consultation, appellate review, parliamentary reporting and conflict-of-interest disclosure.

- A regulator's legitimacy rests on process rather than on independence asserted in its statute, because pre-consultation, published responses, reasoned orders and effective appellate review are what make unelected rule-making defensible, and a regulator that fails the rule-making and due-process tests is not made legitimate by passing the mandate, appointment and funding tests; regulatory impact assessment is the main available ex-ante discipline on rule-making quality and is unevenly institutionalised in India rather than a uniformly binding requirement.
- The analytical mark lies in pairing, because fixed-term appointment is answered by an annual report laid before Parliament, funding from fees or cess rather than an annual grant is answered by audit of the regulator's own accounts, technical composition is answered by the government's power to issue policy directions in specified circumstances, statutory rule-making power is answered by mandatory consultation with a published response, and security of tenure is answered by appellate and judicial review, so listing autonomy features alone reads as advocacy while pairing them demonstrates that the trilemma is understood as a design problem.

Qualified conclusion: Capture is a structural consequence of information asymmetry rather than a moral failing, so the effective correctives are procedural, and closer ministerial control substitutes one form of capture for another rather than curing the first.

ORIGINAL MAINS 3 - 15 MARKS

Question: Examine the autonomy, accountability and expertise trilemma in the design of India's sectoral regulators. Answer in about 250 words.

Model thesis: Independence is a means to consistent and technically sound decision-making rather than an end, so the design question is which decisions must be insulated, namely individual cases, and which must remain political, namely sectoral policy, and every autonomy feature must be read together with the accountability counterpart that answers it.

Claim -> named evidence -> analysis -> qualification:

- The recurring design tension is that greater autonomy improves technical and apolitical decision-making while weakening democratic answerability, greater accountability through closer ministerial control improves oversight while undermining the technical insulation regulators need, and expertise is the value both arrangements are meant to serve yet either extreme can compromise, so independence is a variable to be calibrated rather than a virtue to be maximised.
- The analytical mark lies in pairing, because fixed-term appointment is answered by an annual report laid before Parliament, funding from fees or cess rather than an annual grant is answered by audit of the regulator's own accounts, technical composition is answered by the government's power to issue policy directions in specified circumstances, statutory rule-making power is answered by mandatory consultation with a published response, and security of tenure is answered by appellate and judicial review, so listing autonomy features alone reads as advocacy while pairing them demonstrates that the trilemma is understood as a design problem.
- A regulator's statute may grant strong formal independence through fixed tenure and removal only for cause while its actual independence is weaker because of budgetary dependence on the ministry, informal pressure on appointments or a revolving-door relationship with the regulated industry, and the gap between the formal grant and the working reality is the standard analytical wedge for evaluating any specific regulator.
- Any regulator, including an unfamiliar or entirely novel one, can be assessed on six tests, namely the statutory mandate and the Act that confers it, the appointment and removal process and whether removal can be arbitrary, the funding source and whether the regulated entity or the ministry controls it, the rule-making process including pre-consultation, a published response to comments and any impact appraisal, enforcement due process covering notice, hearing, a reasoned order, proportionate penalty and absence of bias, and finally review and reporting through an appellate route and legislative reporting.

Qualified conclusion: Independence is a means to consistent and technically sound decision-making rather than an end, so the design question is which decisions must be insulated, namely individual cases, and which must remain political, namely sectoral policy, and every autonomy feature must be read together with the accountability counterpart that answers it.

ORIGINAL MAINS 4 - 15 MARKS

Question: Examine why comprehensive regulatory-architecture reform meets greater resistance in India than incremental single-sector adjustment. Answer in about 250 words.

Model thesis: Comprehensive unification promises the removal of regulatory arbitrage and concentrates both political cost and systemic risk, which is why a regulation-by-activity design has remained a proposal while sector-specific incrementalism has proceeded, and the pattern parallels the selective adoption of commission recommendations generally.

Claim -> named evidence -> analysis -> qualification:

- The Financial Sector Legislative Reforms Commission of 2013, chaired by Justice B.N. Srikrishna, recommended a Unified Financial Agency to subsume most financial-sector regulators except the Reserve Bank of India for banking and payments, grounded in a regulation-by-activity principle under which financial products and activities are regulated consistently regardless of which institution offers them, and it separately proposed a draft Indian Financial Code to consolidate financial-sector legislation; neither comprehensive proposal has been implemented in full, and the 2015 merger of the Forward Markets Commission into the securities regulator is cited as a partial related step rather than as adoption.
- The Reserve Bank of India for banking and payments, the securities-market regulator, the insurance regulator, the pension-fund regulator, the telecom regulator, the electricity regulatory commission, the petroleum and natural gas regulatory board and the competition regulator are each created by their own separate statute, and the standard trap is to assume they share a uniform independence or accountability design, because each parent Act prescribes its own tenure, funding, appointment and oversight arrangements which vary considerably in the degree of insulation from executive control.
- The competition regulator is an economy-wide, ex-post and conduct-based regulator that complements sector regulators acting ex-ante on licences and tariffs, so the overlap between them is a genuine jurisdictional question rather than an oversight, and the limitations that carry the analytical marks are that proving dominance requires a contested and slow market definition, that digital markets with network effects, zero-price services and data advantages are handled poorly by a turnover-based framework, that remedies arrive after the market structure has already shifted, and that enforcement outcomes are frequently suspended in appeal.
- The audited 2018-2023 Mains ledger routes the 2023 General Studies Paper-II demand on the competition regulator and abuse of dominant position to this Basic owner jointly with the Polity consolidated statutory-body owner, and the same ledger routes two objective demands on a food-safety statute and on a petroleum and natural gas regulator here, for which the official keys are not held locally so no option or answer is inferred; one ownership conflict is recorded openly rather than resolved by assertion, because the 2025 General Studies Paper-II demand on the need for administrative tribunals and the 2021 rationalisation is discussed at length in the text of this owner but is routed by the audited 2024-2025 ledger to the Polity administrative-tribunals owner, so it is solved there and this owner supplies only the regulatory-governance half; no regulator composition, member count, tenure or appointment authority is asserted here because Polity owns that anatomy, and no competition case name, party, penalty, order date, pendency figure or enforcement statistic is asserted anywhere.

Qualified conclusion: Comprehensive unification promises the removal of regulatory arbitrage and concentrates both political cost and systemic risk, which is why a regulation-by-activity design has remained a proposal while sector-specific incrementalism has proceeded, and the pattern parallels the selective adoption of commission recommendations generally.

ORIGINAL MAINS 5 - 20 MARKS

Question: Assess the claim that the Indian tribunal question is now a question about how members are chosen rather than about whether specialised adjudication is desirable. Answer in about 300 words.

Model thesis: The case for specialised adjudication remains strong on expertise and speed, but repeated legislative attempts to fix appointment and tenure have been found constitutionally deficient, leaving the system dependent on interim judicial management, so the claim holds while remaining incomplete without the transfer of abolished tribunals' functions to already burdened High Courts.

Claim -> named evidence -> analysis -> qualification:

- Tribunalisation is the proliferation of specialised quasi-judicial bodies to adjudicate disputes in specific regulatory or technical domains, justified by technical expertise unavailable in generalist courts and by speed with reduced court backlog, and carrying the twin risks of eroding the procedural safeguards associated with the ordinary court system and of proliferating without adequate independence safeguards, which is why disputes from a regulator's licensing denial or penalty order usually lie to a specified tribunal rather than directly to a civil court.
- The Tribunals Reforms Act, 2021 abolished a specific named set of appellate tribunals and authorities, including bodies under the Cinematograph Act, 1952, the Trade Marks Act, 1999, the Copyright Act, 1957 and certain Customs Act and Airports Authority of India Act appellate bodies, transferring their functions mainly to High Courts while prescribing appointment and service conditions for the tribunals that remain, and it did not abolish all tribunals in India, which is the standard misstatement in this area.
- In 2025 INSC 1330, delivered on 19 November 2025, the Supreme Court invalidated the re-enacted provisions covering the fifty-year minimum age, the two-name recommendation panel with a merely preferable appointment timeline, the four-year tenure and the impugned allowance framework as an impermissible legislative override that repeated defects already condemned in the earlier Madras Bar Association judgments, made those earlier standards controlling until constitutionally compliant legislation is enacted, and directed the Union Government to establish a National Tribunals Commission within four months.
- An interim order of 9 March 2026 allowed temporary extensions for specified serving incumbents until 8 September 2026 or the applicable maximum age, whichever was earlier, in order to prevent tribunals becoming defunct, and that order did not revive the invalidated provisions; no official establishment notification for the National Tribunals Commission was located by the owners' audit cut-off of 13 August 2026, so implementation must be described as unresolved and neither establishment nor non-establishment may be asserted as a settled fact.

Qualified conclusion: The case for specialised adjudication remains strong on expertise and speed, but repeated legislative attempts to fix appointment and tenure have been found constitutionally deficient, leaving the system dependent on interim judicial management, so the claim holds while remaining incomplete without the transfer of abolished tribunals' functions to already burdened High Courts.

ORIGINAL MAINS 6 - 20 MARKS

Question: Assess how a newly created regulator for an emerging sector should be designed so that it is legitimate rather than merely independent. Answer in about 300 words.

Model thesis: Legitimacy is produced by process rather than asserted by statute, so a new regulator must pass the mandate, appointment, funding, rule-making, due-process and review tests together, be protected against both industry and ministerial capture, and adopt proportionate rather than criminal-first enforcement, with independence calibrated to insulate cases while leaving policy political.

Claim -> named evidence -> analysis -> qualification:

- Any regulator, including an unfamiliar or entirely novel one, can be assessed on six tests, namely the statutory mandate and the Act that confers it, the appointment and removal process and whether removal can be arbitrary, the funding source and whether the regulated entity or the ministry controls it, the rule-making process including pre-consultation, a published response to comments and any impact appraisal, enforcement due process covering notice, hearing, a reasoned order, proportionate penalty and absence of bias, and finally review and reporting through an appellate route and legislative reporting.

- A regulator's legitimacy rests on process rather than on independence asserted in its statute, because pre-consultation, published responses, reasoned orders and effective appellate review are what make unelected rule-making defensible, and a regulator that fails the rule-making and due-process tests is not made legitimate by passing the mandate, appointment and funding tests; regulatory impact assessment is the main available ex-ante discipline on rule-making quality and is unevenly institutionalised in India rather than a uniformly binding requirement.
- The Jan Vishwas Amendment of Provisions Act, 2023 decriminalised or rationalised one hundred and eighty-three provisions across forty-two Central Acts and is the Indian anchor for trust-based regulation, whose method is to diagnose whether conduct involves fraud, violence, public safety or deliberate evasion or merely a technical or default failure, to use warning, cure period, graded civil penalty and digital compliance for the latter and to retain criminal sanction for serious or repeated harm, while remembering that decriminalisation is not deregulation because proportionate penalty, hearing, reasoned order and appeal all remain necessary.
- Independent sectoral regulators exist because certain sectors combine technical complexity, a need for insulation from day-to-day political and executive direction, and a need for consistent and predictable rule-making, so Parliament creates a statutory body with rule-making, licensing, monitoring and enforcement powers over that sector; the same independence then creates an accountability problem and a capture risk that governance design must continually manage rather than resolve once.

Qualified conclusion: Legitimacy is produced by process rather than asserted by statute, so a new regulator must pass the mandate, appointment, funding, rule-making, due-process and review tests together, be protected against both industry and ministerial capture, and adopt proportionate rather than criminal-first enforcement, with independence calibrated to insulate cases while leaving policy political.